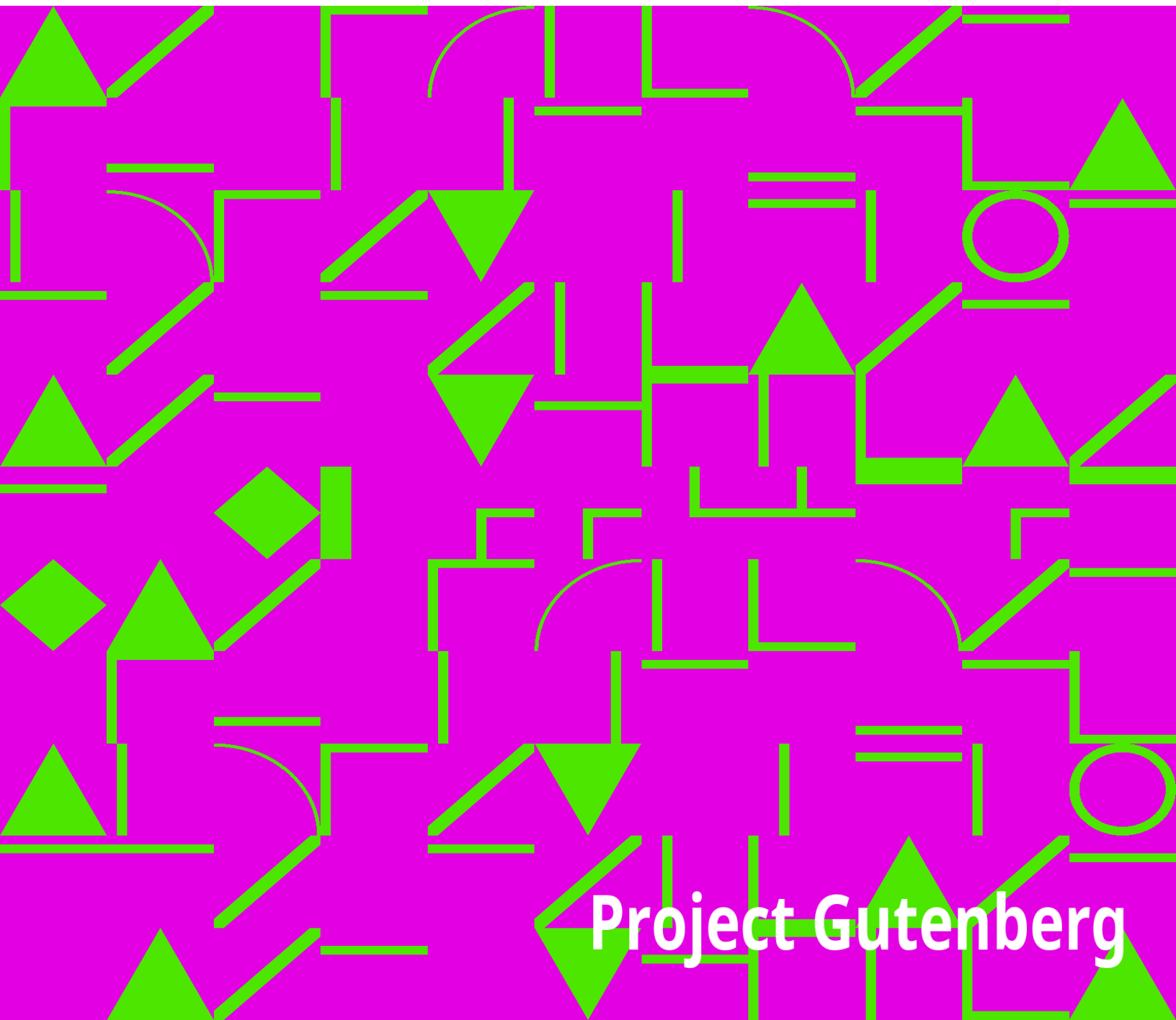


An Outline of the Relations between England and Scotland (500-1707)

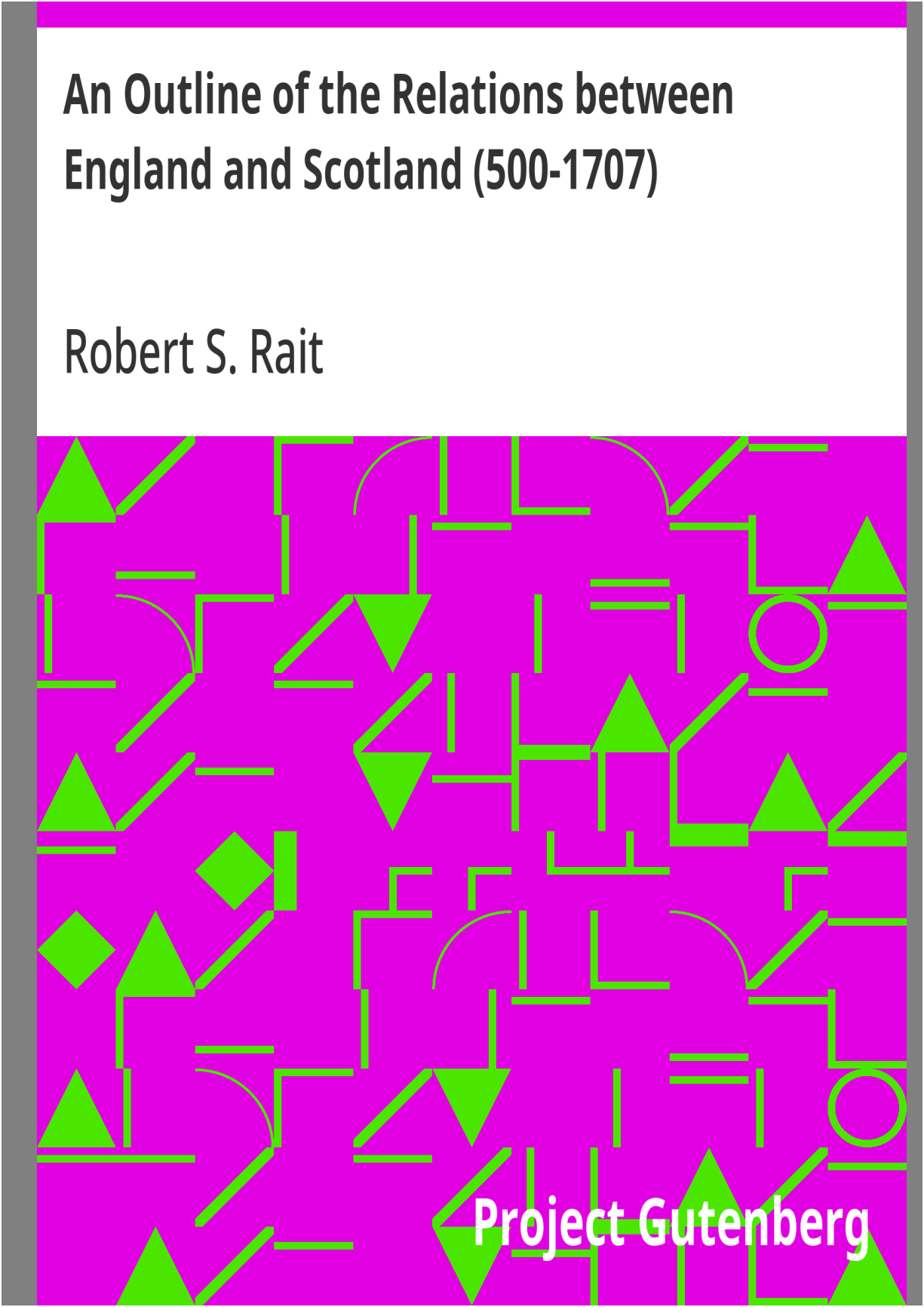
Robert S. Rait



Project Gutenberg

An Outline of the Relations between England and Scotland (500-1707)

Robert S. Rait



Project Gutenberg

The Project Gutenberg eBook of An Outline of the Relations between England and Scotland (500-1707)

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: An Outline of the Relations between England and Scotland (500-1707)

Author: Robert S. Rait

Release date: September 4, 2005 [eBook #16647]

Most recently updated: December 12, 2020

Language: English

Other information and formats: www.gutenberg.org/ebooks/16647

Credits: Produced by Irma Spehar, Janet Blenkinsip and the Online Distributed Proofreading Team at <https://www.pgdp.net>.
Produced from page images provided by Internet Archive/Canadian Libraries.

*** START OF THE PROJECT GUTENBERG EBOOK AN OUTLINE
OF THE RELATIONS BETWEEN ENGLAND AND SCOTLAND (500-
1707) ***

Outline of the

Relations between
England and Scotland

(500-1707)

BY

ROBERT S. RAIT

FELLOW OF NEW COLLEGE, OXFORD

LONDON

BLACKIE & SON, LIMITED, 50 OLD BAILEY, E.C.

GLASGOW AND DUBLIN

1901

PREFATORY NOTE

I desire to take this opportunity of acknowledging valuable aid derived from the recent works on Scottish History by Mr. Hume Brown and Mr. Andrew Lang, from Mr. E.W. Robertson's *Scotland under her Early Kings*, and from Mr. Oman's *Art of War*. Personal acknowledgments are due to Professor Davidson of Aberdeen, to Mr. H. Fisher, Fellow of New College, and to Mr. J.T.T. Brown, of Glasgow, who was good enough to aid me in the search for references to the Highlanders in Scottish mediæval literature, and to give me the benefit of his great knowledge of this subject.

R.S.R.

NEW COLLEGE, OXFORD,

April, 1901.

CONTENTS

INTRODUCTION

CHAPTER I—Racial Distribution and Feudal Relations, 500-1066 a.d.

CHAPTER II—Scotland and the Normans, 1066-1286

CHAPTER III—The Scottish Policy of Edward I, 1286-1296

CHAPTER IV—The War of Independence, 1297-1328

CHAPTER V—Edward III and Scotland, 1328-1399

CHAPTER VI—Scotland, Lancaster, and York, 1400-1500

CHAPTER VII—The Beginnings of the English Alliance,

CHAPTER VIII—The Parting of the Ways, 1542-1568

CHAPTER IX—The Union of the Crowns, 1568-1625

CHAPTER X—"The Troubles in Scotland", 1625-1688

CHAPTER XI—The Union of the Parliaments, 1689-1707

APPENDIX A—References to the Highlanders in Mediæval Literature

APPENDIX B—The Feudalization of Scotland

APPENDIX C—Table of the Competitors of 1290

INDEX

INTRODUCTION

The present volume has been published with two main objects. The writer has attempted to exhibit, in outline, the leading features of the international history of the two countries which, in 1707, became the United Kingdom. Relations with England form a large part, and the heroic part, of Scottish history, relations with Scotland a very much smaller part of English history. The result has been that in histories of England references to Anglo-Scottish relations are occasional and spasmodic, while students of Scottish history have occasionally forgotten that, in regard to her southern neighbour, the attitude of Scotland was not always on the heroic scale. Scotland appears on the horizon of English history only during well-defined epochs, leaving no trace of its existence in the intervals between these. It may be that the space given to Scotland in the ordinary histories of England is proportional to the importance of Scottish affairs, on the whole; but the importance assigned to Anglo-Scottish relations in the fourteenth century is quite disproportionate to the treatment of the same subject in the fifteenth century. Readers even of Mr. Green's famous book, may learn with surprise from Mr. Lang or Mr. Hume Brown the part played by the Scots in the loss of the English dominions in France, or may fail to understand the references to Scotland in the diplomatic correspondence of the sixteenth century.^[1] There seems to be, therefore, room for a connected narrative of the attitude of the two countries towards each other, for only thus is it possible to provide the *data* requisite for a fair appreciation of the policy of Edward I and Henry VIII, or of Elizabeth and James I. Such a narrative is here presented, in outline, and the writer has tried, as far as might be, to eliminate from his work the element of national prejudice.

The book has also another aim. The relations between England and Scotland have not been a purely political connexion. The peoples have, from an early date, been, to some extent, intermingled, and this mixture of blood renders necessary some account of the racial relationship. It has been a favourite theme of the English historians of the nineteenth century that the portions of Scotland where the Gaelic tongue has ceased to be spoken are not really Scottish, but English. "The Scots who resisted Edward", wrote

Mr. Freeman, "were the English of Lothian. The true Scots, out of hatred to the 'Saxons' nearest to them, leagued with the 'Saxons' farther off."^[2] Mr. Green, writing of the time of Edward I, says: "The farmer of Fife or the Lowlands, and the artisan of the towns, remained stout-hearted Northumbrian Englishmen", and he adds that "The coast districts north of the Tay were inhabited by a population of the same blood as that of the Lowlands".^[3] The theory has been, at all events verbally, accepted by Mr. Lang, who describes the history of Scotland as "the record of the long resistance of the English of Scotland to England, of the long resistance of the Celts of Scotland to the English of Scotland".^[4] Above all, the conception has been firmly planted in the imagination by the poet of the *Lady of the Lake*.

"These fertile plains, that soften'd vale,
Were once the birthright of the Gael;
The stranger came with iron hand,
And from our fathers reft the land."

While holding in profound respect these illustrious names, the writer ventures to ask for a modification of this verdict. That the Scottish Lowlanders (among whom we include the inhabitants of the coast districts from the Tay to the Moray Firth) were, in the end of the thirteenth century, "English in speech and manners" (as Mr. Oman^[5] guardedly describes them) is beyond doubt. Were they also English in blood? The evidence upon which the accepted theory is founded is twofold. In the course of the sixth century the Angles made a descent between the Humber and the Forth, and that district became part of the English kingdom of Northumbria. Even here we have, in the evidence of the place-names, some reasons for believing that a proportion of the original Brythonic population may have survived. This northern portion of the kingdom of Northumbria was affected by the Danish invasions, but it remained an Anglian kingdom till its conquest, in the beginning of the eleventh century, by the Celtic king, Malcolm II. There is, thus, sufficient justification for Mr. Freeman's phrase, "the English of Lothian", if we interpret the term "Lothian" in the strict sense; but it remains to be explained how the inhabitants of the Scottish Lowlands, outside Lothian, can be included among the English of Lothian who resisted Edward I. That explanation is afforded by the events which followed the

Norman Conquest of England. It is argued that the Englishmen who fled from the Normans united with the original English of Lothian to produce the result indicated in the passage quoted from Mr. Green. The farmers of Fife and the Lowlands, the artisans of the towns, the dwellers in the coast districts north of Tay, became, by the end of the thirteenth century, stout Northumbrian Englishmen. Mr. Green admits that the south-west of Scotland was still inhabited, in 1290, by the Picts of Galloway, and neither he nor any other exponent of the theory offers any explanation of their subsequent disappearance. The history of Scotland, from the fourteenth century to the Rising of 1745, contains, according to this view, a struggle between the Celts and "the English of Scotland", the most important incident of which is the battle of Harlaw, in 1411, which resulted in a great victory for "the English of Scotland". Mr. Hill Burton writes thus of Harlaw: "On the face of ordinary history it looks like an affair of civil war. But this expression is properly used towards those who have common interests and sympathies, who should naturally be friends and may be friends again, but for a time are, from incidental causes of dispute and quarrel, made enemies. The contest ... was none of this; it was a contest between foes, of whom their contemporaries would have said that their ever being in harmony with each other, or having a feeling of common interests and common nationality, was not within the range of rational expectations.... It will be difficult to make those not familiar with the tone of feeling in Lowland Scotland at that time believe that the defeat of Donald of the Isles was felt as a more memorable deliverance even than that of Bannockburn."^[6]

We venture to plead for a modification of this theory, which may fairly be called the orthodox account of the circumstances. It will at once occur to the reader that some definite proof should be forthcoming that the Celtic inhabitants of Scotland, outside the Lothians, were actually subjected to this process of racial displacement. Such a displacement had certainly not been effected before the Norman Conquest, for it was only in 1018 that the English of Lothian were subjected to the rule of a Celtic king, and the large amount of Scottish literature, in the Gaelic tongue, is sufficient indication that Celtic Scotland was not confined to the Highlands in the eleventh century. Nor have we any hint of a racial displacement after the Norman conquest, even though it is unquestionable that a considerable number of

exiles followed Queen Margaret to Scotland, and that William's harrying of the north of England drove others over the border. It is easy to lay too much stress upon the effect of the latter event. The northern counties cannot have been very thickly populated, and if Mr. Freeman is right in his description of "that fearful deed, half of policy, half of vengeance, which has stamped the name of William with infamy", not very many of the victims of his cruelty can have made good their flight, for we are told that the bodies of the inhabitants of Yorkshire "were rotting in the streets, in the highways, or on their own hearthstones". Stone dead left no fellow to colonize Scotland. We find, therefore, only the results and not the process of this racial displacement. These results were the adoption of English manners and the English tongue, and the growth of English names, and we wish to suggest that they may find an historical explanation which does not involve the total disappearance of the Scottish farmer from Fife, or of the Scottish artisan from Aberdeen.

Before proceeding to a statement of the explanation to which we desire to direct the reader's attention, it may be useful to deal briefly with the questions relating to the spoken language of Lowland Scotland and to its place-names. The fact that the language of the Angles and Saxons completely superseded, in England, the tongue of the conquered Britons, is admitted to be a powerful argument for the view that the Anglo-Saxon conquest of England resulted in a racial displacement. But the argument cannot be transferred to the case of the Scottish Lowlands, where, also, the English language has completely superseded a Celtic tongue. For, in the first case, the victory is that of the language of a savage people, known to be in a state of actual warfare, and it is a victory which follows as an immediate result of conquest. In Scotland, the victory of the English tongue (outside the Lothians) dates from a relatively advanced period of civilization, and it is a victory won, not by conquest or bloodshed, but by peaceful means. Even in a case of conquest, change of speech is not conclusive evidence of change of race (*e.g.* the adoption of a Romance tongue by the Gauls); much less is it decisive in such an instance as the adoption of English by the Lowlanders of Scotland. In striking contrast to the case of England, the victory of the Anglo-Saxon speech in Scotland did not include the adoption of English place-names. The reader will find the subject fully discussed in the valuable work by the Reverend J.B. Johnston,

entitled *Place-Names of Scotland*. "It is impossible", says Mr. Johnston, "to speak with strict accuracy on the point, but Celtic names in Scotland must outnumber all the rest by nearly ten to one." Even in counties where the Gaelic tongue is now quite obsolete (*e.g.* in Fife, in Forfar, in the Mearns, and in parts of Aberdeenshire), the place-names are almost entirely Celtic. The region where English place-names abound is, of course, the Lothians; but scarcely an English place-name is definitely known to have existed, even in the Lothians, before the Norman Conquest, and, even in the Lothians, the English tongue never affected the names of rivers and mountains. In many instances, the existence of a place-name which has now assumed an English form is no proof of English race. As the Gaelic tongue died out, Gaelic place-names were either translated or corrupted into English forms; Englishmen, receiving grants of land from Malcolm Canmore and his successors, called these lands after their own names, with the addition of the suffix-ham or-tun; the influence of English ecclesiastics introduced many new names; and as English commerce opened up new seaports, some of these became known by the names which Englishmen had given them.^[7] On the whole, the evidence of the place-names corroborates our view that the changes were changes in civilization, and not in racial distribution.

We now proceed to indicate the method by which these changes were effected, apart from any displacement of race. Our explanation finds a parallel in the process which has changed the face of the Scottish Highlands within the last hundred and fifty years, and which produced very important results within the "sixty years" to which Sir Walter Scott referred in the second title of *Waverley*.^[8] There has been no racial displacement; but the English language and English civilization have gradually been superseding the ancient tongue and the ancient customs of the Scottish Highlands. The difference between Skye and Fife is that the influences which have been at work in the former for a century and a half have been in operation in the latter for more than eight hundred years.

What then were the influences which, between 1066 and 1300, produced in the Scottish Lowlands some of the results that, between 1746 and 1800, were achieved in the Scottish Highlands? That they included an infusion of English blood we have no wish to deny. Anglo-Saxons, in considerable numbers, penetrated northwards, and by the end of the thirteenth century

the Lowlanders were a much less pure race than, except in the Lothians, they had been in the days of Malcolm Canmore. Our contention is, that we have no evidence for the assertion that this Saxon admixture amounted to a racial change, and that, ethnically, the men of Fife and of Forfar were still Scots, not English. Such an infusion of English blood as our argument allows will not explain the adoption of the English tongue, or of English habits of life; we must look elsewhere for the full explanation. The English victory was, as we shall try to show, a victory not of blood but of civilization, and three main causes helped to bring it about. The marriage of Malcolm Canmore introduced two new influences into Scotland—an English Court and an English Church, and contemporaneously with the changes consequent upon these new institutions came the spread of English commerce, carrying with it the English tongue along the coast, and bringing an infusion of English blood into the towns.^[9] In the reign of David I, the son of Malcolm Canmore and St. Margaret, these purely Saxon influences were succeeded by the Anglo-Norman tendencies of the king's favourites. Grants of land^[10] to English and Norman courtiers account for the occurrence of English and Norman family and place-names. The men who lived in immediate dependence upon a lord, giving him their services and receiving his protection, owing him their homage and living under his sole jurisdiction, took the name of the lord whose men they were.

A more important question arises with regard to the system of land tenure, and the change from clan ownership to feudal possession. How was the tribal system suppressed? An outline of the process by which Scotland became a feudalized country will be found in the Appendix, where we shall also have an opportunity of referring, for purposes of comparison, to the methods by which clan-feeling was destroyed after the last Jacobite insurrection. Here, it must suffice to give a brief summary of the case there presented. It is important to bear in mind that the tribes of 1066 were not the clans of 1746. The clan system in the Highlands underwent considerable development between the days of Malcolm Canmore and those of the Stuarts. Too much stress must not be laid upon the unwillingness of the people to give up tribal ownership, for it is clear from our early records that the rights of joint-occupancy were confined to the immediate kin of the head of the clan. "The limit of the immediate kindred", says Mr. E.W. Robertson,^[11] "extended to the third generation, all who were fourth in

descent from a Senior passing from amongst the joint-proprietary, and receiving, apparently, a final allotment; which seems to have been separated permanently from the remainder of the joint-property by certain ceremonies usual on such occasions." To such holders of individual property the charter offered by David I gave additional security of tenure. We know from the documents entitled "*Quoniam attachiamenta*", printed in the first volume of the *Acts of the Parliament of Scotland*, that the tribal system included large numbers of bondmen, to whom the change to feudalism meant little or nothing. But even when all due allowance has been made for this, the difficulty is not completely solved. There must have been some owners of clan property whom the changes affected in an adverse way, and we should expect to hear of them. We do hear of them, for the reigns of the successors of Malcolm Canmore are largely occupied with revolts in Galloway and in Morayshire. The most notable of these was the rebellion of MacHeth, Mormaor of Moray, about 1134. On its suppression, David I confiscated the earldom of Moray, and granted it, by charters, to his own favourites, and especially to the Anglo-Normans, from Yorkshire and Northumberland, whom he had invited to aid him in dealing with the reactionary forces of Moray; but such grants of land in no way dispossessed the lesser tenants, who simply held of new lords and by new titles. Fordun, who wrote two centuries later, ascribes to David's successor, Malcolm IV, an invasion of Moray, and says that the king scattered the inhabitants throughout the rest of Scotland, and replaced them by "his own peaceful people".^[12] There is no further evidence in support of this statement, and almost the whole of Malcolm's short reign was occupied with the settlement of Galloway. We know that he followed his grandfather's policy of making grants of land in Moray, and this is probably the germ of truth in Fordun's statement. Moray, however, occupied rather an exceptional position. "As the power of the sovereign extended over the west," says Mr. E.W. Robertson, "it was his policy, not to eradicate the old ruling families, but to retain them in their native provinces, rendering them more or less responsible for all that portion of their respective districts which was not placed under the immediate authority of the royal sheriffs or baillies." As this policy was carried out even in Galloway, Argyll, and Ross, where there were occasional rebellions, and was successful in its results, we have no reason for believing that it was abandoned in dealing with the rest of the Lowlands. As, from time to time, instances occurred in which this plan was

unsuccessful, and as other causes for forfeiture arose, the lands were granted to strangers, and by the end of the thirteenth century the Scottish nobility was largely Anglo-Norman. The vestiges of the clan system which remained may be part of the explanation of the place of the great Houses in Scottish History. The unique importance of such families as the Douglasses or the Gordons may thus be a portion of the Celtic heritage of the Lowlands.

If, then, it was not by a displacement of race, but through the subtle influences of religion, feudalism, and commerce that the Scottish Lowlands came to be English in speech and in civilization, if the farmers of Fife and some, at least, of the burghers of Dundee or of Aberdeen were really Scots who had been subjected to English influences, we should expect to find no strong racial feeling in mediæval Scotland. Such racial antagonism as existed would, in this case, be owing to the large admixture of Scandinavian blood in Caithness and in the Isles, rather than to any difference between the true Scots and "the English of the Lowlands". Do we, then, find any racial antagonism between the Highlands and the Lowlands? If Mr. Freeman is right in laying down the general rule that "the true Scots, out of hatred to the 'Saxons' nearest to them, leagued with the 'Saxons' farther off", if Mr. Hill Burton is correct in describing the red Harlaw as a battle between foes who could have no feeling of common nationality, there is nothing to be said in support of the theory we have ventured to suggest. We may fairly expect some signs of ill-will between those who maintained the Celtic civilization and their brethren who had abandoned the ancient customs and the ancient tongue; we may naturally look for attempts to produce a conservative or Celtic reaction, but anything more than this will be fatal to our case. The facts do not seem to us to bear out Mr. Freeman's generalization. When the independence of Scotland is really at stake, we shall find the "true Scots" on the patriotic side. Highlanders and Islesmen fought under the banner of David I at Northallerton; they took their place along with the men of Carrick in the Bruce's own division at Bannockburn, and they bore their part in the stubborn ring that encircled James IV at Flodden. At other times, indeed, we do find the Lords of the Isles involved in treacherous intrigues with the kings of England, but just in the same way as we see the Earls of Douglas engaged in traitorous schemes against the Scottish kings. In both cases alike we are dealing with the revolt of a

powerful vassal against a weak king. Such an incident is sufficiently frequent in the annals of Scotland to render it unnecessary to call in racial considerations to afford an explanation. One of the most notable of these intrigues occurred in the year 1408, when Donald of the Isles, who chanced to be engaged in a personal quarrel about the heritage which he claimed in right of his Lowland relatives, made a treacherous agreement with Henry IV; and the quarrel ended in the battle of Harlaw in 1411. The real importance of Harlaw is that it ended in the defeat of a Scotsman who, like some other Scotsmen in the South, was acting in the English interest; any further significance that it may possess arises from the consideration that it is the last of a series of efforts directed against the predominance, not of the English race, but of Saxon speech and civilization. It was just because Highlanders and Lowlanders did represent a common nationality that the battle was fought, and the blood spilt on the field of Harlaw was not shed in any racial struggle, but in the cause of the real English conquest of Scotland, the conquest of civilization and of speech.

Our argument derives considerable support from the references to the Highlands of Scotland which we find in mediæval literature. Racial distinctions were not always understood in the Middle Ages; but readers of Giraldus Cambrensis are familiar with the strong racial feeling that existed between the English and the Welsh, and between the English and the Irish. If the Lowlanders of Scotland felt towards the Highlanders as Mr. Hill Burton asserts that they did feel, we should expect to find references to the difference between Celts and Saxons. But, on the contrary, we meet with statement after statement to the effect that the Highlanders are only Scotsmen who have maintained the ancient Scottish language and literature, while the Lowlanders have adopted English customs and a foreign tongue. The words "Scots" and "Scotland" are never used to designate the Highlanders as distinct from other inhabitants of Scotland, yet the phrase "Lingua Scotica" means, up to the end of the fifteenth century, the Gaelic tongue.^[13] In the beginning of the sixteenth century John Major speaks of "the wild Scots and Islanders" as using Irish, while the civilized Scots speak English; and Gavin Douglas professed to write in Scots (*i.e.* the Lowland tongue). In the course of the century this became the regular usage. Acts of the Scottish Parliament, directed against Highland marauders, class them with the border thieves. There is no hint in the Register of the Privy Council

or in the Exchequer Rolls, of any racial feeling, and the independence of the Celtic chiefs has been considerably exaggerated. James IV and James V both visited the Isles, and the chief town of Skye takes its name from the visit of the latter. In the beginning of the sixteenth century, it was safe for Hector Boece, the Principal of the newly founded university of Aberdeen, to go in company of the Rector to make a voyage to the Hebrides, and, in the account they have left us of their experiences, we can discover no hint that there existed between Highlanders and Lowlanders much the same difference as separated the English from the Welsh. Neither in Barbour's *Bruce* nor in Blind Harry's *Wallace* is there any such consciousness of difference, although Barbour lived in Aberdeen in the days before Harlaw. John of Fordun, a fellow-townsmen and a contemporary of Barbour, was an ardent admirer of St. Margaret and of David I, and of the Anglo-Norman institutions they introduced, while he possessed an invincible objection to the kilt. We should therefore expect to find in him some consciousness of the racial difference. He writes of the Highlanders with some ill-will, describing them as a "savage and untamed people, rude and independent, given to rapine, ... hostile to the English language and people, and, owing to diversity of speech, even to their own nation^[14]." But it is his custom to write thus of the opponents of the Anglo-Norman civil and ecclesiastical institutions, and he brings all Scotland under the same condemnation when he tells us how David "did his utmost to draw on that rough and boorish people towards quiet and chastened manners".^[15] The reference to "their own nation" shows, too, that Fordun did not understand that the Highlanders were a different people; and when he called them hostile to the English, he was evidently unaware that their custom was "out of hatred to the Saxons nearest them" to league with the English. John Major, writing in the reign of James IV (1489-1513), mentions the differences between Highlander and Lowlander. The wild Scots speak Irish; the civilized Scots use English. "But", he adds, "most of us spoke Irish a short time ago."^[16] His contemporary, Hector Boece, who made the Tour to the Hebrides, says: "Those of us who live on the borders of England have forsaken our own tongue and learned English, being driven thereto by wars and commerce. But the Highlanders remain just as they were in the time of Malcolm Canmore, in whose days we began to adopt English manners."^[17] When Bishop Elphinstone applied, in 1493, for Papal permission to found a university in Old Aberdeen, in proximity to the barbarian Highlanders, he

made no suggestion of any racial difference between the English-speaking population of Aberdeen and their Gaelic-speaking neighbours.^[18] Late in the sixteenth century, John Lesley, the defender of Queen Mary, who had been bishop of Ross, and came of a northern family, wrote in a strain similar to that of Major and Boece. "Foreign nations look on the Gaelic-speaking Scots as wild barbarians because they maintain the customs and the language of their ancestors; but we call them Highlanders."^[19]

Even in connexion with the battle of Harlaw, we find that Scottish historians do not use such terms in speaking of the Highland forces as Mr. Hill Burton would lead us to expect. Of the two contemporary authorities, one, the *Book of Pluscarden*, was probably written by a Highlander, while the continuation of Fordun's *Scoti-chronicon*, in which we have a more detailed account of the battle, was the work of Bower, a Lowlander who shared Fordun's antipathy to Highland customs. The *Liber Pluscardensis* mentions the battle in a very casual manner. It was fought between Donald of the Isles and the Earl of Mar; there was great slaughter: and it so happened that the town of Cupar chanced to be burned in the same year.^[20]

Bower assigns a greater importance to the affair;^[21] he tells us that Donald wished to spoil Aberdeen and then to add to his own possessions all Scotland up to the Tay. It is as if he were writing of the ambition of the House of Douglas. But there is no hint of racial antipathy; the abuse applied to Donald and his followers would suit equally well for the Borderers who shouted the Douglas battle-cry. John Major tells us that it was a civil war fought for the spoil of the famous city of Aberdeen, and he cannot say who won—only the Islanders lost more men than the civilized Scots. For him, its chief interest lay in the ferocity of the contest; rarely, even in struggles with a foreign foe, had the fighting been so keen.^[22] The fierceness with which Harlaw was fought impressed the country so much that, some sixty years later, when Major was a boy, he and his playmates at the Grammar School of Haddington used to amuse themselves by mock fights in which they re-enacted the red Harlaw.

From Major we turn with interest to the Principal of the University and King's College, Hector Boece, who wrote his *History of Scotland*, at Aberdeen, about a century after the battle of Harlaw, and who shows no trace of the strong feeling described by Mr. Hill Burton. He narrates the

origin of the quarrel with much sympathy for the Lord of the Isles, and regrets that he was not satisfied with recovering his own heritage of Ross, but was tempted by the pillage of Aberdeen, and he speaks of the Lowland army as "the Scots on the other side".^[23] His narrative in the *History* is devoid of any racial feeling whatsoever, and in his *Lives of the Bishops of Aberdeen* he omits any mention of Harlaw at all. We have laid stress upon the evidence of Boece because in Aberdeen, if anywhere, the memory of the "Celtic peril" at Harlaw should have survived. Similarly, George Buchanan speaks of Harlaw as a raid for purposes of plunder, made by the islanders upon the mainland.^[24] These illustrations may serve to show how Scottish historians really did look upon the battle of Harlaw, and how little do they share Mr. Burton's horror of the Celts.

When we turn to descriptions of Scotland we find no further proof of the correctness of the orthodox theory. When Giraldus Cambrensis wrote, in the twelfth century, he remarked that the Scots of his time have an affinity of race with the Irish,^[25] and the English historians of the War of Independence speak of the Scots as they do of the Welsh or the Irish, and they know only one type of Scotsman. We have already seen the opinion of John Major, the sixteenth-century Scottish historian and theologian, who had lived much in France, and could write of his native country from an *ab extra* stand-point, that the Highlanders speak Irish and are less respectable than the other Scots; and his opinion was shared by two foreign observers, Pedro de Ayala and Polydore Vergil. The former remarks on the difference of speech, and the latter says that the more civilized Scots have adopted the English tongue. In like manner English writers about the time of the Union of the Crowns write of the Highlanders as Scotsmen who retain their ancient language. Camden, indeed, speaks of the Lowlands as being Anglo-Saxon in origin, but he restricts his remark to the district which had formed part of the kingdom of Northumbria.^[26]

We should, of course, expect to find that the gradually widening breach in manners and language between Highlanders and Lowlanders produced some dislike for the Highland robbers and their Irish tongue, and we do occasionally, though rarely, meet some indication of this. There are not many references to the Highlanders in Scottish literature earlier than the sixteenth century. "Blind Harry" (Book VI, ll. 132-140) represents an

English soldier as using, in addressing Wallace, first a mixture of French and Lowland Scots, and then a mixture of Lowland Scots and Gaelic:

"Dewgar, gud day, bone Senzhour, and gud morn!

* * * * *

Sen ye ar Scottis, zeit salust sall ye be;
Gud deyn, dawch Lard, bach lowch, banzoch a de".

In "The Book of the Howlat", written in the latter half of the fifteenth century, by a certain Richard Holland, who was an adherent of the House of Douglas, there is a similar imitation of Scottish Gaelic, with the same phrase "Banachadee" (the blessing of God). This seemingly innocent phrase seems to have some ironical signification, for we find in the *Auchinleck Chronicle* (anno 1452) that it was used by some Highlanders as a term of abuse towards the Bishop of Argyll. Another example occurs in a coarse "Answer to ane Helandmanis Invective", by Alexander Montgomerie, the court poet of James VI. The Lowland literature of the sixteenth century contains a considerable amount of abuse of the Highland tongue. William Dunbar (1460-1520), in his "Flyting" (an exercise in Invective), reproaches his antagonist, Walter Kennedy, with his Highland origin. Kennedy was a native of Galloway, while Dunbar belonged to the Lothians, where we should expect the strongest appreciation of the differences between Lowlander and Highlander. Dunbar, moreover, had studied (or, at least, resided) at Oxford, and was one of the first Scotsmen to succumb to the attractions of "town". The most suggestive point in the "Flyting" is that a native of the Lothians could still regard a Galwegian as a "beggar Irish bard". For Walter Kennedy spoke and wrote in Lowland Scots; he was, possibly, a graduate of the University of Glasgow, and he could boast of Stuart blood. Ayrshire was as really English as was Aberdeenshire; and, if Dunbar is in earnest, it is a strong confirmation of our theory that he, being "of the Lothians himself", spoke of Kennedy in this way. It would, however, be unwise to lay too much stress on what was really a conventional exercise of a particular style of poetry, now obsolete. Kennedy, in his reply, retorts that he alone is true Scots, and that Dunbar, as a native of Lothian, is but an English thief:

"In Ingland, owle, suld be thyne habitacione,
Homage to Edward Langschankis maid thy kyn".

In an Epitaph on Donald Owre, a son of the Lord of the Isles, who raised a rebellion against James IV in 1503, Dunbar had a great opportunity for an outburst against the Highlanders, of which, however, he did not take advantage, but confined himself to a denunciation of treachery in general. In the "Dance of the Seven Deadly Sins", there is a well-known allusion to the bag-pipes:

"Than cryd Mahoun^[27] for a Healand padyane;
Syne ran a feynd to feche Makfadyane^[28]
Far northwart in a nuke.^[29]
Be he the correnoch had done schout
Erschemen so gadderit him about
In Hell grit rowme they tuke.
Thae tarmegantis with tag and tatter
Full lowde in Ersche begowth to clatter,
And rowp lyk revin and ruke.
The Devill sa devit was with thair yell
That in the depest pot of Hell
He smorit thame with smoke."

Similar allusions will be found in the writings of Montgomerie; but such caricatures of Gaelic and the bagpipes afford but a slender basis for a theory of racial antagonism.

After the Union of the Crowns, the Lowlands of Scotland came to be more and more closely bound to England, while the Highlands remained unaffected by these changes. The Scottish nobility began to find its true place at the English Court; the Scottish adventurer was irresistibly drawn to London; the Scottish Presbyterian found the English Puritan his brother in the Lord; and the Scottish Episcopalian joined forces with the English Cavalier. The history of the seventeenth century prepared the way for the acceptance of the Celtic theory in the beginning of the eighteenth, and when philologists asserted that the Scottish Highlanders were a different race from the Scottish Lowlanders, the suggestion was eagerly adopted. The views of the philologists were confirmed by the experiences of the 'Forty-

five, and they received a literary form in the *Lady of the Lake* and in *Waverley*. In the nineteenth century the theory received further development owing to the fact that it was generally in line with the arguments of the defenders of the Edwardian policy in Scotland; and it cannot be denied that it holds the field to-day, in spite of Mr. Robertson's attack on it in Appendix R of his *Scotland under her Early Kings*.

The writer of the present volume ventures to hope that he has, at all events, done something to make out a case for re-consideration of the subject. The political facts on which rests the argument just stated will be found in the text, and an Appendix contains the more important references to the Highlanders in mediæval Scottish literature, and offers a brief account of the feudalization of Scotland. Our argument amounts only to a modification, and not to a complete reversal of the current theory. No historical problems are more difficult than those which refer to racial distribution, and it is impossible to speak dogmatically on such a subject. That the English blood of the Lothians, and the English exiles after the Norman Conquest, did modify the race over whom Malcolm Canmore ruled, we do not seek to deny. But that it was a modification and not a displacement, a victory of civilization and not of race, we beg to suggest. The English influences were none the less strong for this, and, in the end, they have everywhere prevailed. But the Scotsman may like to think that mediæval Scotland was not divided by an abrupt racial line, and that the political unity and independence which it obtained at so great a cost did correspond to a natural and a national unity which no people can, of itself, create.

FOOTNOTES:

[1] Spanish and Venetian Calendars of State Papers. Cf. especially the reference to the succour afforded by Scotland to France in Spanish Calendar, i. 210.

[2] *Historical Essays*, First Series, p. 71.

[3] *History of the English People*, Book III, c. iv.

[4] *History of Scotland*, vol. i, p. 2. But, as Mr. Lang expressly repudiates any theory of displacement north of the Forth, and does not regard Harlaw in the light of a great racial contest, his position is not really incompatible with that of the present work.

[5] *History of England*, p. 158. Mr. Oman is almost alone in not calling them English in blood.

[6] *History of Scotland*, vol. ii, pp. 393-394.

[7] Instances of the first tendency are Edderton, near Tain, *i.e.* *eadar duin* ("between the hillocks"), and Falkirk, *i.e.* *Eaglais* ("speckled church"), while examples of the second tendency are too numerous to require mention. Examples of ecclesiastical names are Laurencekirk and Kirkcudbright, and the growth of commerce receives the witness of such names as Turnberry, on the coast of Ayr, dating from the thirteenth century, and Burghead on the Moray Firth.

[8] Cf. *Waverley*, c. xliii, and the concluding chapter of *Tales of a Grandfather*.

[9] William of Newburgh states this in a probably exaggerated form when he says:—"Regni Scottici oppida et burgi ab Anglis habitari noscuntur" (Lib. II, c. 34). The population of the towns in the Lothians was, of course, English.

[10] For the real significance of such grants of land, cf. Maitland, *Domesday Book and Beyond*, Essay II.

[11] *Scotland under her Early Kings*, vol. i, p. 239.

[12] *Annalia*, iv.

[13] There is a possible exception in Barbour's *Bruce* (Bk. XVIII, 1. 443)—"Then gat he all the Erischry that war intill his company, of Argyle and the Ilis alswa". It has been generally understood that the "Erischry" here are the Scottish Highlanders; but it is certain that Barbour frequently uses the word to mean Irishmen, and it is perhaps more probable that he does so here also than that he should use the word in this sense only once, and with no parallel instance for more than a century.

[14] *Chronicle*, Book II, c. ix. Cf. App. A.

[15] *Ibid*, Book V, c. x. Cf. App. A.

[16] *History of Greater Britain*, Bk. I, cc. vii, viii, ix. Cf. App. A.

[17] *Scotorum Regni Descriptio*, prefixed to his "History". Cf. App. A.

[18] *Fasti Aberdonenses*, p. 3.

[19] *De Gestis Scotorum*, Lib. I. Cf. App. A. It is interesting to note, as showing how the breach between Highlander and Lowlander widened towards the close of the sixteenth century, that Father James Dalrymple, who translated Lesley's *History*, at Ratisbon, about the beginning of the seventeenth century, wrote: "Bot the rest of the Scottis, quhome we halde as outlawis and wylde peple". Dalrymple was probably a native of Ayrshire.

[20] *Liber Pluscardensis*, X, c. xxii. Cf. App. A.

[21] *Scoti-chronicon*, XV, c. xxi. Cf. App. A.

[22] *Greater Britain*, VI, c. x. Cf. App. A. The keenness of the fighting is no proof of racial bitterness. Cf. the clan fight on the Inches at Perth, a few years before Harlaw.

[23] *Scotorum Historiæ*, Lib. XVI. Cf. App. A.

[24] *Rerum Scotorum Historia*, Lib. X. Cf. App. A.

[25] *Top. Hib.*, Dis. III, cap. xi.

[26] *Britannia*, section *Scoti*.

[27] Mahoun = Mahomet, *i.e.* the Devil.

[28] The Editor of the Scottish Text Society's edition of Dunbar points out that "Macfadyane" is a reference to the traitor of the War of Independence:

"This Makfadzane till Inglismen was suorn;
Eduard gaiff him bath Argill and Lorn".

Blind Harry, VII, ll. 627-8.

[29] "Far northward in a nuke" is a reference to the cave in which Macfadyane was killed by Duncan of Lorne (Bk. VIII, ll. 866-8).

CHAPTER I

RACIAL DISTRIBUTION AND FEUDAL RELATIONS

c. 500-1066 A.D.

Since the beginning of the eighteenth century, it has been customary to speak of the Scottish Highlanders as "Celts". The name is singularly inappropriate. The word "Celt" was used by Cæsar to describe the peoples of Middle Gaul, and it thence became almost synonymous with "Gallic". The ancient inhabitants of Gaul were far from being closely akin to the ancient inhabitants of Scotland, although they belong to the same general family. The latter were Picts and Goidels; the former, Brythons or Britons, of the same race as those who settled in England and were driven by the Saxon conquerors into Wales, as their kinsmen were driven into Brittany by successive conquests of Gaul. In the south of Scotland, Goidels and Brythons must at one period have met; but the result of the meeting was to drive the Goidels into the Highlands, where the Goidelic or Gaelic form of speech still remains different from the Welsh of the descendants of the Britons. Thus the only reason for calling the Scottish Highlanders "Celts" is that Cæsar used that name to describe a race cognate with another race from which the Highlanders ought to be carefully distinguished. In none of our ancient records is the term "Celt" ever employed to describe the Highlanders of Scotland. They never called themselves Celtic; their neighbours never gave them such a name; nor would the term have possessed any significance, as applied to them, before the eighteenth century. In 1703, a French historian and Biblical antiquary, Paul Yves Pezron, wrote a book about the people of Brittany, entitled *Antiquité de la Nation et de la Langue des Celtes autrement appelez Gaulois*. It was translated into English almost immediately, and philologists soon discovered that the language of Cæsar's Celts was related to the Gaelic of the Scottish Highlanders. On this ground progressed the extension of the name, and the Highlanders became identified with, instead of being distinguished from, the Celts of Gaul. The word Celt was used to describe

both the whole family (including Brythons and Goidels), and also the special branch of the family to which Cæsar applied the term. It is as if the word "Teutonic" had been used to describe the whole Aryan Family, and had been specially employed in speaking of the Romance peoples. The word "Celtic" has, however, become a technical term as opposed to "Saxon" or "English", and it is impossible to avoid its use.

Besides the Goidels, or so-called Celts, and the Brythonic Celts or Britons, we find traces in Scotland of an earlier race who are known as "Picts", a few fragments of whose language survive. About the identity of these Picts another controversy has been waged. Some look upon the Pictish tongue as closely allied to Scottish Gaelic; others regard it as Brythonic rather than Goidelic; and Dr. Rhys surmises that it is really an older form of speech, neither Goidelic nor Brythonic, and probably not allied to either, although, in the form in which its fragments have come down to us, it has been deeply affected by Brythonic forms. Be all this as it may, it is important for us to remember that, at the dawn of history, modern Scotland was populated entirely by people now known as "Celts", of whom the Brythonic portion were the later to appear, driving the Goidels into the more mountainous districts. The Picts, whatever their origin, had become practically amalgamated with the "Celts", and the Roman historians do not distinguish between different kinds of northern barbarians.

In the end of the fifth century and the beginning of the sixth, a new settlement of Goidels was made. These were the Scots, who founded the kingdom of Dalriada, corresponding roughly to the Modern Argyllshire. Some fifty years later (c. 547) came the Angles under Ida, and established a dominion along the coast from Tweed to Forth, covering the modern counties of Roxburgh, Berwick, Haddington, and Midlothian. Its outlying fort was the castle of Edinburgh, the name of which, in the form in which we have it, has certainly been influenced by association with the Northumbrian king, Edwin.^[30] This district remained a portion of the kingdom of Northumbria till the tenth century, and it is of this district alone that the word "English" can fairly be used. Even here, however, there must have been a considerable infusion of Celtic blood, and such Celtic place-names as "Dunbar" still remain even in the counties where English place-names predominate. A distinguished Celtic scholar tells us: "In all our ancient literature, the inhabitants of ancient Lothian are known as Saix-Brit,

i.e. Saxo-Britons, because they were a Cymric people, governed by the Saxons of Northumbria".^[31] A further non-Celtic influence was that of the Norse invaders, who attacked the country from the ninth to the eighteenth century, and profoundly modified the racial character of the population on the south and west coasts, in the islands, and along the east coast as far south as the Moray Firth.

Such, then, was the racial distribution of Scotland. Picts, Goidelic Celts, Brythonic Celts, Scots, and Anglo-Saxons were in possession of the country. In the year 844, Kenneth MacAlpine, King of the Scots of Dalriada, united under his rule the ancient kingdoms of the Picts and Scots, including the whole of Scotland from the Pentland Firth to the Forth. In 908, a brother of the King of Scots became King of the Britons of Strathclyde, while Lothian, with the rest of Northumbria, passed under the overlordship of the House of Wessex. We have now arrived at the commencement of the long dispute about the "overlordship". We shall attempt to state the main outlines as clearly as possible.

The foundation of the whole controversy lies in a statement, "in the honest English of the Winchester Chronicle", that, in 924, "was Eadward king chosen to father and to lord of the Scots king and of the Scots, and of Regnold king, and of all the Northumbrians", and also of the Strathclyde, Brythons or Welsh. Mr. E.W. Robertson has argued that no real weight can be given to this statement, for (1) "Regnold king" had died in 921; (2) in 924, Edward the Elder was striving to suppress the Danes south of the Humber, and had no claims to overlordship of any kind over the Northumbrian Danes and English; and (3) the place assigned, Bakewell, in Derbyshire, is improbable, and the recorded building of a fort there is irrelevant. The reassertion of this homage, under Aethelstan, in 926, which occurs in one MS. of the Chronicle, is open to the objection that it describes the King of Scots as giving up idolatry, more than three hundred and fifty years after the conversion of the country; but as the entry under the year 924 is probably in a contemporary hand, considerable weight must be attached to the double statement. In the reign of Edmund the Magnificent, an event occurred which has given fresh occasion for dispute. A famous passage in the "Chronicle" (945 A.D.) tells how Edmund and Malcolm I of Scotland conquered Cumbria, which the English king gave to Malcolm on condition that Malcolm should be his "midwyrtha" or fellow-worker by sea

and land. Mr. Freeman interpreted this as a feudal grant, reading the sense of "fealty" into "midwyrtha", and regarded the district described as "Cumbria" as including the whole of Strathclyde. It is somewhat difficult to justify this position, especially as we have no reason for supposing that Edmund did invade Strathclyde, and since, in point of fact, Strathclyde remained hostile to the kingdom of Scotland long after this date. In 946 the statement of the Chronicle is reasserted in connection with the accession of Eadred, and in somewhat stronger words:—"the Scots gave him oaths, that they would all that he would". Such are the main facts relating to the first two divisions of the threefold claim to overlordship, and their value will probably continue to be estimated in accordance with the personal feelings of the reader. It is scarcely possible to claim that they are in any way decisive. Nor can any further light be gained from the story of what Mr. Lang has happily termed the apocryphal eight which the King of Scots stroked on the Dee in the reign of Edgar. In connection with this "Great Commendation" of 973, the Chronicle mentions only six kings as rowing Edgar at Chester, and it wisely names no names. The number eight, and the mention of Kenneth, King of Scots, as one of the oarsmen, have been transferred to Mr. Freeman's pages from those of the twelfth-century chronicler, Florence of Worcester.

We pass now to the third section of the supremacy argument. The district to which we have referred as Lothian was, unquestionably, largely inhabited by men of English race, and it formed part of the Northumbrian kingdom. Within the first quarter of the eleventh century it had passed under the dominion of the Celtic kings of Scotland. When and how this happened is a mystery. The tract *De Northynbrorum Comitibus* which used to be attributed to Simeon of Durham, asserts that it was ceded by Edgar to Kenneth and that Kenneth did homage, and this story, elaborated by John of Wallingford, has been frequently given as the historical explanation. But Simeon of Durham in his "History"^[32] asserts that Malcolm II, about 1016, wrested Lothian from the Earl of Northumbria, and there is internal evidence that the story of Edgar and Kenneth has been constructed out of the known facts of Malcolm's reign. It is, at all events, certain that the Scottish kings in no sense governed Lothian till after the battle of Carham in 1018, when Malcolm and the Strathclyde monarch Owen, defeated the Earl of Northumbria and added Lothian to his dominions. This conquest

was confirmed by Canute in 1031, and, in connection with the confirmation, the Chronicle again speaks of a doubtful homage which the Scots king "not long held", and, again, the Chronicle, or one version of it, adds an impossible statement—this time about Macbeth, who had not yet appeared on the stage of history. The year 1018 is also marked by the succession of Malcolm's grandson, Duncan, to the throne of his kinsman, Owen of Strathclyde, and on Malcolm's death in 1034 the whole of Scotland was nominally united under Duncan I.^[33] The consolidation of the kingdom was as yet in the future, but from the end of the reign of Malcolm II there was but one Kingdom of Scotland. From this united kingdom we must exclude the islands, which were largely inhabited by Norsemen. Both the Hebrides and the islands of Orkney and Shetland were outside the realm of Scotland.

The names of Macbeth and "the gentle Duncan" suggest the great drama which the genius of Shakespeare constructed from the magic tale of Hector Boece; but our path does not lie by the moor near Forres, nor past Birnam Wood or Dunsinane. Nor does the historian of the relations between England and Scotland have anything to tell about the English expedition to restore Malcolm. All such tales emanate from Florence of Worcester, and we know only that Siward of Northumbria made a fruitless invasion of Scotland, and that Macbeth reigned for three years afterwards.

We have now traced, in outline, the connections between the northern and the southern portions of this island up to the date of the Norman Conquest of England. We have found in Scotland a population composed of Pict, Scot, Goidel, Brython, Dane, and Angle, and we have seen how the country came to be, in some sense, united under a single monarch. It is not possible to speak dogmatically of either of the two great problems of the period—the racial distribution of the country, and the Edwardian claims to overlordship. But it is clear that no portion of Scotland was, in 1066, in any sense English, except the Lothians, of which Angles and Danes had taken possession. From the Lothians, the English influences must have spread slightly into Strathclyde; but the fact that the Celtic Kings of Scotland were strong enough to annex and rule the Lothians as part of a Celtic kingdom implies a limit to English colonization. As to the feudal supremacy, it may be fairly said that there is no portion of the English claim that cannot be reasonably doubted, and whatever force it retains must be of the nature of a

cumulative argument. It must, of course, be recollected that Anglo-Norman chroniclers of the twelfth and thirteenth centuries, like English historians of a later date, regarded themselves as holding a brief for the English claim, while, on the other hand, Scottish writers would be the last to assert, in their own case, a complete absence of bias.

FOOTNOTES:

[30] Johnston: *Place-Names of Scotland*, p. 102.

[31] Rev. Duncan MacGregor in *Scottish Church Society Conferences*. Second Series, Vol. II, p. 23.

[32] *Hist. Dun.* Rolls Series, i. 218.

[33] Duncan was the grandson of Malcolm, and, by Pictish custom, should not have succeeded. The "rightful" heir, an un-named cousin of Malcolm, was murdered, and his sister, Gruoch, who married the Mormaor of Moray, left a son, Lulach, who thus represented a rival line, whose claims may be connected with some of the Highland risings against the descendants of Duncan.

CHAPTER II

SCOTLAND AND THE NORMANS

1066-1286

The Norman Conquest of England could not fail to modify the position of Scotland. Just as the Roman and the Saxon conquests had, in turn, driven the Brythons northwards, so the dispossessed Saxons fled to Scotland from their Norman victors. The result was considerably to alter the ecclesiastical arrangements of the country, and to help its advance towards civilization. The proportion of Anglo-Saxons to the races who are known as Celts must also have been increased; but a complete de-Celticization of Southern Scotland could not, and did not, follow. The failure of William's conquest to include the Northern counties of England left Northumbria an easy prey to the Scottish king, and the marriage of Malcolm III, known as Canmore, to Margaret, the sister of Edgar the Ætheling, gave her husband an excuse for interference in England. We, accordingly, find a long series of raids over the border, of which only five possess any importance. In 1069-70, Malcolm (who had, even in the Confessor's time, been in Northumberland with hostile intent) conducted an invasion in the interests of his brother-in-law. It is probable that this movement was intended to coincide with the arrival of the Danish fleet a few months earlier. But Malcolm was too late; the Danes had gone home, and, in the interval, William had himself superintended the great harrying of the North which made Malcolm's subsequent efforts somewhat unnecessary. The invasion is important only as having provoked the counter-attack of the Conqueror, which led to the renewal of the supremacy controversy. William marched into Scotland and crossed the Forth (the first English king to do so since the unfortunate Egfrith, who fell at Nectansmere in 685). At Abernethy, on the banks of the Tay, Malcolm and William met, and the English Chronicle, as usual, informs us that the King of Scots became the "man" of the English king. But as Malcolm received from William twelve *villae* in England, it is, at least, doubtful whether Malcolm paid homage for these alone or also for Lothian and

Cumbria, or for either of them. There is, at all events, no question about the *villae*. Scottish historians have not failed to point out that the value of the homage, for whatever it was given, is sufficiently indicated by Malcolm's dealings with Gospatric of Northumberland, whom William dismissed as a traitor and rebel. Within about six months of the Abernethy meeting, Malcolm gave Gospatric the earldom of Dunbar, and he became the founder of the great house of March. No further invasion took place till 1079, when Malcolm took advantage of William's Norman difficulties to make another harrying expedition, which afforded the occasion for the building of Newcastle-upon-Tyne. The accession of Rufus and his difficulties with Robert of Normandy led, in 1091, to a somewhat belated attempt by Malcolm to support the claims of the Ætheling by a third invasion, and, in the following year, peace was made. Rufus confirmed to Malcolm the grant of twelve *villae*, and Malcolm in turn gave the English king such homage as he had given to his father. What this vague statement meant, it was reserved for the Bruce to determine, and the Bruces had, as yet, not one foot of Scottish soil. The agreement made in 1092 did not prevent Rufus from completing his father's work by the conquest of Cumberland, to which the Scots had claims. Malcolm's indignation and William's illness led to a famous meeting at Gloucester, whence Malcolm withdrew in great wrath, declining to be treated as a vassal of England. The customary invasion followed, with the result that Malcolm was slain at Alnwick in November, 1093.

But the great effects of the Norman Conquest, as regards Scotland, are not connected with strictly international affairs. They are partially racial, and, in other respects, may be described as personal. It is unquestionable that there was an immigration of the Northumbrian population into Scotland; but the Northumbrian population were Anglo-Danish, and the north of England was not thickly populated. When William the Conqueror ravaged the northern counties with fire and sword, a considerable proportion of the population must have perished. The actual infusion of English blood may thus be exaggerated; but the introduction of English influences cannot be questioned. These influences were mainly due to the personality of Malcolm's second wife, the Saxon princess, Margaret. The queen was a woman of considerable mental power, and possessed a great influence over her strong-headed and hot-tempered husband. She was a devout

churchwoman, and she immediately directed her energies to the task of bringing the Scottish church into closer communion with the Roman. The changes were slight in themselves; all that we know of them is an alteration in the beginning of Lent, the proper observance of Easter and of Sunday, and a question, still disputed, about the tonsure. But, slight as they were, they stood for much. They involved the abandonment of the separate position held by the Scottish Church, and its acceptance of a place as an integral portion of Roman Christianity. The result was to make the Papacy, for the first time, an important factor in Scottish affairs, and to bridge the gulf that divided Scotland from Continental Europe. We soon find Scottish churchmen seeking learning in France, and bringing into Scotland those French influences which were destined seriously to affect the civilization of the country. But, above all, these Roman changes were important just because they were Anglican—introduced by an English queen, carried out by English clerics, emanating from a court which was rapidly becoming English. Malcolm's subjects thenceforth began to adopt English customs and the English tongue, which spread from the court of Queen Margaret. The colony of English refugees represented a higher civilization and a more advanced state of commerce than the Scottish Celts, and the English language, from this cause also, made rapid progress. For about twenty-five years Margaret exercised the most potent influence in her husband's kingdom, and, when she died, her reputation as a saint and her subsequent canonization maintained and supported the traditions she had created. Not only did she have on her side the power of a court and the prestige of courtly etiquette, but, as we have said, she represented a higher civilizing force than that which was opposed to her, and hence the greatness of her victory. It must, however, be remembered that the spread of the English language in Scotland does not necessarily imply the predominance of English blood. It means rather the growth of English commerce. We can trace the adoption of English along the seaboard, and in the towns, while Gaelic still remained the language of the countryman. There is no evidence of any English immigration of sufficient proportions to overwhelm the Gaelic population. Like the victory of the conquered English over the conquering Normans, which was even then making fast progress in England, it is a triumph of a kind that subsequent events have revealed as characteristically Anglo-Saxon, and it called into force the powers of

adaptation and of colonization which have brought into being so great an English-speaking world.

Malcolm's reign ended in defeat and failure; his wife died of grief, and the opportunity presented itself of a Celtic reaction against the Anglicization of the reign of Malcolm III. The throne was seized by Malcolm's brother, Donald Bane. Malcolm's eldest son, Duncan, whose mother, Ingibjorg, had been a Dane, received assistance from Rufus, and drove Donald Bane, after a reign of six months, into the distant North. But after about six months he himself was slain in a small fight with the Mormaer or Earl of the Mearns, and Donald Bane continued to reign for about three years, in conjunction with Edmund, a son of Malcolm and Margaret. But in 1097, Edgar, a younger brother of Edmund, again obtained the help of Rufus and secured the throne. The reign of Edgar is important in two respects. It put an end to the Celtic revival, and reproduced the conditions of the time of Malcolm and Margaret. Henceforward Celtic efforts were impossible except in the Highlands, and the Celts of the Lowlands resigned themselves to the process of Anglicization imposed upon them alike by ecclesiastical, political, and commercial circumstances. It saw also the beginning of an influence which was to prove scarcely less fruitful in results than the Anglo-Saxon triumph of which we have spoken. In November, 1100, Edgar's sister, Matilda, was married to the Norman King of England, Henry I, and two years later, another sister, Mary, was married to Eustace, Count of Boulogne, the son of the future King Stephen. These unions, with a son and a grandson respectively of William the Conqueror, prepared the way for the Norman Conquest of Scotland. Edgar died in January, 1106-7, and his brother and successor, Alexander I, espoused an Anglo-Norman, Sybilla, who is generally supposed to have been a natural daughter of Henry I. On the death of Alexander, in 1124, these Norman influences acquired a new importance under his brother David, the youngest son of Malcolm and Margaret. During the troubles which followed his father's death, David had been educated in England, and after the marriage of Henry I and Matilda, had resided at the court of his brother-in-law, till the death of Edgar, when he became ruler of Cumbria and the southern portion of Lothian. He had married, in 1113-14, the daughter and heiress of Waltheof, Earl of Huntingdon, who was also the widow of a Norman baron. In this way the earldom of Huntingdon became attached to the Scottish throne, and

afforded an occasion for reviving the old question of homage. Moreover, Waltheof of Huntingdon was the son of Siward of Northumbria, and David regarded himself as, on this account, possessing claims over Northumbria.

David, as we have seen, had been brought up under Norman influences, and it is under the son of the Saxon Margaret that the bloodless Norman conquest of Scotland took place. Edgar had recognized the new English nobility and settlers by addressing charters to all in his kingdom, "both Scots and English"; his brother, David, speaks of "French and English, Scots and Galwegians". The charters are, of course, addressed to barons and land-owners, and their evidence refers to the English and Anglo-Norman nobility. The Norman fascination, which had been turned to such good account in England, in Italy, and in the Holy Land, had completely vanquished such English prepossessions as David might have inherited from his mother. Normans, like the Bruces and the Fitzalans (afterwards the Stewarts), came to David's court and received from him grants of land. The number of Norman signatures that attest his charters show that his *entourage* was mainly Norman. He was a very devout Church-man (a "sair sanct for the Crown" as James VI called him), and Norman prelate and Norman abbot helped to increase the total of Norman influence. He transformed Scotland into a feudal country, gave grants of land by feudal tenure, summoned a great council on the feudal principle, and attempted to create such a monarchy as that of which Henry I was laying the foundations. There can be little doubt that this strong Norman influence helped to prepare the Scottish people for the French alliance; but its more immediate effect was to bring about the existence of an anti-national nobility. These great Norman names were to become great in Scottish story; but it required a long process to make their bearers, in any sense, Scotsmen. Most of them had come from England, many of them held lands in England, and none of them could be expected to feel any real difference between themselves and their English fellows.

During the reign of Henry I, Anglo-Norman influences thus worked a great change in Scotland. On Henry's death, David, as the uncle of the Empress Matilda, immediately took up arms on her behalf. Stephen, with the wisdom which characterized the beginning of his reign, came to terms with him at Durham. David did not personally acknowledge the usurper, but his son, Henry, did him homage for Huntingdon and some possessions in the north

(1136). In the following year, David claimed Northumberland for Henry as the representative of Siward, and, on Stephen's refusal, again adopted the cause of the empress. The usual invasion of England followed, and after some months of ravaging, a short truce, and a slight Scottish victory gained at Clitheroe on the Ribble, in June, 1138, the final result was David's great defeat in the battle of the Standard, fought near Northallerton on the 22nd August, 1138.

The battle of the Standard possesses no special interest for students of the art of war. The English army, under William of Albemarle and Walter l'Espec, was drawn up in one line of battle, consisting of knights in coats of mail, archers, and spearmen. The Scots were in four divisions; the van was composed of the Picts of Galloway, the right wing was led by Prince Henry, and the men of Lothian were on the left. Behind fought King David, with the men of Moray. The Galwegians made several unsuccessful attempts upon the English centre. Prince Henry led his horse through the English left wing, but the infantry failed to follow, and the prince lost his advantage by a premature attempt to plunder. The Scottish right made a pusillanimous attempt on the English left, and the reserve began to desert King David, who collected the remnants of his army and retired in safety to a height above Cowton Moor, the scene of the fight. Prince Henry was left surrounded by the enemy, but saved the position by a clever stratagem, and rejoined his father. Mr. Oman remarks that the battle was "of a very abnormal type for the twelfth century, since the side which had the advantage in cavalry made no attempt to use it, while that which was weak in the all-important arm made a creditable attempt to turn it to account by breaking into the hostile flank.... Wild rushes of unmailed clansmen against a steady front of spears and bows never succeeded; in this respect Northallerton is the forerunner of Dupplin, Halidon Hill, Flodden, and Pinkie."^[34] The chief interest, for our purpose, attaching to the battle of the Standard, is connected with the light it throws upon the racial complexion of the country seventy years after the Norman Conquest. Our chief authorities are the Hexham chroniclers and Ailred of Rivaux^[35], English writers of the twelfth century. They speak of David's host as composed of Angli, Picti, and Scoti. The Angli alone contained mailed knights in their ranks, and David's first intention was to send these mail-clad warriors against the English, while the Picts and Scots were to follow with sword

and targe. The Galwegians and the Scots from beyond Forth strongly opposed this arrangement, and assured the king that his unarmed Highlanders would fight better than "these Frenchmen". The king gave the place of honour to the Galwegians, and altered his whole plan of battle. The whole context, and the Earl of Strathern's sneer at "these Frenchmen", would seem to show that the "Angli" are, at all events, clearly distinguished from the Picts of Galloway and the Scots who, like Malise of Strathern, came from beyond the Forth. It is probable that the "Angli" were the men of Lothian; but it must also be recollected both that the term included the Anglo-Norman nobility ("these Frenchman") and the English settlers who had followed Queen Margaret, and that David was fighting in an English quarrel and in the interests of an English queen. The knights who wore coats of mail were entirely Anglo-Norman, and it is against them that the claim of the Highlanders is particularly directed. When Richard of Hexham tells us that Angles, Scots, and Picts fell out by the way, as they returned home, he means to contrast the men of Lothian and the new Anglo-Norman nobility with the Picts of Galloway and the Highlanders from north of the Forth, and this unusual application of the term *Angli*, to a portion of the Scottish army, is an indication, not that the Lowlanders were entirely English, but that there was a strong jealousy between the Scots and the new English nobility. The "Angli" are, above all others, the knights in mail.^[36]

It is not possible to credit David with any real affection for the cause of the empress or with any higher motive than selfish greed, and it can scarcely be claimed that he kept faith with Stephen. Such, however, were the difficulties of the English king, that, in spite of his crushing defeat, David reaped the advantages of victory. Peace was made in April, 1139, by the Treaty of Durham, which secured to Prince Henry the earldom of Northumberland, as an English fief. The Scottish border line, which had successively enclosed Strathclyde and part of Cumberland, and the Lothians, now extended to the Tees. David gave Stephen some assistance in 1139, but on the victory of the Empress Maud^[37] at Lincoln, in 1141, David deserted the captive king, and was present, on the empress's side, at her defeat at Winchester, in 1141. Eight years later he entered into an agreement with the claimant, Henry Fitz-Empress, afterwards Henry II, by which the eldest son of the Scottish king was to retain his English fiefs, and David was to aid Henry against Stephen. An unsuccessful attempt on England

followed—the last of David's numerous invasions. When he died, in 1153, he left Scotland in a position of power with regard to England such as she was never again to occupy. The religious devotion which secured for him a popular canonization (he was never actually canonized) can scarcely justify his conduct to Stephen. But it must be recollected that, throughout his reign, there is comparatively little racial antagonism between the two countries. David interfered in an English civil war, and took part, now on one side, and now on the other. But the whole effect of his life was to bring the nations more closely together through the Norman influences which he encouraged in Scotland. His son and heir held great fiefs in England,^[38] and he granted tracts of land to Anglo-Norman nobles. A Bruce and a Balliol, who each held possessions both in Scotland and in England, tried to prevent the battle of the Standard. Their well-meant efforts proved fruitless; but the fact is notable and significant.

David's eldest son, the gallant Prince Henry, who had led the wild charge at Northallerton, predeceased his father in 1152. He left three sons, of whom the two elder, Malcolm and William, became successively kings of Scotland, while from the youngest, David, Earl of Huntingdon, were descended the claimants at the first Inter-regnum. It was the fate of Scotland, as so often again, to be governed by a child; and a strong king, Henry II, was now on the throne of England. As David I had taken advantage of the weakness of Stephen, so now did Henry II benefit by the youth of Malcolm IV. In spite of the agreement into which Henry had entered with David in 1149, he, in 1157, obtained from Malcolm, then fourteen years of age, the resignation of his claims upon Northumberland, Cumberland, and Westmoreland. In return for this, Malcolm received a confirmation of the earldom of Huntingdon (cf. p. 18). The abandonment of the northern claims seems to have led to a quarrel, for Henry refused to knight the Scots king; but, in the following year, Malcolm accompanied Henry in his expedition to Toulouse, and received his knighthood at Henry's hands. Malcolm's subsequent troubles were connected with rebellions in Moray and in Galloway against the new *régime*, and with the ambition of Somerled, the ruler of Argyll, and of the still independent western islands. The only occasion on which he again entered into relations with England was in 1163, when he met Henry at Woodstock and did homage to his eldest son, who became known as Henry III, although he never actually reigned.

As usual, there is no statement precisely defining the homage; it must not be forgotten that the King of Scots was also Earl of Huntingdon.

Malcolm died in 1165, and was succeeded by his brother, William the Lion, who reigned for nearly fifty years. Henry was now in the midst of his great struggle with the Church, but William made no attempt to use the opportunity. He accepted the earldom of Huntingdon from Henry, and in 1170, when the younger Henry was crowned in Becket's despite, William took the oath of fealty to him as Earl of Huntingdon. But in 1173-74, when the English king's ungrateful son organized a baronial revolt, William decided that his chance had come. His grandfather, David, had made him Earl of Northumberland, and the resignation which Henry had extorted from the weakness of Malcolm IV could scarcely be held as binding upon William. So William marched into England to aid the rebel prince, and, after some skirmishes and the usual ravaging, was surprised while tilting near Alnwick, and made a captive. He was conveyed to the castle of Falaise in Normandy, and there, on December 8th, 1174, as a condition of his release, he signed the Treaty of Falaise, which rendered the kingdom of Scotland, for fifteen years, unquestionably the vassal of England.^[39] The treaty acknowledged Henry II as overlord of Scotland, and expressly stated the dependence of the Scottish Church upon that of England. The relations of the churches had been an additional cause of difficulty since the time of St. Margaret, and the present arrangement was in no sense final. A papal legate held a council in Edinburgh in 1177, and ten years afterwards Pope Clement III took the Scottish Church directly under his own protection.

About the political relationship there could be no such doubt. William stood, theoretically, if not actually, in much the same position to Henry II, as John Baliol afterwards occupied to Edward I. It was not till the accession of Richard I that William recovered his freedom. The castles in the south of Scotland which had been delivered to the English were restored, and the independence of Scotland was admitted, on William's paying Richard the sum of 10,000 marks. This agreement, dated December, 1189, annulled the terms of the Treaty of Falaise, and left the position of William the Lion exactly what it had been at the death of Malcolm IV. He remained liegeman for such lands as the Scottish kings had, in times past, done homage to England. The agreement with Richard I is certainly not incompatible with the Scottish position that the homage, before the Treaty of Falaise, applied

only to the earldom of Huntingdon; but the usual vagueness was maintained, and the arrangement in no way determines the question of the homage paid by the earlier Scottish kings. For a hundred years after this date, the two countries were never at war. William had difficulties with John; in 1209, an outbreak of hostilities seemed almost certain, but the two kings came to terms. The long reign of William came to an end in 1214. His son and successor, Alexander II, joined the French party in England which was defeated at Lincoln in 1216. Alexander made peace with the regent, resigned all claims to Northumberland, and did homage for his English possessions—the most important of which was the earldom of Huntingdon, which had, since 1190, been held by his uncle, David, known as David of Huntingdon. In 1221, he married Joanna, sister of Henry III. Another marriage, negotiated at the same time, was probably of more real importance. Margaret, the eldest daughter of William the Lion, became the wife of the Justiciar of England, Hubert de Burgh. Mr. Hume Brown has pointed out that immediately on the fall of Hubert de Burgh, a dispute arose between Henry and Alexander. The English king desired Alexander to acknowledge the Treaty of Falaise, and this Alexander refused to do. The agreement, which averted an appeal to the sword, was, on the whole, favourable to Scotland. Nothing was said about homage for this kingdom. David of Huntingdon had died in 1119, and Alexander gave up the southern earldom, but received a fief in the northern counties, always coveted of the kings of Scotland. This arrangement is known as the Treaty of York (1236). Some trifling incidents and the second marriage of Alexander, which brought Scotland into closer touch with France (he married Marie, daughter of Enguerand de Coucy), nearly provoked a rupture in 1242, but the domestic troubles of Henry and Alexander alike prevented any breach of the long peace which had subsisted since the capture of William the Lion. In 1249, the Scottish king died, and his son and successor,^[40] Alexander III, was knighted by Henry of England, and, in 1251, married Margaret, Henry's eldest daughter. The relations of Alexander to Henry III and to Edward I will be narrated in the following chapter. Not once throughout his reign was any blood spilt in an English quarrel, and the story of his reign forms no part of our subject. Its most interesting event is the battle of Largs. The Scottish kings had, for some time, been attempting to annex the islands, and, in 1263, Hakon of Norway invaded Scotland as a retributive measure. He was defeated at the battle of Largs, and, in 1266, the Isles were annexed

to the Scottish crown. The fact that this forcible annexation took place, after a struggle, only twenty years before the death of Alexander III, must be borne in mind in connection with the part played by the Islanders in the War of Independence.

FOOTNOTES:

[34] *Art of War in the Middle Ages*, p. 391.

[35] Cf. App. A.

[36] In the final order of battle, David seems to have attempted to bring all classes of his subjects together, and the divisions have a political as well as a military purpose. The right wing contained Anglo-Norman knights and men from Strathclyde and Teviotdale, the left wing men from Lothian and Highlanders from Argyll and the islands, and King David's reserve was composed of more knights along with men from Moray and the region north of the Forth.

[37] The Empress Maud, daughter of Henry I, and niece of David, must be carefully distinguished from Queen Maud, wife of Stephen, and cousin of David, who negotiated the Treaty of Durham.

[38] Ailred credits Bruce with a long speech, in which he tries to convince David that his real friends are not his Scottish subjects, but his Anglo-Norman favourites, and that, accordingly, he should keep on good terms with the English.

[39] William's English earldom of Huntingdon, which had been forfeited, was restored, in 1185, and was conferred by William upon his brother, David, the ancestor of the claimants of 1290.

[40] As Alexander III was the last king of Scotland who ruled before the War of Independence, it is interesting to note that he was crowned at Scone with the ancient ceremonies, and as the representative of the Celtic kings of Scotland. Fordun tells us that the coronation took place on the sacred stone at Scone, on which all Scottish kings had sat, and that a Highlander appeared and read Alexander's Celtic genealogy (*Annals XLVIII*. Cf. App. A). There is no indication that Alexander's subjects, from the Forth to the Moray Firth, were "stout Northumbrian Englishmen", who had, for no good reason, drifted away from their English countrymen, to unite them with whom Edward I waged his Scottish wars.

CHAPTER III

THE SCOTTISH POLICY OF EDWARD I

1286-1296

When Alexander III was killed, on the 19th March, 1285-86, the relations between England and Scotland were such that Edward I was amply justified in looking forward to a permanent union. Since the ill-fated invasion of William the Lion in 1174, there had been no serious warfare between the two countries, and in recent years they had become more and more friendly in their dealings with each other. The late king had married Edward's sister, Margaret, and the child-queen was her grand-daughter; Alexander and Margaret had been present at the English King's coronation in 1274; and, in addition to these personal connections, Scotland had found England a friend in its great final struggle with the Danes. The misfortunes which had overtaken Scotland in the premature deaths^[41] of Alexander and his three children might yet prove a very real blessing, if they prepared the way for the creation of a great island kingdom, which should be at once free and united. The little Margaret, the Maid of Norway, Edward's grand-niece, had been acknowledged heir to the throne of her grandfather, in February, 1283-84, and on his death her succession was admitted. The Great Council met at Scone in April, 1286, and appointed six Guardians of the Kingdom. It was no easy task which was entrusted to them, for the claim of a child and a foreigner could not but be disputed by the barons who stood nearest to the throne. The only rival who attempted to rebel was Robert Bruce of Annandale, who had been promised the succession by Alexander II, and had been disappointed of the fulfilment of his hopes by the birth of the late king in 1241. The deaths of two of the guardians added to the difficulties of the situation, and it was with something like relief that the Scots heard that Eric of Norway, the father of their queen, wished to come to an arrangement with Edward of England, in whose power he lay. The result of Eric's negotiations with Edward was that a conference met at Salisbury in 1289, and was attended, on Edward's invitation, by four Scottish representatives,

who included Robert Bruce and three of the guardians. Such were the troubles of the country that the Scots willingly acceded to Edward's proposals, which gave him an interest in the government of Scotland, and they heard with delight that he contemplated the marriage of their little queen to his son Edward, then two years of age. The English king was assured of the satisfaction which such a marriage would give to Scotland, and the result was that, by the Treaty of Brigham, in 1290, the marriage was duly arranged. Edward had previously obtained the necessary dispensation from the pope.

The eagerness with which the Scots welcomed the proposal of marriage was sufficient evidence that the time had come for carrying out Edward's statesmanlike scheme, but the conditions which were annexed to it should have warned him that there were limits to the Scottish compliance with his wishes. Scotland was not in any way to be absorbed by England, although the crowns would be united in the persons of Edward and Margaret. Edward wisely made no attempt to force Scotland into any more complete union, although he could not but expect that the union of the crowns would prepare the way for a union of the kingdoms. He certainly interpreted in the widest sense the rights given him by the treaty of Brigham, but when the Scots objected to his demand that all Scottish castles should be placed in his power, he gave way without rousing further suspicion or indignation. Hitherto, his policy had been characterized by the great sagacity which he had shown in his conduct of English affairs; it is impossible to refuse either to sympathize with his ideals or to admire the tact he displayed in his negotiations with Scotland. His considerateness extended even to the little Maid of Norway, for whose benefit he victualled, with raisins and other fruit, the "large ship" which he sent to conduct her to England. But the large ship returned to England with a message from King Eric that he would not entrust his daughter to an English vessel. The patient Edward sent it back again, and it was probably in it that the child set sail in September, 1290. Some weeks later, Bishop Fraser of St. Andrews, one of the guardians, and a supporter of the English interest, wrote to Edward that he had heard a "sorrowful rumour" regarding the queen.^[42] The rumour proved to be well-founded; in circumstances which are unknown to us, the poor girl-queen died on her voyage, and her death proved a fatal blow to the work on which Edward had been engaged for the last four years.

Of the thirteen^[43] competitors who put forward claims to the crown, only three need be here mentioned. They were each descended from David, Earl of Huntingdon, brother of William the Lion and grandson of David I. The claimant who, according to the strict rules of primogeniture, had the best right was John Balliol, the grandson of Margaret, the eldest daughter of Earl David. His most formidable opponent was Robert Bruce of Annandale, the son of Earl David's second daughter, Isabella, who based his candidature on the fact that he was the grandson, whereas Balliol was the great-grandson, of the Earl of Huntingdon, through whom both the rivals claimed. The third, John Hastings, was the grandson of David's youngest daughter, Ada. Bishop Fraser, in the letter to which we have already referred, urged Edward I to interfere in favour of John Balliol, who might be employed to further English interests in Scotland. The English king thereupon decided to put forward a definite claim to be lord paramount, and, in virtue of that right, to decide the disputed succession.

Since Richard I had restored his independence to William the Lion, in 1189, the question of the overlordship had lain almost entirely dormant. On John's succession, William had done homage "saving his own right", but whether the homage was for Scotland or solely for his English fiefs was not clear. His successor, Alexander II, aided Louis of France against the infant Henry III, and, after the battle of Lincoln, came to an agreement with the regent, by which he did homage to Henry III, but only for the earldom of Huntingdon and his other possessions in Henry's kingdom. After the fall of Hubert de Burgh, Henry used his influence with Pope Gregory IX, who looked upon the English king as a valuable ally in the great struggle with Frederick II, to persuade the pope to order the King of Scots to acknowledge Henry as his overlord (1234). Alexander refused to comply with the papal injunction, and the matter was not definitely settled. Henry made no attempt to enforce his claim, and merely came to an agreement with Alexander regarding the English possessions of the Scottish king (1236). During the minority of Alexander III, when Henry was, for two years, the real ruler of Scotland (1255-1257), he described himself not as lord paramount, but as chief adviser of the Scottish king. Lastly, when, in 1278, Alexander III took a solemn oath of homage to Edward at Westminster, he, according to the Scottish account of the affair, made an

equally solemn avowal that to God alone was his homage due for the kingdom of Scotland, and Edward had accepted the homage thus rendered.

It is thus clear that Edward regarded the claim of the overlordship as a "trump card" to be played only in special circumstances, and these appeared now to have arisen. The death of the Maid of Norway had deprived him of his right to interfere in the affairs of Scotland, and had destroyed his hopes of a marriage alliance. It seemed to him that all hope of carrying out his Scottish policy had vanished, unless he could take advantage of the helpless condition of the country to obtain a full and final recognition of a claim which had been denied for exactly a hundred years. At first it seemed as if the scheme were to prove satisfactory. The Norman nobles who claimed the throne declared, after some hesitation, their willingness to acknowledge Edward's claim to be lord paramount, and the English king was therefore arbiter of the situation. He now obtained what he had asked in vain in the preceding year—the delivery into English hands of all Scottish strongholds (June, 1291). Edward delayed his decision till the 17th November, 1292, when, after much disputation regarding legal precedents, and many consultations with Scottish commissioners and the English Parliament, he finally adjudged the crown to John Balliol. It cannot be argued that the decision was unfair; but Edward was fortunate in finding that the candidate whose hereditary claim was strongest was also the man most fitted to occupy the position of a vassal king. The new monarch made a full and indisputable acknowledgment of his position as Edward's liege, and the great seal of the kingdom of Scotland was publicly destroyed in token of the position of vassalage in which the country now stood. Of what followed it is difficult to speak with any certainty. Balliol occupied the throne for three and a half years, and was engaged, during the whole of that period, in disputes with his superior. The details need not detain us. Edward claimed to be final judge in all Scottish cases; he summoned Balliol to his court to plead against one of the Scottish king's own vassals, and to receive instructions with regard to the raising of money for Edward's needs. It may fairly be said that Edward's treatment of Balliol does give grounds for the view of Scottish historians that the English king was determined, from the first, to goad his wretched vassal into rebellion in order to give him an opportunity of absorbing the country in his English kingdom. On the other hand, it may be argued that, if this was Edward's aim, he was singularly

unfortunate in the time he chose for forcing a crisis. He was at war with Philip IV of France; Madoc was raising his Welsh rebellion; and Edward's seizure of wool had created much indignation among his own subjects. However this may be, it is certain that Balliol, rankling with a sense of injustice caused by the ignominy which Edward had heaped upon him, and rendered desperate by the complaints of his own subjects, decided, by the advice of the Great Council, to disown his allegiance to the King of England, and to enter upon an alliance with France. It is noteworthy that the policy of the French alliance, as an anti-English movement, which became the watchword of the patriotic party in Scotland, was inaugurated by John Balliol. The Scots commenced hostilities by some predatory incursions into the northern counties of England in 1295-96.

Whether or not Edward was waiting for the opportunity thus given him, he certainly took full advantage of it. Undisturbed by his numerous difficulties, he marched northwards to the town of Berwick-upon-Tweed. Tradition tells that he was exasperated by insults showered upon him by the inhabitants, but the story cannot go far to excuse the massacre which followed the capture of the town. After more than a century of peace, the first important act of war was marked by a brutality which was a fitting prelude to more than two centuries of fierce and bloody fighting. On Edward's policy of "Thorough," as exemplified at Berwick, must rest, to some extent, the responsibility for the unnecessary ferocity which distinguished the Scottish War of Independence. It was, from a military stand-point, a complete and immediate success; politically, it was unquestionably a failure. From Berwick-on-Tweed Edward marched to Dunbar, cheered by the formal announcement of Balliol's renunciation of his allegiance. He easily defeated the Scots at Dunbar, in April, 1296, and continued an undisturbed progress through Scotland, the castles of Dunbar, Roxburgh, Edinburgh, and Stirling falling into his hands. Balliol determined to submit, and, on the 7th July, 1296, he met Edward in the churchyard of Stracathro, near Brechin, and formally resigned his office into the hands of his overlord. Balliol was imprisoned in England for three years, but, in July, 1299, he was permitted to go to his estate of Bailleul, in Normandy, where he survived till April, 1313.

Edward now treated Scotland as a conquered country under his own immediate rule. He continued his progress, by Aberdeen, Banff, and Cullen,

to Elgin, whence, in July, 1296, he marched southwards by Scone, whence he carried off the Stone of Fate, which is now part of the Coronation Chair in Westminster Abbey. He also despoiled Scotland of many of its early records, which might serve to remind his new subjects of their forfeited independence. He did not at once determine the new constitution of the country, but left it under a military occupation, with John de Warrenne, Earl of Surrey, as Governor, Hugh de Cressingham as Treasurer, and William Ormsby as Justiciar. All castles and other strong places were in English hands, and Edward regarded his conquest as assured.

FOOTNOTES:

[41] David, the youngest child of Alexander and Margaret of England, died in June, 1281; Alexander, his older brother, in January, 1283-84; and their sister, Margaret, Queen of Norway, in April, 1283. Neither Alexander nor David left any issue, and the little daughter of the Queen of Norway was only about three years old when her grandfather, Alexander III, was killed.

[42] Nat. MSS. i. 36, No. LXX.

[43] Cf. Table, App. C.

CHAPTER IV

THE WAR OF INDEPENDENCE

1297-1328

Edward I had failed to recognize the difference between the Scottish barons and the Scottish people, to which we have referred in a former chapter. To the Norman baron, who possessed lands in England and Scotland alike, it mattered little that he had now but one liege lord instead of two suzerains. To the people of Scotland, proud and high-spirited, tenacious of their long traditions of independence, resentful of the presence of foreigners, it could not but be hateful to find their country governed by a foreign soldiery. The conduct of Edward's officials, and especially of Cressingham and Ormsby, and the cruelty of the English garrisons, served to strengthen this national feeling, and it only remained for it to find a leader round whom it might rally.^[44] A leader arose in the person of Sir William Wallace, a heroic and somewhat mysterious figure, who first attracted notice in the autumn of 1296, and, by the spring of the following year, had gathered round him a band of guerilla warriors, by whose help he was able to make serious attacks upon the English garrisons of Lanark and Scone (May, 1297). These exploits, of little importance in themselves, sufficed to attract the popular feeling towards Wallace. The domestic difficulties of Edward I rendered the time opportune for a rising, and, despite the failure of an ill-conceived and badly-managed attempt on the part of some of the more patriotic barons, which led to the submission of Irvine, in 1297, the little army which Wallace had collected rapidly grew in courage and in numbers, and its leader laid siege to the castle of Dundee. He had now attained a position of such importance that Surrey and Cressingham found it necessary to take strong measures against him, and they assembled at Stirling, whither Wallace marched to meet them. The battle of Stirling Bridge (or, more strictly, Cambuskenneth Bridge) was fought on September 11th, 1297. Wallace, with his army of knights and spearmen, took up his position on the Abbey Craig, with the Forth between him and the English. Less than a mile

from the Scottish camp was a small bridge over the river, giving access to the Abbey of Cambuskenneth. Surrey rashly attempted to cross this bridge, in the face of the Scots, and Wallace, after a considerable number of the enemy had been allowed to reach the northern bank, ordered an attack. The English failed to keep the bridge, and their force became divided. Surrey was unable to offer any assistance to his vanguard, and they fell an easy prey to the Scots, while the English general, with the remnants of his army, retreated to Berwick.

Stirling was the great military key of the country, commanding all the passes from south to north, and the great defeat which the English had sustained placed the country in the power of Wallace. Along with an Andrew de Moray, of whose identity we know nothing, he undertook the government of the country, corresponded in the name of Scotland with Lübeck and Hamburg, and took the offensive against England in an expedition which ravaged as far south as Hexham. To the great monastery of Hexham he granted protection in the name of "the leaders of the army of Scotland",^[45] although he was not successful in restraining the ferocity of his followers. The document in question is granted in the name of John, King of Scotland, and in a charter dated March 1298,^[46] Wallace describes himself as Guardian of the Kingdom of Scotland, acting for the exiled Balliol. In the following summer, Edward marched into Scotland, and although his forces were in serious difficulties from want of food, he went forward to meet Wallace, who held a strong position at Falkirk. Wallace prepared to meet Edward by drawing up his spearmen in four great "schiltrons" or divisions, with a reserve of cavalry. His flanks were protected by archers, and he had also placed archers between the divisions of spearmen. On the English side, Edward himself commanded the centre, the Earls of Norfolk and Hereford the right, and the Bishop of Durham the left. The Scottish defeat was the result of a combination of archers and cavalry. The first attack of the English horse was completely repulsed by the spearmen. "The front ranks", says Mr. Oman, "knelt with their spear-butts fixed in the earth; the rear ranks levelled their lances over their comrades' heads; the thick-set grove of twelve-foot spears was far too dense for the cavalry to penetrate." But Edward withdrew the cavalry and ordered the archers to send a shower of arrows on the Scots. Wallace's cavalry made no attempt to interfere with the archers; the Scottish bowmen were too few

to retaliate; and, when the English horse next charged, they found many weak points in the schiltrons, and broke up the Scottish host.

As the battle of Stirling had created the power of Wallace, so that of Falkirk completely destroyed it. He almost immediately resigned his office of guardian (mainly, according to tradition, because of the jealousy with which the great barons regarded him), and took refuge in France. Edward was still in the midst of difficulties, both foreign and domestic, and he was unable to reduce the country. The Scots elected new guardians, who regarded themselves as regents, not for Edward but for Balliol. They included John Comyn and Robert Bruce, Earl of Carrick, the future king. The guardians were successful in persuading both Philip IV of France and Pope Boniface VIII to intervene in their favour, but Edward disregarded the papal interference, and though he was too busy to complete his conquest, he sent an army into Scotland in each of the years 1300, 1301, and 1302. Military operations were almost entirely confined to ravaging; but, in February 1302-3, Comyn completely defeated at Rosslyn, near Edinburgh, an English army under Sir John Segrave and Ralph de Manton, whom Edward had ordered to make a foray in Scotland about the beginning of Lent. In the summer of 1303, the English king, roused perhaps by this small success, and able to give his undivided attention to Scotland, conducted an invasion on a larger scale. In September, he traversed the country as far north as Elgin, and, remaining in Scotland during the winter of 1303-4, he set to work in the spring to reduce the castle of Stirling, which still held out against him. When the garrison surrendered, in July, 1304, Scotland lay at Edward's feet. Comyn had already submitted to the English king, and Edward's personal vindictiveness was satisfied by the capture of Wallace by Sir John Menteith, a Scotsman who had been acting in the English interest. Wallace was taken to London, subjected to a mock trial, tortured, and put to death with ignominy. On the 23rd August, 1305, his head was placed on London Bridge, and portions of his body were sent to Scotland. His memory served as an inspiration for the cause of freedom, and it is held in just reverence to the present hour. If it is true that he did not scruple to go beyond what we should regard as the limits of honourable warfare, it must be remembered that he was fighting an enemy who had also disregarded these limits, and much may be forgiven to brave men who are resisting a gratuitous war of conquest. When he died, his work seemed to have failed.

But he had shown his countrymen how to resist Edward, and he had given sufficient evidence of the strength of national feeling, if only it could find a suitable leader. The English had to learn the lesson which, five centuries later, Napoleon had to learn in Spain, and Scotland cannot forget that Wallace was the first to teach it.

It is not less pathetic to turn to Edward's scheme for the government of Scotland. It bears the impress of a mind which was that of a statesman and a lawyer as well as a soldier. It is impossible to deny a tribute of admiration to its wisdom, or to question the probability of its success in other circumstances. Had the course of events been more propitious for Edward's great plan, Scotland and England might have been spared much suffering. But Edward failed to realize that the Scots could no longer regard him as the friend and ally to whose son they had willingly agreed to marry their queen. He was now but a military conqueror in temporary possession of their country, an enemy to be resisted by any means. The new constitution was foredoomed to failure. Carrying out his scheme of 1296, Edward created no vassal-king, but placed Scotland under his own nephew, John of Brittany; he interfered as little as might be with the customs and laws of the country; he placed over it eight justiciars with sheriffs under them. In 1305, Edward's Parliament, which met at London, was attended by Scottish representatives. The incorporation of the country with its larger neighbour was complete, but it involved as little change as was possible in the circumstances.

The Parliament of 1305 was attended by Robert Bruce, Earl of Carrick, who attended not as a representative of Scotland, but as an English lord. Bruce was the grandson of the Robert Bruce of Annandale who had been promised the crown by Alexander II, and who had been one of the claimants of 1290. His grandfather had done homage to Edward, and Bruce himself had been generally on the English side, and had fought against Wallace at Falkirk. When John Balliol had decided to rebel, he had transferred the lands of Annandale from the Bruces to the Comyns, and they had been restored by Edward I after Balliol's submission. From 1299 to 1303, Bruce had been associated with Comyn in the guardianship of the kingdom, but, like Comyn, had submitted to Edward. Nobody in Scotland could now think of a restoration of Balliol, and if there was to be a Scottish king at all, it must obviously be either Comyn or Bruce. The claim of John Comyn the younger

was much stronger than that of his father had been. The elder Comyn had claimed on account of his descent from Donald Bane, the brother and successor of Malcolm Canmore; but the younger Comyn had an additional claim in right of his mother, who was a sister of John Balliol. Between Bruce and Comyn there was a long-standing feud. In 1299, at a meeting of the Great Council of Scotland at Peebles, Comyn had attacked Bruce, and they could only be separated by the use of violence. On the 10th February, 1305-6, Bruce and the Comyn met in the church of the convent of the Minorite Friars at Dumfries. Tradition tells that they met to adjust their conflicting claims, with a view to establishing the independence of the country in the person of one or other of the rivals; that a dispute arose in which they came to blows; and that Bruce, after inflicting a severe wound upon his enemy, left the church. "I doubt I have slain the Red Comyn," he said to his followers. "Doubt?" was the reply of Sir Roger Fitzpatrick, "I'll mak siccar." The actual circumstances of the affair are unknown to us; but Bruce may fairly be relieved of the suspicion of any premeditation, because it is most unlikely that he would have needlessly chosen to offend the Church by committing a murder within sanctuary. The real interest attaching to the circumstances lies in the tradition that the object of the meeting was to organize a resistance against Edward I. Whether this was so or not, there can be no doubt that the result of the conference compelled the Bruce to place himself at the head of the national cause. A Norman baron, born in England, he was by no means the natural leader for whose appearance men looked, and there was a grave chance of his failing to arouse the national sentiment. But the murder of one claimant to the Scottish throne at the hands of the only other possible candidate, who thus placed himself in the position of undoubted heir, could scarcely have been forgiven by Edward I, even if the Comyn had not, for the past two years, proved a faithful servant of the English king. There was no alternative, and, on the 27th March, 1306, Robert, Earl of Carrick and Lord of Annandale, was crowned King of the Scots at Scone. The ancient royal crown of the Scottish kings had been removed by Balliol in 1296, and had fallen into the hands of Edward, but the Countess of Buchan placed on the Bruce's head a hastily made coronet of gold.

It was far from an auspicious beginning. It is difficult to give Bruce credit for much patriotic feeling, although, as we have seen, he had been one of

the guardians who had maintained a semblance of independence. The death of the Comyn had thrown against him the whole influence of the Church; he was excommunicate, and it was no sin to slay him. The powerful family, whose head had been cut off by his hand, had vowed revenge, and its great influence was on the side of the English. It is no small tribute to the force of the sentiment of nationality that the Scots rallied round such a leader, and it must be remembered that, from whatever reason the Bruce adopted the national cause, he proved in every respect worthy of a great occasion, and as time passed, he came to deserve the place he occupies as the hero of the epic of a nation's freedom.

The first blow in the renewed struggle was struck at Methven, near Perth, where, on the 19th June, 1306, the Earl of Pembroke inflicted a defeat upon King Robert. The Lowlands were now almost entirely lost to him; he sent his wife^[47] and child to Kildrummie Castle in Aberdeenshire, whence they fled to the sanctuary of St. Duthac, near Tain. In August, Bruce was defeated at Dalry, by Alexander of Lorn, a relative of the Comyn. In September, Kildrummie Castle fell, and Nigel Bruce, King Robert's brother, fell into the hands of the English and was put to death at Berwick. To complete the tale of catastrophes, the Bruce's wife and daughter, two of his sisters, and other two of his brothers, along with the Countess of Buchan, came into the power of the English king. Edward placed some of the ladies in cages, and put to death Sir Thomas Bruce and Alexander Bruce, Dean of Glasgow (February, 1306-7). Meanwhile, King Robert had found it impossible to maintain himself even in his own lands of Carrick, and he withdrew to the island of Rathlin, where he wintered. Undeterred by this long series of calamities, he took the field in the spring of 1307, and now, for the first time, fortune favoured him. On the 10th May, he defeated the English, under Pembroke, at Loudon Hill, in Ayrshire. He had been joined by his brother Edward and by the Lord James of Douglas (the "Black Douglas"), and the news of his success, slight as it was, helped to increase at once the spirit and the numbers of his followers. His position, however, was one of extreme difficulty; he was still only a king in name, and, in reality, the leader of a guerilla warfare. Edward was marching northwards at the head of a large army, determined to crush his audacious subject. But Fate had decreed that the Hammer of the Scots was never again to set foot in Scotland. At Burgh-on-Sand, near Carlisle, within sight of his

unconquered conquest, the great Edward breathed his last. His death was the turning-point in the struggle. The reign of Edward II in England is a most important factor in the explanation of Bruce's success.

With the death of Edward I the whole aspect of the contest changes. The English were no longer conducting a great struggle for a statesmanlike ideal, as they had been under Edward I—however impossible he himself had made its attainment. There is no longer any sign of conscious purpose either in their method or in their aims. The nature of the warfare at once changed; Edward II, despite his father's wish that his bones should be carried at the head of the army till Scotland was subdued, contented himself with a fruitless march into Ayrshire, and then returned to give his father a magnificent burial in Westminster Abbey. King Robert was left to fight his Scottish enemies without their English allies. These Scottish enemies may be divided into two classes—the Anglo-Norman nobles who had supported the English cause more or less consistently, and the personal enemies of the Bruce, who increased in numbers after the murder of Comyn. Among the great families thus alienated from the cause of Scotland were the Highlanders of Argyll and the Isles, some of the men of Badenach, and certain Galloway clans. But that this opposition was personal, and not racial, is shown by the fact that, from the first, some of these Highlanders were loyal to Bruce, *e.g.* Sir Nigel Campbell and Angus Og. We shall see, further, that after the first jealousies caused by Comyn's death and Bruce's success had passed away, the men of Argyll and the Isles took a more prominent part on the Scottish side. In December, 1307, Bruce routed John Comyn, the successor of his old rival, at Slains, on the Aberdeenshire coast, and in the following May, when Comyn had obtained some slight English assistance, he inflicted a final defeat upon him at Inverurie. The power of the Comyns in their hereditary earldom of Buchan had now been suppressed, and King Robert turned his attention to their allies in the south. In the autumn of 1308, he himself defeated Alexander of Lorn and subdued the district of Argyll, his brother Edward reduced Galloway to subjection, and Douglas, along with Randolph, Earl of Moray, was successful in Tweeddale. Thus, within three years from the death of Comyn, Bruce had broken the power of the great families, whose enmity against him had been aroused by that event. One year later the other great misfortune, which had been brought upon him by the same cause, was removed by an act which is

important evidence at once of the strength of the anti-English feeling in the country, and of the confidence which Bruce had inspired. On the 24th February, 1309-10, the clergy of Scotland met at Dundee and made a solemn declaration^[48] of fealty to King Robert as their lawful king. Scotland was thus united in its struggle for independence under King Robert I.

It now remained to attack the English garrisons who held the castles of Scotland. An invasion conducted by Edward II in 1310 proved fruitless, and the English king returned home to enter on a long quarrel with the Lords Ordainers, and to see his favourite, Gaveston, first exiled and then put to death. While the attention of the rulers of England was thus occupied, Bruce, for the first time since Wallace's inroad of 1297, carried the war into the enemy's country, invading the north of England both in 1311 and in 1312. Meanwhile the strongholds of the country were passing out of the English power. Linlithgow was recovered in 1311; Perth in January, 1312-13; and Roxburgh a month later. The romantic capture of the castle of Edinburgh, by Randolph, Earl of Moray, in March, 1313, is one of the classical stories of Scottish history, and in the summer of the same year, King Robert restored the Scottish rule in the Isle of Man. In November, 1313, only Stirling Castle remained in English hands, and Edward Bruce rashly agreed to raise the siege on condition that the garrison should surrender if they were not relieved by June 24th, 1314. Edward II determined to make a heroic effort to maintain this last vestige of English conquest, and his attempt to do so has become irrevocably associated with the Field of Bannockburn.

In his preparations for the great struggle, which was to determine the fate of Scotland, the Bruce carefully avoided the errors which had led to Wallace's defeat at Falkirk. He selected a position which was covered, on one side by the Bannock Burn and a morass, and, on the other side, by the New Park or Forest. His front was protected by the stream and by the famous series of "pottes", or holes, covered over so as to deceive the English cavalry. The choice of this narrow position not only prevented the possibility of a flank attack, but also forced the great army of Edward II into a small space, where its numbers became a positive disadvantage. King Robert arranged his infantry in four divisions; in front were three schiltrons of pikemen, under Randolph, Edward Bruce, and Sir James Douglas, and Bruce himself

commanded the reserve, which was composed of Highlanders from Argyll and the Islands and of the men of Carrick.^[49] Sir Robert Keith, the Marischal, was in charge of a small body of cavalry, which did good service by driving back, at a critical moment, such archers as made their way through the forest. The English army was in ten divisions, but the limited area in which they had to fight interfered with their arrangement. As at Falkirk, the English cavalry made a gallant but useless charge against the schiltrons, but it was not possible again to save the day by means of archers, for the archers had no room to deploy, and could only make vain efforts to shoot over the heads of the horsemen. Bruce strengthened the Scots with his reserve, and then ensued a general action along the whole line. The van of the English army was now thoroughly demoralized, and their comrades in the rear could not, in these narrow limits, press forward to render any assistance. King Robert's camp-followers, at this juncture, rushed down a hill behind the Scottish army, and they appeared to the English as a fresh force come to assist the enemy. The result was the loss of all sense of discipline: King Edward's magnificent host fled in complete rout and with great slaughter, and the cause of Scottish freedom was won.

The victory of Bannockburn did not end the war, for the English refused to acknowledge the hard-won independence of Scotland, and fighting continued till the year 1327. The Scots not only invaded England, but adopted the policy of fighting England in Ireland, and English reprisals in Scotland were uniformly unsuccessful. Bruce invaded England in 1315; in the same year, his brother Edward landed with a Scottish army at Carrickfergus, in the hope of obtaining a throne for himself. He was crowned King of Ireland in May, 1316, and during that and the following year, King Robert was personally in Ireland, giving assistance to his brother. But, in 1318, Edward Bruce was defeated and slain near Dundalk, and, with his death, this phase of the Bruce's English policy disappears. A few months before the death of Edward Bruce, King Robert had captured the border town of Berwick-on-Tweed, which had been held by the English since 1298. In 1319, Edward II sent an English army to besiege Berwick, and the Scots replied by an invasion of England in the course of which Douglas and Randolph defeated the English at Mitton-on-Swale in Yorkshire. The English were led by the Archbishop of York, and so many clerks were killed that the battle acquired the name of the Chapter of

Mitton. The war lingered on for three years more. The year 1322 saw an invasion of England by King Robert and a counter-invasion of Scotland by Edward II, who destroyed the Abbey of Dryburgh on his return march. This expedition was, as usual, fruitless, for the Scots adopted their usual tactics of leaving the country waste and desolate, and the English army could obtain no food. In October of the same year King Robert made a further inroad into Yorkshire, and won a small victory at Biland Abbey. At last, in March, 1323, a truce was made for thirteen years, but as Edward II persisted in declining to acknowledge the independence of Scotland, it was obvious that peace could not be long maintained.

During the fourteen years which followed his victory of Bannockburn, King Robert was consolidating his kingdom. He had obtained recognition even in the Western Highlands and Islands, and the sentiment of the whole nation had gathered around him. The force of this sentiment is apparent in connection with ecclesiastical difficulties. When Pope John XXII attempted to make peace in 1317 and refused to acknowledge the Bruce as king, the papal envoys were driven from the kingdom. For this the country was placed under the papal ban, and when, in 1324, the pope offered both to acknowledge King Robert and to remove the excommunication, on condition that Berwick should be restored to the English, the Scots refused to comply with his condition. A small rebellion in 1320 had been firmly repressed by king and Parliament. The birth of a son to King Robert, on the 5th March, 1323-24, had given security to the dynasty, and, at the great Parliament which met at Cambuskenneth in 1326, at which Scottish burghs were, for the first time, represented, the clergy, the barons, and the people took an oath of allegiance to the little Prince David, and, should his heirs fail, to Robert, the son of Bruce's daughter, Marjorie, and her husband, Robert, the High Steward of Scotland. The same Parliament put the financial position of the monarch on a satisfactory footing by granting him a tenth penny of all rents.

The deposition and murder of Edward II created a situation of which the King of Scots could not fail to take advantage. The truce was broken in the summer of 1327 by an expedition into England, conducted by Douglas and Randolph, and the hardiness of the Scottish soldiery surprised the English and warned them that it was impossible to prolong the contest in the present condition of the two countries. The regents for the young Edward III

resolved to come to terms with Bruce. The treaty of Northampton, dated 17th March, 1327-28, is still preserved in Edinburgh. It acknowledged the complete independence of Scotland and the royal dignity of King Robert. It promised the restoration of all the symbols of Scottish independence which Edward I had removed, and it arranged a marriage between Prince David, the heir to the Scottish throne, and Joanna, the sister of the young king of England. A marriage ceremony between the two children was solemnized in the following May, but the Stone of Fate was never removed from Westminster, owing, it is said, to the opposition of the abbot. The succession of James VI to the throne of England, nearly three centuries later, was accepted as the fulfilment of the prophecy attached to the Coronation Stone, "Lapis ille grandis":

"Ni fallat fatam, Scoti, quocunque locatum,
Invenient lapidem, regnare tenentur ibidem".

Thus closed the portion of Scottish history which is known as the War of Independence. The condemnation of the policy of Edward I lies simply in its results. He found the two nations at peace and living together in amity; he left them at war and each inspired with a bitter hatred of the other. A policy which aimed at the unification of the island and at preventing Scotland from proving a source of danger to England, and which resulted in a warfare covering, almost continuously, more than two hundred and fifty years, and which, after the lapse of four centuries, left the policy of Scotland a serious difficulty to English ministers, can scarcely receive credit for practical sagacity, however wise its aim. It created for England a relentless and irritating (if not always a dangerous) enemy, invariably ready to take advantage of English difficulties. England had to fight Scotland in France and in Ireland, and Edward IV and Henry VII found the King of Scots the ally of the House of Lancaster, and the protector of Perkin Warbeck. Only the accident of the Reformation rendered it possible to disengage Scotland from its alliance with France, and to bring about a union with England. Till the emergence of the religious question the English party in Scotland consisted of traitors and mercenaries, and their efforts to strengthen English influence form the most discreditable pages of Scottish history.

We are not here dealing with the domestic history of Scotland; but it is impossible to avoid a reference to the subject of the influence of the Scottish victory upon the Scots themselves. It has been argued that Bannockburn was, for Scotland, a national misfortune, and that Bruce's defeat would have been for the real welfare of the country. There are, of course, two stand-points from which we may approach the question. The apologist of Bannockburn might lay stress on the different effects of conquest and a hard-won independence upon the national character, and might fairly point to various national characteristics which have been, perhaps, of some value to civilization, and which could hardly have been fostered in a condition of servitude. On the other hand, there arises a question as to material prosperity. It must be remembered that we are not here discussing the effect of a peaceful and amicable union, such as Edward first proposed, but of a successful war of conquest; and in this connection it is only with thankfulness and gratitude to Wallace and to Bruce that the Scotsman can regard the parallel case of Ireland, which, from a century before the time of Edward I, had been annexed by conquest. The story we have just related goes to create a reasonable probability that the fate of Scotland could not have been different; but, further, leaving all such problems of the "might have been", we may submit that the misery of Scotland in the fourteenth, fifteenth, and sixteenth centuries has been much exaggerated. It is true that the borders were in a condition of perpetual feud, and that minorities and intrigues gravely hampered the progress of the country. But, more especially in the fifteenth and sixteenth centuries, there are not wanting indications of prosperity. The chapter of Scottish history which tells of the growth of burghs has yet to be written. The construction of magnificent cathedrals and religious houses, and the rise of three universities, must not be left out of account. Gifts to the infant universities, the records of which we possess, prove that for humble folk the tenure of property was comparatively secure, and that there was a large amount of comfort among the people. Under James IV, trade and commerce prospered, and the Scottish navy rivalled that of the Tudors. The century in which Scottish prosperity received its most severe blows immediately succeeded the Union of the Crowns. If for three hundred years the civilizing influence of England can scarcely be traced in the history of Scottish progress, that of France was predominant, and Scotland cannot entirely regret the fact. Scotland, from the date of Bannockburn to that of Pinkie, will not suffer

from a comparison with the England which underwent the strain of the long French wars, the civil broils of Lancaster and York, and the oppression of the Tudors. Moreover, there is one further consideration which should not be overlooked. The postponement of an English union till the seventeenth century enabled Scotland to work out its own reformation of religion in the way best adapted to the national needs, and it is difficult to estimate, from the material stand-point alone, the importance of this factor in the national progress. The inspiration and the education which the Scottish Church has given to the Scottish people has found one result in the impulse it has afforded to the growth of material prosperity, and it is not easy to regret that Scotland, at the date of the Reformation, was free to work out its own ecclesiastical destiny.

FOOTNOTES:

[44] There is no indication of any racial division in the attitude of the Scots. Some Highlanders, from various personal causes, are found on the English side at the beginning of the War of Independence; but Mr. Lang has shown that of the descendants of Somerled of Argyll, the ancestor of the Lords of the Isles, only one fought against Wallace, while the Celts of Moray and Badenach and the Highland districts of Aberdeenshire, joined his standard. The behaviour of the Highland chiefs is similar to that of the Lowland barons. If there is any racial feeling at all, it is not Celtic v. Saxon, but Scandinavian v. Scottish, and it is connected with the recent conquest of the Isles. But even of this there is little trace, and the behaviour of the Islesmen is, on the whole, marvellously loyal.

[45] Hemingburgh, ii, 141-147.

[46] *Diplomata Scotiæ*, xliii, xliv.

[47] Bruce had married, 1st, Isabella, daughter of the 10th Earl of Mar, by whom he had a daughter, Marjorie, and 2nd, in 1302, Elizabeth de Burgh, daughter of the Earl of Ulster.

[48] Nat. MSS. ii. 12, No. XVII. The original is preserved in the Register House.

[49] Pinkerton suggests that King Robert adopted this arrangement because he was unable to trust the Highlanders, but this is unlikely, as their leader, Angus Og, had been consistently faithful to him throughout.

CHAPTER V

EDWARD III AND SCOTLAND

1328-1399

Almost immediately after the conclusion of the Treaty of Northampton, the conditions of government in England and Scotland were reversed. Since the death of Edward I, Scotland, under a strong king, had gained by the weakness of the English sovereign; now England, under the energetic rule of Edward III, was to profit by the death of King Robert and by the succession of a minor. On the 7th June, 1329, King Robert died (probably a leper) at his castle of Cardross, on the Clyde, and left the Scottish throne to his five-year-old son, David II. In October of the following year the young Edward III of England threw off the yoke of the Mortimers and established his personal rule, and came almost immediately into conflict with Scotland. The Scottish regent was Randolph or Ranulph, Earl of Moray, the companion of Bruce and the Black Douglas^[50] in the exploits of the great war. Possibly because Edward III had afforded protection to the Pretender, Edward Balliol, the eldest son of John Balliol, and had received him at the English court, Randolph refused to carry out the provisions of the Treaty of Northampton, by which their lands were to be restored to the "Disinherited", *i.e.* to barons whose property in Scotland had been forfeited because they had adopted the English side in the war. A somewhat serious situation was thus created, and Edward, not unnaturally, took advantage of it to disown the Treaty of Northampton, which had been negotiated by the Mortimers during his minority, and which was extremely unpopular in England. He at once recognized Edward Balliol as King of Scotland. The only defence of Randolph's action is the probability that he suspected Edward to be in search of a pretext for refusing to be bound by a treaty made in such circumstances, and if a struggle were to ensue, it was certainly desirable not to increase the power of the English party. Edward proceeded to assist Balliol in an expedition to Scotland, which Mr. Lang describes as "practically an Anglo-Norman filibustering expedition, winked at by the

home government, the filibusters being neither more nor less Scottish than most of our *noblesse*". But before Balliol reached Scotland, the last of the paladins whose names have been immortalized by the Bruce's wars, had disappeared from the scene. Randolph died at Musselburgh in July, 1332, and Scotland was left leaderless. The new regent, the Earl of Mar, was quite incapable of dealing with the situation. When Balliol landed at Kinghorn in August, he made his way unmolested till he reached the river Earn, on his way to Perth. The regent had taken up a position near Dupplin, and was at the head of a force which considerably outnumbered the English. But the Scots had failed to learn the lesson taught by Edward I at Falkirk and by Bruce at Bannockburn. The English succeeded in crossing the Earn by night, and took up a position opposite the hill on which the Scots were encamped. Their archers were so arranged as practically to surround the Scots, who attacked in three divisions, armed with pikes, making no attempt even to harass the thin lines of archers who were extended on each side of the English main body. But the unerring aim of the archers could not fail to render the Scottish attack innocuous. The English stood their ground while line after line of the Scots hurled themselves against them, only to be struck down by the gray-goose shafts. At last the attack degenerated into a complete rout, and the English made good their victory by an indiscriminate massacre.

The immediate result of the battle of Dupplin Moor was that "Edward I of Scotland" entered upon a reign which lasted almost exactly twelve weeks. He was crowned at Scone on September 24th, 1332, and unreservedly acknowledged himself the vassal of the King of England. On the 16th December the new king was at Annan, when an unexpected attack was made upon him by a small force, led, very appropriately, by a son of Randolph, Earl of Moray, and by the young brother of the Lord James of Douglas. Balliol fled to Carlisle, "one leg booted and the other naked", and there awaited the help of his liege lord, who prepared to invade Scotland in May. Meanwhile the patriotic party had failed to take advantage of their opportunity. Sir Andrew Moray of Bothwell, the regent chosen to succeed Mar (who had fallen at Dupplin), had been captured in a skirmish near Roxburgh, either in November, 1332, or in April, 1333, and was succeeded in turn by Sir Archibald Douglas, the hero of the Annan episode, but

destined to be better known as "Tyneman the Unlucky". The young king had been sent for safety to France.

In April, Balliol was again in Scotland, and, in May, Edward III began to besiege Berwick, which had been promised him by Balliol. To defend Berwick, the Scots were forced to fight a pitched battle, which proved a repetition of Dupplin Moor. Berwick had promised to surrender if it were not relieved by a fixed date. When the day arrived, a small body of Scots had succeeded in breaking through the English lines, and Sir Archibald Douglas had led a larger force to ravage Northumberland. On these grounds Berwick held that it had been in fact relieved; but Edward III, who lacked his grandfather's nice appreciation of situations where law and fact are at variance, replied by hanging a hostage. The regent was now forced to risk a battle in the hope of saving Berwick, and he marched southwards, towards Berwick, with a large army. Edward, following the precedent of Dupplin, occupied a favourable position at Halidon Hill, with his front protected by a marsh. He drew up his line in the order that had been so successful at Dupplin, and the same result followed. Each successive body of Scottish pikemen was cut down by a shower of English arrows, before being able even to strike a blow. The regent was slain, and Moray, his companion in arms, fled to France, soon to return to strike another blow for Scotland.

The victory of Halidon added greatly to the popularity of Edward III, for the English looked upon the shame of Bannockburn as avenged, and they sang:

"Scots out of Berwick and out of Aberdeen,
At the Burn of Bannock, ye were far too keen,
Many guiltless men ye slew, as was clearly seen.
King Edward has avenged it now, and fully too, I ween,
He has avenged it well, I ween. Well worth the while!
I bid you all beware of Scots, for they are full of guile.

"'Tis now, thou rough-foot, brogue-shod Scot, that begins thy care,
Then boastful barley-bag-man, thy dwelling is all bare.
False wretch and forsworn, whither wilt thou fare?
Hie thee unto Bruges, seek a better bidding there!

There, wretch, shalt thou stay and wait a weary while;
Thy dwelling in Dundee is lost for ever by thy guile."^[51]

In Scotland, the party of independence was, for the time, helpless. Edward and Balliol divided the country between them. The eight counties of Dumfries, Roxburgh, Berwick, Selkirk, Peebles, Haddington, Edinburgh, and Linlithgow formed the English king's share of the spoil, along with a reassertion of his supremacy over the rest of Scotland. English officers began to rule between the Tweed and the Forth. But the cause of independence was never really hopeless. Balliol and the English party were soon weakened by internal dissensions, and the leaders on the patriotic side were not slow to take advantage of the opportunities thus given them. It was, indeed, necessary to send King David and his wife to France, and they landed at Boulogne in May, 1334. But from France, in return, came the young Earl of Moray, who, along with Robert the High Steward, son of Marjory Bruce, and next heir to the throne, took up the duties of guardians. The arrival of Moray gave fresh life to the cause, but there is little interest in the records of the struggle. The Scots won two small successes at the Borough-Muir of Edinburgh and at Kilblain. But the victory in the skirmish at the Borough-Muir (August, 1335) was more unfortunate than defeat, for it deprived Scotland for some time of the services of the Earl of Moray. He had captured Guy de Namur and conducted him to the borders, and was himself taken prisoner while on his journey northwards. Sir Andrew Moray of Bothwell, who had been made guardian after the battle of Dupplin, and was captured in April, 1333, had now been ransomed, and he was again recognized as regent for David II. So strong was the Scottish party that Balliol had to flee to England for assistance, and, in 1336, Edward III again appeared in Scotland. It was not a very heroic effort for the future victor of Crécy; he marched northwards to Elgin, and, on his way home, burned the town of Aberdeen.

As in the first war the turning-point had proved to be the death of Edward I in the summer of 1307, so now, exactly thirty years later, came another decisive event. In the autumn of 1337, Edward III first styled himself King of France, and the diversion of his energies from the Scots to their French allies rendered possible the final overthrow of Balliol and the Scottish traitors. The circumstances are, however, parallel only to the extent that an intervention of fortune rendered possible the victory of Scottish freedom. In

1337 there was no great leader: the hour had come, but not the man. For the next four years, castle after castle fell into Scottish hands; many of the tales are romantic enough, but they do not lead to a Bannockburn. The only incident of any significance is the defence of the castle of Dunbar. The lord of Dunbar was the Earl of March, whose record throughout the troubles had been far from consistent, but who was now a supporter of King David, largely through the influence of his wife, famous as "Black Agnes", a daughter of the great Randolph, Earl of Moray. From January to June, 1338, Black Agnes held Dunbar against English assaults by sea and land. Many romantic incidents have been related of these long months of siege: the stories of the Countess's use of a dust-cloth to repair the damage done by the English siege-machines to the battlements, and of her prophecy, made when the Earl of Salisbury brought a "sow" or shed fitted to protect soldiers in the manner of the Roman *testudo*,

"Beware, Montagow,
For farrow shall thy sow",

and fulfilled by dropping a huge stone on the machine and thus scattering its occupants, "the litter of English pigs"—these, and her "love-shafts", which, as Salisbury said, "pierce to the heart", are among the most wonderful of historical fairy tales. In the end the English had to raise the siege:

"Came I early, came I late,
I found Agnes at the gate",

they sang as the explanation of their failure.

The defence of Dunbar was followed by the surrender of Perth and the capture of the castles of Stirling and Edinburgh, and in June, 1341, David II returned to Scotland, from which Balliol had fled. David was now seventeen years of age, and he had a great opportunity. Scotland was again free, and was prepared to rally round its national sovereign and the son of the Bruce. The English foe was engaged in a great struggle with France, and difficulties had arisen between the English king and his Parliament. But the unworthy son of the great Robert proved only a source of weakness to his supporters. The only redeeming feature of his policy is that it was, at first, inspired by loyalty to his French protectors. In their interest he made, in the

year of the Crécy campaign, an incursion into England, thus ending a truce made in 1343. After the usual preliminary ravaging, he reached Neville's Cross, near Durham, in the month of October. There he found a force prepared to meet him, led, as at Northallerton and at Mitton, by the clergy of the northern province. The battle was a repetition of Dupplin and Halidon Hill, and a rehearsal of Homildon and Flodden. Scots and English alike were drawn up in the usual three divisions; the left, centre, and right being led respectively, on the one side, by Robert the Steward, King David, and Randolph, and, on the other, by Rokeby, Archbishop Neville, and Henry Percy. The English archers were, as usual, spread out so as to command both the Scottish wings. They were met by no cavalry charge, and they soon threw the Scottish left into confusion, and prepared the way for an assault upon the centre. Randolph was killed; the king was captured, and for eleven years he remained a prisoner in England. Meanwhile Robert the Steward (still the heir to the throne, for David had no children) ruled in Scotland. There is reason for believing that, in 1352, David was allowed to go to Scotland to raise a ransom, and, two years later, an arrangement was actually made for his release. But Robert the Steward and David had always been on bad terms, and, after everything had been formally settled, the Scots decided to remain loyal to their French allies. Hostilities recommenced; in August, 1355, the Scots won a small victory at Nesbit in Berwickshire, and captured the town of Berwick. Early in the following year it was retaken by Edward III, who proclaimed himself the successor of Balliol, and mercilessly ravaged the Lowlands. So great was his destruction of churches and religious houses that the invasion is remembered as the "Burned Candlemas". Peace was made in 1357, and David's ransom was fixed at 100,000 marks. It was a huge sum; but in connection with the efforts made to raise it the burgesses acquired some influence in the government of the country.

David's residence in France and in England had entirely deprived him of sympathy with the national aspirations of his subjects. He loved the gay court of Edward III, and the Anglo-Norman chivalry had deeply affected him. He hated his destined successor, and he had been charmed by Edward's personality. Accordingly we find him, seven years after his return to Scotland, again making a journey to England. It is a striking fact that the son of the victor of Bannockburn should have gone to London to propose to

sell the independence of Scotland to the grandson of Edward I. The difficulty of paying the yearly instalment of his ransom made a limit to his own extravagant expenditure, and he now offered, instead of money, an acknowledgment of either Edward himself or one of his sons as the heir to the Scottish throne. The result of this proposal was to change the policy of Edward. He abandoned the Balliol claim and the traditional Edwardian policy in Scotland, and accepted David's offer. David returned to Scotland and laid before his Parliament the less violent of the two schemes, the proposal that, in the event of his dying childless, Prince Lionel of England should succeed (1364).

"To that said all his lieges, Nay;
Na their consent wald be na way,
That ony Ynglis mannys sone
In[to] that honour suld be done,
Or succede to bere the Crown,
Off Scotland in succession,
Sine of age and off vertew there
The lauchfull airis appearand ware."

So the proposal to substitute an "English-man's son" for the lawful heirs proved utterly futile. Equally vain were any attempts of the Scots to mitigate Edward's rigour in the exaction of the ransom, and Edward reverted to his earlier policy, disowned King David, and prepared for another Scottish campaign to vindicate his right as the successor of Balliol, who had died in 1363. But English energies were once more diverted at a critical moment. The Black Prince had involved himself in serious troubles in Gascony, and England was called upon to defend its conquests in France. In 1369 a truce was made between Scotland and England, to last for fourteen years.

David II died, unregretted, in February, 1370-1371. It was fortunate for Scotland that the miserable seven years which remained to Edward III, and the reign of his unfortunate grandson, were so full of trouble for England. Robert the Steward succeeded his uncle without much difficulty. He was fifty-six years of age, already an old man for those days, eight years the senior of the nephew whom he succeeded. The main lines of the foreign policy of his reign may be briefly indicated; but its chief interest lies in a

series of border raids, the story of which is too intricate and of too slight importance to concern us. The new king began by entering into an agreement with France, of a more definite description than any previous arrangement, and the year 1372 may be taken as marking the formal inauguration of the Franco-Scottish League. The truce with England was continued and was renewed in 1380, three years before the date originally fixed for its expiry. The renewal was necessitated by various acts of hostility which had rendered it, in effect, a dead letter. The English were still in possession of such Scottish strongholds as Roxburgh, Berwick, and Lochmaben, and round these there was continual warfare. The Scots sacked the town of Roxburgh in 1377, but without regaining the castle, and, in 1378, they again obtained possession of Berwick. John of Gaunt, who had forced the government of his nephew to acknowledge his importance as a factor in English politics, was entrusted with the command of an army directed against Scotland. He met the Scottish representatives at Berwick, which was again in English hands, and agreed to confirm the existing truce, which was maintained till 1384, when Scotland was included in the English truce with France. The truce, which was to last for eight months, was negotiated in France in January, 1383-84. In February and March, John of Gaunt conducted a ravaging expedition into Scotland as far as Edinburgh. During the Peasants' Revolt he had taken refuge in Scotland, and the chroniclers tell us that the expedition of 1384 was singularly merciful. Still, it was an act of war, and the Scots may reasonably have expressed surprise, when, in April, the French ambassadors (who had been detained in England since February) arrived in Edinburgh, and announced that Scotland and England had been at peace since January. About the same time there occurred two border forays. Some French knights, with their Scottish hosts, made an incursion into England, and the Percies, along with the Earl of Nottingham, conducted a devastating raid in Scotland, laying waste the Lothians. About the date of both events there is some doubt; probably the Percy invasion was in retaliation for the French affair. But all the time the two countries were nominally at peace, and it was not till May, 1385, that they were technically in a state of war. In that month a French army was sent to aid the Scots, and, under the command of John de Vienne, it took part in an incursion on a somewhat larger scale than the usual raids. The English replied, in the month of August, by an invasion conducted by Richard II in person, at the head of a large army, while the Scots, declining

a battle, wasted Cumberland. Richard sacked Edinburgh and burned the great religious houses of Dryburgh, Melrose, and Newbattle, but was forced to retire without having made any real conquest. The Scots adopted their invariable custom of retreating after laying waste the country, so as to deprive the English of provender; even the impatience of their French allies failed to persuade them to give battle to King Richard's greatly superior forces. From Scotland the English king marched to London, to commence the great struggle which led to the impeachment of Suffolk and the rise of the Lords Appellant. While England was thus occupied, the Scots, under the Earl of Fife, second son of Robert II (better known as the Duke of Albany), and the Earl of Douglas, made great preparations for an invasion. Fife took his men into the western counties and ravaged Cumberland and Westmoreland, but without any important incident. Douglas attacked the country of his old enemies, the Percies, and won the victory of Otterburn or Chevy Chase (August, 1388), the most romantic of all the fights between Scots and English. The Scots lost their leader, but the English were completely defeated, and Harry Hotspur, the son of Northumberland, was made a prisoner. Chevy Chase is the subject of many ballads and legends, and it is indissolubly connected with the story of the House of Douglas:

"Hosts have been known at that dread sound to yield,
And, Douglas dead, his name hath won the field".

From the date of Otterburn to the accession of Henry IV there was peace between Scotland and England, except for the never-ending border skirmishes. Robert II died in 1390, and was succeeded by his eldest son, John, Earl of Carrick, who took the title of Robert III, to avoid the unlucky associations of the name of John, which had acquired an unpleasant notoriety from John Balliol as well as John of England and the unfortunate John of France. Under the new king the treaty with France was confirmed, but continuous truces were made with England till the deposition of Richard II.

FOOTNOTES:

[50] Douglas disappeared from the scene immediately after King Robert's death, taking the Bruce's heart with him on a pilgrimage to Palestine. He was killed in August, 1330, while fighting the Moors in Spain, on his way to the Holy Land.

[\[51\]](#) Minot. Tr. F. York Powell.

CHAPTER VI

SCOTLAND, LANCASTER, AND YORK

1400-1500

When Henry of Lancaster placed himself on his cousin's throne, Scotland was divided between the supporters of the Duke of Rothesay, the eldest son of Robert III and heir to the crown, and the adherents of the Duke of Albany, the brother of the old king. In 1399, Rothesay had just succeeded his uncle as regent, and to him, as to Henry IV, there was a strong temptation to acquire popularity by a spirited foreign policy. The Scots hesitated to acknowledge Henry as King of England, and he, in turn, seems to have resolved upon an invasion of Scotland as the first military event of his reign. He, accordingly, raised the old claim of homage, and marched into Scotland to demand the fealty of Robert III and his barons. As usual, we find in Scotland some malcontents, who form an English party. The leader of the English intrigue on this occasion was the Scots Earl of March, [\[52\]](#) the son of Black Agnes. The Duke of Rothesay had been betrothed to the daughter of March, but had married in February, 1399-1400, a daughter of the Earl of Douglas, the hereditary foe of March. The Dunbar allegiance had always been doubtful, and it was only the influence of the great countess that had brought it to the patriotic side. In August, 1400, Henry marched into Scotland, and besieged for three days the castle of Edinburgh, which was successfully defended by the regent, while Albany was at the head of an army which made no attempt to interfere with Henry's movements. Difficulties in Wales now attracted Henry's attention, and he left Scotland without having accomplished anything, and leaving the record of the mildest and most merciful English invasion of Scotland. The necessities of his position in England may explain his abstaining from spoiling religious houses as his predecessors had done, but the chroniclers tell us that he gave protection to every town that asked it. While Henry was suppressing the Welsh revolt and negotiating with his Parliament, Albany and Rothesay were struggling for the government of Scotland. Rothesay fell

from power in 1401, and in March, 1402, he died at Falkland. Contemporary rumour and subsequent legend attributed his death to Albany, and, as in the case of Richard II, the method of death was supposed to be starvation. Sir Walter has told the story in *The Fair Maid of Perth*. Albany, who had succeeded him as regent or guardian, made no effort to end the meaningless war with England, which went fitfully on. An idiot mendicant, who was represented to be Richard II, gave the Scots their first opportunity of supporting a pretender to the English throne; but the pretence was too ridiculous to be seriously maintained. The French refused to take any part in such a scheme, and the pseudo-Richard served only to annoy Henry IV, and scarcely gave even a semblance of significance to the war, which really degenerated into a series of border raids, one of which was of unusual importance. Henry had no intention of seriously prosecuting the claim of homage, and the continuance of hostilities is really explained by the ill-will between March and Douglas and the old feud between the Douglasses and the Percies. In June, 1402, the Scots were defeated in a skirmish at Nesbit in Berwickshire (the scene of a small Scottish victory in 1355), and, in the following September, occurred the disaster of Homildon Hill. Douglas and Murdoch Stewart, the eldest son of Albany, had collected a large army, and the incursion was raised to the level of something like national importance. They marched into England and took up a strong position on Homildon Hill or Heugh. The Percies, under Northumberland and Hotspur, sent against them a body of English archers, who easily outranged the Scottish bowmen, and threw the army into confusion. Then ensued, as at Dupplin and Halidon Hill, a simple massacre. Murdoch Stewart and Douglas were taken captive with several other Scots lords. Close on Homildon Hill followed the rebellion of the Percies, and the result of the English victory at Homildon was merely to create a new difficulty for Henry IV. The sudden nature of the Percy revolt is indicated by the fact that, when Albany marched to relieve a Scottish stronghold which they were besieging, he found that the enemy had entered into an alliance with the House of Douglas, their ancient foes, and were turning their arms against the English king. Percy and Douglas fought together at Shrewsbury, while the Earl of March was in the ranks of King Henry.

The battle of Shrewsbury was fought in July, 1403. In 1405, Northumberland, a traitor for a second time, took refuge in Scotland, and

received a dubious protection from Albany, who was ready to sell him should any opportunity arise. A truce which had been arranged between Scotland and England expired in April, 1405, and the two countries were technically in a state of war, although there were no great military operations in progress.^[53] In the spring of 1406, Albany sent the heir to the Scottish throne, Prince James, to be educated in France. The vessel in which he sailed was captured by the English off Flamborough Head, and the prince was taken to Henry IV. It has been a tradition in Scotland that James was captured in time of truce, and Wyntoun uses the incident to point a moral with regard to the natural deceitfulness of the English heart:

"It is of English nationn
The common kent conditionn
Of Truth the virtue to forget,
When they do them on winning set,
And of good faith reckless to be
When they do their advantage see."

But it would seem clear that the truce had expired, and that the English king was bound to no treaty of peace. His son's capture was immediately followed by the death of King Robert III, who sank, broken-hearted, into the grave. Albany continued to rule, and maintained a series of truces with England till his death in 1420. The peace was occasionally broken in intervals of truce, and the advantage was usually on the side of the Scots. In 1409 the Earl of March returned to his allegiance and received back his estates. In the same year his son recovered Fast Castle (on St. Abb's Head), and the Scots also recovered Jedburgh.

Albany's attention was now diverted by a danger threatened by the Highland portion of the kingdom. Scotland, south of Forth and Clyde, along with the east coast up to the Moray Firth, had been rapidly affected by the English, French, and Norman influences, of which we have spoken. The inhabitants of the more remote Highland districts and of the western isles had remained uncorrupted by civilization of any kind, and ever since the reign of Malcolm Canmore there had been a militant reaction against the changes of St. Margaret and David I; from the eleventh century to the thirteenth, the Scottish kings were scarcely ever free from Celtic pretenders and Celtic revolts.^[54] The inhabitants of the west coast and of the isles were

very largely of Scandinavian blood, and it was not till 1266 that the western isles definitely passed from Norway to the Scottish crown. The English had employed several opportunities of allying themselves with these discontented Scotsmen; but Mr. Freeman's general statement, already quoted, that "the true Scots, out of hatred to the Saxons nearest them, leagued with the Saxons farther off", is very far from a fair representation of the facts. We have seen that Highlander and Islesman fought under David I at the battle of the Standard, against the "Saxons farther off", and that although the death of Comyn ranged against Bruce the Highlanders of Argyll, numbers of Highlanders were led to victory at Bannockburn by Earl Randolph; and Angus Og and the Islesmen formed part of the Scottish reserves and stood side by side with the men of Carrick, under the leadership of King Robert. During the troubles which followed King Robert's death, the Lords of the Isles had resumed their general attitude of opposition. It was an opposition very natural in the circumstances, the rebellion of a powerful vassal against a weak central government, a reaction against the forces of civilization. But it has never been shown that it was an opposition in any way racial; the complaint that the Lowlands of Scotland have been "rent by the Saxon from the Gael", in the manner of a racial dispossession, belongs to "The Lady of the Lake", not to sober history. All Scotland, indeed, has now, in one sense, been "rent by the Saxon" from the Celt. "Let no one doubt the civilization of these islands," wrote Dr. Johnson, in Skye, "for Portree possesses a jail." The Highlands and islands have been the last portions of Scotland to succumb to Anglo-Saxon influences; that the Lowlands formed an earlier victim does not prove that their racial complexion is different. The incident of which we have now to speak has frequently been quoted as a crowning proof of the difference between the Lowlanders and the "true Scots". Donald of the Isles had a quarrel with the Regent Albany, and, in 1408, entered into an agreement with Henry IV, to whom he owed allegiance. But this very quarrel arose about the earldom of Ross, which was claimed by Donald (himself a grandson of Robert II) in right of his wife, a member of the Leslie family. The "assertor of Celtic nationality" was thus the son of one Lowland woman and the husband of another. When he entered the Scottish mainland his progress was first opposed, not by the Lowlanders, but by the Mackays of Caithness, who were defeated near Dingwall, and the Frasers immediately afterwards received what the historians of the Clan Donald term a "well-merited

chastisement".^[55] Donald pursued his victorious march to Aberdeenshire, tempted by the prospect of plundering Aberdeen. It is interesting to note that, while the battle which has given significance to the record of the dispute was fought for the Lowland town of Aberdeen in a Lowland part of Aberdeenshire, the very name of the town is Celtic, and the district in which the battlefield of Harlaw is situated abounds to this day in Celtic place-names, and, not many miles away, the Gaelic tongue may still be heard at Braemar or at Tomintoul. It was not to a racial battle between Celt and Saxon that the Earl of Mar and the Provost of Aberdeen, aided by the Frasers, marched out to Harlaw, in July, 1411, to meet Donald of the Isles. Had the clansmen been victorious there would certainly have been a Celtic revival; but this was not the danger most dreaded by the victorious Lowlanders. The battle of Harlaw was part of the struggle with England. Donald of the Isles was the enemy of Scottish independence, and his success would mean English supremacy. He had taken up the rôle of "the Disinherited" of the preceding century, just as the Earl of March had done some years before. As time passed, and civilization progressed in the Lowlands while the Highlands maintained their integrity, the feeling of separation grew more strongly marked; and as the inhabitants of the Lowlands intermarried with French and English, the differences of blood became more evident and hostility became unavoidable. But any such abrupt racial division as Mr. Freeman drew between the true Scots and the Scottish Lowlanders stands much in need of proof.

Harlaw was an incident in the never-ending struggle with England. It was succeeded, in 1416 or 1417, by an unfortunate expedition into England, known as the "Foul Raid", and after the Foul Raid came the battle of Baugé. They are all part of one and the same story; although Harlaw might seem an internal complication and Baugé an act of unprovoked aggression, both are really as much part of the English war as is the Foul Raid or the battle of Bannockburn itself. The invasion of France by Henry V reminded the Scots that the English could be attacked on French soil as well as in Northumberland. So the Earl of Buchan, a son of Albany, was sent to France at the head of an army, in answer to the dauphin's request for help. In March, 1421, the Scots defeated the English at Baugé and captured the Earl of Somerset. The death of Henry V, in the following year, and the difficulties of the English government led to the return of the young King of

Scots. The Regent Albany had been succeeded in 1420 by his son, who was weak and incompetent, and Scotland longed for its rightful king. James had been carefully educated in England, and the dreary years of his captivity have enriched Scottish literature by the *King's Quair*:

"More sweet than ever a poet's heart
Gave yet to the English tongue".

Albany seems to have made all due efforts to obtain his nephew's release, and James was in constant communication with Scotland. He had been forced to accompany Henry V to France, and was present at the siege of Melun, where Henry refused quarter to the Scottish allies of France, although England and Scotland were at war. Although constantly complaining of his imprisonment, and of the treatment accorded to him in England, James brought home with him, when his release was negotiated in 1423-24, an English bride, Joan Beaufort, the heroine of the *Quair*. She was the daughter of Somerset, who had been captured at Baugé, and granddaughter of John of Gaunt.

The troublous reign of James I gave him but little time for conducting a foreign war, and the truce which was made when the king was ransomed continued till 1433. It had been suggested that the peace between England and Scotland should extend to the Scottish troops serving in France, but no such clause was inserted in the actual arrangement made, and it is almost certain that James could not have enforced it, even had he wished to do so. He gave, however, no indication of holding lightly the ties that bound Scotland to France, and, in 1428, agreed to the marriage of his infant daughter, Margaret, to the dauphin. Meanwhile, the Scottish levies had been taking their full share in the struggle for freedom in which France was engaged. At Crevant, near Auxerre, in July, 1423, the Earl of Buchan, now Constable of France, was defeated by Salisbury, and, thirteen months later, Buchan and the Earl of Douglas (Duke of Touraine) fell on the disastrous field of Verneuil. At the Battle of the Herrings (an attack upon a French convoy carrying Lenten food to the besiegers of Orleans, made near Janville, in February, 1429), the Scots, under the new constable, Sir John Stewart of Darnley, committed the old error of Halidon and Homildon, and their impetuous valour could not avail against the English archers. They shared in the victory of Pathay, gained by the Maid of Orleans in June 1429,

almost on the anniversary of Bannockburn, and they continued to follow the Maid through the last fateful months of her warfare. So great a part had Scotsmen taken in the French wars that, on the expiry of the truce in 1433, the English offered to restore not only Roxburgh but also Berwick to Scotland. But the French alliance was destined to endure for more than another century, and James declined, thus bringing about a slight resuscitation of warlike operations. The Scots won a victory at Piperden, near Berwick, in 1435 or 1436, and in the summer of 1436, when the Princess Margaret was on her way to France to enter into her ill-starred union with the dauphin, the English made an attempt to take her captive. James replied by an attempt upon Roxburgh, but gave it up without having accomplished anything, and returned to spend his last Christmas at Perth. His twelve years in Scotland had been mainly occupied in attempts to reduce his rebellious subjects, especially in the Highlands, to obedience and loyalty, and he had roused much implacable resentment. So the poet-king was murdered at Perth in February, 1436-37, and his English widow was left to guard her son, the child sovereign, now in his seventh year. It was probably under her influence that a truce of nine years was made.

When the truce came to an end, Scotland was in the interval between the two contests with the House of Douglas which mark the reign of James II. William the sixth earl and his brother David had been entrapped and beheaded by the governors of the boy king in November, 1440, and the new earl, James the Gross, died in 1443, and was succeeded by his son, William, the eighth earl, who remained for some years on good terms with the king. Accordingly, we find that, when the English burned the town of Dunbar in May, 1448, Douglas replied, in the following month, by sacking Alnwick. Retaliation came in the shape of an assault upon Dumfries in the end of June, and the Scots, with Douglas at their head, burned Warkworth in July. The successive attacks on Alnwick and Warkworth roused the Percies to a greater effort, and, in October, they invaded Scotland, and were defeated at the battle of Sark or Lochmaben Stone.^[56] In 1449 the Franco-Scottish League was strengthened by the marriage of King James to Marie of Gueldres.

Now began the second struggle with the Douglasses. Their great possessions, their rights as Wardens of the Marches, their prestige in Scottish history made them dangerous subjects for a weak royal house. Since the death of

the good Lord James their loyalty to the kings of Scotland had not been unbroken, and it is probable that their suppression was inevitable in the interests of a strong central government. But the perfidy with which James, with his own hand, murdered the Earl, in February, 1451-52, can scarcely be condoned, and it has created a sympathy for the Douglasses which their history scarcely merits. James had now entered upon a decisive struggle with the great House, which a temporary reconciliation with the new earl, in 1453, only served to prolong. The quarrel is interesting for our purpose because it largely decided the relations between Scotland and the rival lines of Lancaster and York. In 1455, when the Douglasses were finally suppressed and their estates were forfeited, the Yorkists first took up arms against Henry VI. Douglas had attempted intrigues with the Lord of the Isles, with the Lancastrians, and with the Yorkists in turn, and, about 1454, he came to an understanding with the Duke of York. We find, therefore, during the years which followed the first battle of St. Albans, a revival of active hostilities with England. In 1456, James invaded England and harried Northumberland in the interests of the Lancastrians. During the temporary loss of power by the Duke of York, in 1457, a truce was concluded, but it was broken after the reconciliation of York to Henry VI in 1458, and when the battle of Northampton, in July, 1460, left the Yorkists again triumphant, James marched to attempt the recovery of Roxburgh.^[57] James I, as we have seen, had abandoned the siege of Roxburgh Castle only to go to his death; his son found his death while attempting the same task. On Sunday, the 3rd of August, 1460, he was killed by the bursting of a cannon, the mechanism of which had attracted his attention and made him, according to Pitscottie, "more curious than became him or the majesty of a king".

The year 1461 saw Edward IV placed on his uneasy throne, and a boy of ten years reigning over the turbulent kingdom of Scotland. The Scots had regained Roxburgh a few days after the death of King James, and they followed up their success by the capture of Wark. But a greater triumph was in store. When Margaret of Anjou, after rescuing her husband, Henry VI, at the second battle of St. Albans, in February, 1461, met, in March, the great disaster of Towton, she fled with Henry to Scotland, where she had been received when preparing for the expedition which had proved so unfortunate. On her second visit she brought with her the surrender of Berwick, which, in April, 1461, became once more a Scots town, and was

represented in the Parliament which met in 1469. In gratitude for the gift, the Scots made an invasion of England in June, 1461, and besieged Carlisle, but were forced to retire without having afforded any real assistance to the Lancastrian cause. There was now a division of opinion in Scotland with regard to supporting the Lancastrian cause. The policy of the late king was maintained by the great Bishop Kennedy, who himself entertained Henry VI in the Castle of St. Andrews. But the queen-mother, Mary of Gueldres, was a niece of the Duke of Burgundy, and was, through his influence, persuaded to go over to the side of the White Rose. While Edward IV remained on unfriendly terms with Louis XI of France, Kennedy had not much difficulty in resisting the Yorkist proclivities of the queen-mother, and in keeping Scotland loyal to the Red Rose. They were able to render their allies but little assistance, and their opposition gave the astute Edward IV an opportunity of intrigue. John of the Isles took advantage of the minority of James III to break the peace into which he had been brought by James II, and the exiled Earl of Douglas concluded an agreement between the Lord of the Isles and the King of England. But when, in October, 1463, Edward IV came to terms with Louis XI, Bishop Kennedy was willing to join Mary of Gueldres in deserting the doomed House of Lancaster. Mary did not live to see the success of her policy; but peace was made for a period of fifteen years, and Scotland had no share in the brief Lancastrian restoration of 1470. The threatening relations between England and France nearly led to a rupture in 1473, but the result was only to strengthen the agreement, and it was arranged that the infant heir of James III should marry the Princess Cecilia, Edward's daughter. In 1479-80, when the French were again alarmed by the diplomacy of Edward IV, we find an outbreak of hostilities, the precise cause of which is somewhat obscure. It is certain that Edward made no effort to preserve the peace, and he sent, in 1481, a fleet to attack the towns on the Firth of Forth, in revenge for a border raid for which James had attempted to apologize. Edward was unable to secure the services of his old ally, the Lord of the Isles, who had been again brought into subjection in the interval of peace, and who now joined in the national preparations for war with England. But there was still a rebel Earl of Douglas with whom to plot, and Edward was fortunate in obtaining the co-operation of the Duke of Albany, brother of James III, who had been exiled in 1479. Albany and Edward made a treaty in 1482, in which the former styled himself "Alexander, King of Scotland", and promised to do homage

to Edward when he should obtain his throne. The only important events of the war are the recapture of Berwick, in August, 1482, and an invasion of Scotland by the Duke of Gloucester. Berwick was never again in Scottish hands. Albany was unable to carry out the revolution contemplated in his treaty with Edward IV; but he was reinstated, and became for three months Lieutenant-General of the Realm of Scotland. In March, 1482-83, he resigned this office, and, after a brief interval, in which he was reconciled to King James, was again forfeited in July, 1483. Edward IV had died on the 9th of April, and Albany was unable to obtain any English aid. Along with the Earl of Douglas he made an attempt upon Scotland, but was defeated at Lochmaben in July, 1484. Thereafter, both he and his ally pass out of the story: Douglas died a prisoner in 1488; Albany escaped to France, where he was killed at a tournament in 1485; he left a son who was to take a great part in Scottish politics during the minority of James V.

Richard III found sufficient difficulty in governing England to prevent his desiring to continue unfriendly relations with Scotland, and he made, on his accession, something like a cordial peace with James III. It was arranged that James, now a widower,^[58] should marry Elizabeth Woodville, widow of Edward IV, and that his heir, Prince James, should marry a daughter of the Duke of Suffolk. James did not afford Richard any assistance in 1485, and after the battle of Bosworth he remained on friendly terms with Henry VII. A controversy about Berwick prevented the completion of negotiations for marriage alliances, but friendly relations were maintained till the revolution of 1488, in which James III lost his life. Both James and his rebellious nobles, who had proclaimed his son as king, attempted to obtain English assistance, but it was given to neither side.

The new king, James IV, was young, brave, and ambitious. He was specially interested in the navy, and in the commercial prosperity of Scotland. It was scarcely possible that, in this way, difficulties with England could be avoided, for Henry VII was engaged in developing English trade, and encouraged English shipping. Accordingly, we find that, while the two countries were still nominally at peace, they were engaged in a naval warfare. Scotland was fortunate in the possession of some great sea-captains, notable among whom were Sir Andrew Wood and Sir Andrew Barton.^[59] In 1489, Sir Andrew Wood, with two ships, the *Yellow Carvel* and the *Flower*, inflicted a severe defeat upon five English vessels which

were engaged in a piratical expedition in the Firth of Forth. Henry VII, in great wrath, sent Stephen Bull, with "three great ships, well-manned, well-victualled, and well-artilleried", to revenge the honour of the English navy, and after a severe fight Bull and his vessels were captured by the Scots. There was thus considerable irritation on both sides, and while the veteran intriguer, the Duchess of Burgundy, attempted to obtain James's assistance for the pretender, Perkin Warbeck, the pseudo-Duke of York, Henry entered into a compact with Archibald, Earl of Angus, well-known to readers of *Marmion*. The treachery of Angus led, however, to no immediate result, and peace was maintained till 1495, although the French alliance was confirmed in 1491. The rupture of 1495 was due solely to the desire of James to aid Maximilian in the attempt to dethrone Henry VII in the interests of Warbeck. Henry, on his part, made every effort to retain the friendship of the Scottish king, and offered a marriage alliance with his eldest daughter, Margaret. James, however, was determined to strike a blow for his protégé, and in November, 1495, Warbeck landed in Scotland, was received with great honour, assigned a pension, and wedded to the Lady Katharine Gordon, daughter of the greatest northern lord, the Earl of Huntly. In the following April, Ferdinand and Isabella, who were desirous of separating Scotland from France, tried to dissuade James from supporting Warbeck, and offered him a daughter in marriage, although the only available Spanish princess was already promised to Prince Arthur of England. But all efforts to avoid war were of no avail, and in September, 1496, James marched into England, ravaged the English borders, and returned to Scotland. The English replied by small border forays, but James's enthusiasm for his guest rapidly cooled; in July, 1497, Warbeck left Scotland. James did not immediately make peace, holding himself possibly in readiness in the event of Warbeck's attaining any success. In August he again invaded England, and attacked Norham Castle, provoking a counter-invasion of Scotland by the Earl of Surrey. In September, Warbeck was captured, and, in the same month, a truce was arranged between Scotland and England, by the Peace of Aytoun. There was, in the following year, an unimportant border skirmish; but with the Peace of Aytoun ended this attempt of the Scots to support a pretender to the English crown. The first Scottish interference in the troubles of Lancaster and York had been on behalf of the House of Lancaster; the story is ended with this Yorkist intrigue. When next there

arose circumstances in any way similar, the sympathies of the Scots were enlisted on the side of their own Royal House of Stuart.

FOOTNOTES:

[52] George Dunbar, Earl of March, must be carefully distinguished from the child, Edmund Mortimer, the English Earl of March, grandson of Lionel of Clarence, and direct heir to the English throne after Richard II.

[53] In the summer of 1405 the English ravaged Arran, and the Scots sacked Berwick. There were also some naval skirmishes later in the year.

[54] Cf. App. B.

[55] *The Clan Donald*, vol. i, p. 154. The Mackenzies were also against the Celtic hero.

[56] There is great doubt as to whether these events belong to the year 1448 or 1449. Mr. Lang, with considerable probability, assigns them to 1449.

[57] James's army contained a considerable proportion of Islesmen, who, as at Northallerton and at Bannockburn, fought *against* "the Saxons farther off".

[58] He had married, in 1469, Margaret, daughter of Christian I of Denmark. The islands of Orkney and Shetland were assigned as payment for her dowry, and so passed, a few years later, under the Scottish Crown.

[59] Cf. *The Days of James IV*, by Mr. G. Gregory Smith, in the series of "Scottish History from Contemporary Writers".

CHAPTER VII

THE BEGINNINGS OF THE ENGLISH ALLIANCE

1500-1542

When, in 1501, negotiations were in progress for the marriage of James IV to Margaret Tudor, Polydore Virgil tells us that the English Council raised the objection that Margaret or her descendants might succeed to the throne of England. "If it should fall out so," said Henry, "the realm of England will suffer no evil, since it will not be the addition of England to Scotland, but of Scotland to England." It is obvious that the English had every reason for desiring to stop the irritating opposition of the Scots, which, while it never seriously endangered the realm, was frequently a cause of annoyance, and which hampered the efforts of English diplomacy. The Scots, on the other hand, were separated from the English by the memories of two centuries of constant warfare, and they were bound by many ties to the enemies of England. The only King of Scots, since Alexander III, who had been on friendly terms with England, was James III, and his enemies had used the fact as a weapon against him. His successor had already twice refused the proffered English alliance, and when he at length accepted Henry's persistent proposal and the thrice-offered English princess, it was only after much hesitation and upon certain strict conditions. No Englishmen were to enter Scotland "without letters commendatory of their own sovereign lord or safe conduct of his Warden of the Marches". The marriage, though not especially flattering to the dignity of a monarch who had been encouraged to hope for the hand of a daughter of Spain, was notable as involving a recognition (the first since the Treaty of Northampton) of the King of Scots as an independent sovereign. On the 8th of August, 1503, Margaret was married to James in the chapel of Holyrood. She was received with great rejoicing; the poet Dunbar, whom a recent visit to London had convinced that the English capital, with its "beryl streamis pleasant ... where many a swan doth swim with wingis fair", was "the flower of cities all", wrote the well-known poem on the Union of the Thistle and the Rose to welcome this

second English Margaret to Scotland. But the time was not yet ripe for any real union of the Thistle and the Rose. Peace continued till the death of Henry VII; but during these years England was never at war with France. James threatened war with England in April, 1505, in the interests of the Duke of Gueldres; in 1508, he declined to give an understanding that he would not renew the old league with France, and he refused to be drawn, by Pope Julius II, into an attitude of opposition to that country. Even before the death of Henry VII, in 1509, there were troubles with regard to the borders, and it was evident that the "perpetual peace" arranged by the treaty of marriage was a sheer impossibility.

Henry VIII succeeded to the throne of England in April, 1509; three years and five months later, in September, 1513, was fought the battle of Flodden. The causes may soon be told. They fall under three heads. James and Henry were alike headstrong and impetuous, and they were alike ambitious of playing a considerable part in European affairs. They were, moreover, brothers-in-law, and, in the division of the inheritance of Henry VII, the King of England had, with characteristic Tudor avarice, retained jewels and other property which had been left to his sister, the Queen of Scots. In the second place, the ancient jealousies were again roused by disputes on the borders, and by naval warfare. James had long been engaged in "the building of a fleet for the protection of our shores"; in 1511, he had built the *Great Michael*, for which, it was said, the woods of Fife had been wasted. The Scottish fleet was frequently involved in quarrels with Henry's ships, and in August, 1511, the English took two Scottish vessels, which they alleged to be pirates, and Andrew Barton was slain in the fighting. James demanded redress, but, says Hall, "the King of England wrote with brotherly salutations to the King of Scots of the robberies and evil doings of Andrew Barton; and that it became not one prince to lay a breach of a league to another prince, in doing justice upon a pirate or thief".^[60] These personal irritations and petty troubles might have proved harmless, and, had no European complications intervened, it is possible that there might have "from Fate's dark book a leaf been torn", the leaf which tells of Flodden Field. But, in 1511, Julius II formed the Holy League against France, and by the end of the year it included Spain, Austria, and England. The formation of a united Europe against the ancient ally of Scotland thoroughly alarmed James. It was true that, at the moment, England was willing to be

friendly; but, should France be subdued, whither might Scotland look for help in the future? James used every effort to prevent the League from carrying out their project; he attempted to form a coalition of Denmark, France, and Scotland, and wrote to his uncle, the King of Denmark, urging him to declare for the Most Christian King. He wrote Henry offering to "pardon all the damage done to us and our kingdom, the capture of our merchant ships, the slaughter and imprisonment of our subjects", if only Henry would "maintain the universal concord of the Church". He made a vigorous appeal to the pope himself, beseeching him to keep the peace. His efforts were, of course, futile, nor was France in such extreme danger as he supposed. But the chance of proving himself the saviour of France appealed strongly to him, and, when there came to him, in the spring of 1513, a message from the Queen of France, couched in the bygone language of chivalry, and urging him, as her knight, to break a lance for her on English soil, James could no longer hesitate. Henry persevered in his warlike measures against France, and James, after one more despairing effort to act as mediator, began his preparations for an invasion of England. His wisest counsellors were strongly opposed to war: most prominent among them was his father's faithful servant, Bishop Elphinstone, the founder of the University of Aberdeen. Elphinstone was a saint, a scholar, and a statesman, and he was probably the only man in Scotland who could influence the king. During the discussion of the French alliance he urged delay, but was overborne by the impetuous patriotism of the younger nobles, whose voice was, as ever, for war. So, war it was. Bitter letters of defiance passed between the two kings, and, in August, 1513, James led his army over the border. Lowlanders, Highlanders, and Islesmen had alike rallied round his banner; once again we find the "true Scots leagued", not "with", but against "the Saxons farther off". The Scots took Norham Castle and some neighbouring strongholds to prevent their affording protection to the English, and then occupied a strong position on Flodden Edge. The Earl of Surrey, who was in command of the English army, challenged James to a pitched battle, and James accepted the challenge. Meanwhile, Surrey completely outmanœuvred the King of Scots, crossing the Till and marching northwards so as to get between James and Scotland. James seems to have been quite unsuspecting of this movement, which was protected by some rising ground. The Scots had failed to learn the necessity of scouting. Surrey, when he had gained his end, recrossed the Till, and

made a march directly southwards upon Flodden. James cannot have been afraid of losing his communications, for his force was well-provisioned, and Surrey was bound by the terms of his own challenge to fight immediately; but he decided to abandon Flodden Edge for the lower ridge of Brankston, and in a cloud of smoke, which not only rendered the Scots invisible to the enemy but likewise concealed the enemy from the Scots, King James and his army rushed upon the English. The battle began with artillery, the superiority of the English in which forced the Scots to come to close quarters. Then

"Far on the left, unseen the while,
Stanley broke Lennox and Argyle";

on the English right, Sir Edmund Howard fell back before the charge of the Scottish borderers, who, forthwith, devoted themselves to plunder. The centre was fiercely contested; the Lord High Admiral of England, a son of Surrey, defeated Crawford and Montrose, and attacked the division with which James himself was encountering Surrey, while the archers on the left of the English centre rendered unavailing the brave charge of the Highlanders. With artillery and with archery the English had drawn the Scottish attack, and the battle of Flodden was but a variation on every fight since Dupplin Moor. Finally the Scots formed themselves into a ring of spearmen, and the English, with their arrows and their long bills, kept up a continuous attack. The story has been told once for all:

"But yet, though thick the shafts as snow,
Though charging knights as whirlwinds go,
Though bill-men ply the ghastly blow,
Unbroken was the ring;
The stubborn spearmen still made good
Their dark impenetrable wood,
Each stepping where their comrade stood
The instant that he fell.
No thought was there of dastard flight;
Link'd in the serried phalanx tight
Groom fought like noble, squire like knight,
As fearlessly and well;

Till utter darkness closed her wing
O'er their thin host and wounded king."

No defeat had ever less in it of disgrace. The victory of the English was hard won, and the valour displayed on the stricken field saved Scotland from any further results of Surrey's triumph. The results were severe enough. Although the Scots could boast of their dead king that

"No one failed him; he is keeping
Royal state and semblance still",

they had lost the best and bravest of the land. Scarcely a family record but tells of an ancestor slain at Flodden, and many laments have come down to us for "The Flowers of the Forest". But, although the disaster was overwhelming, and the loss seemed irreparable at the time, though the defeat at Flodden was not less decisive than the victory of Bannockburn, the name of Flodden, notwithstanding all this, recalls but an incident in our annals. Bannockburn is an incident in English history, but it is the great turning-point in the story of Scotland; the historian cannot regard Flodden as more than incidental to both.

When James V succeeded his father he was but one year old, and his guardian, in accordance with the desire of James IV, was the queen-mother, Margaret Tudor. Her subsequent career is one long tale of intrigue, too elaborate and intricate to require a full recapitulation here. The war lingered on, in a desultory fashion, till May, 1515. Lord Dacre ravaged the borders, and the Scots replied by a raid into England; but there is nothing of any interest to relate. From the accession of Francis I, in 1515, the condition of politics in Scotland, as of all Europe, was influenced and at times dominated by his rivalry with the Emperor. The unwonted desire of France for peace and alliance with England placed the Scots in a position of considerable difficulty, and the difficulty was accentuated by the more than usually distracted state of the country during the minority of the king. In August, 1514, Margaret (who had in the preceding April given birth to a posthumous child to James IV) was married to the Earl of Angus, the grandson of Archibald Bell-the-Cat. It was felt that the sister of Henry VIII and the wife of a Douglas could scarcely prove a suitable guardian of a Stewart throne, and the Scots invited the Duke of Albany, son of the traitor

duke, and cousin of the late king, to come over to Scotland and undertake the government. Despite some efforts of Henry to prevent him, Albany came to Scotland in May, 1515. He was a French nobleman, possessed large estates in France, and, although he was, ere long, heir-presumptive to the Scottish throne, could speak no language but French. When he arrived in Scotland he found against him the party of Margaret and Angus, while the Earls of Lennox and Arran were his ardent supporters. The latter nobleman was the grandson of James II, being the son of the Princess Mary and James, Lord Hamilton, and he was, therefore, the next heir to the throne after Albany. The interests of both might be endangered should Margaret and Angus become all-powerful, and so we find them acting together for some time. Albany was immediately made regent of Scotland, and the care of the young king and his brother, the baby Duke of Ross, was entrusted to him. It required force to obtain possession of the children, but the regent succeeded in doing so in August, in time to defeat a scheme of Henry VIII for kidnapping the princes. The queen-mother fled to England, where, in October, she bore to Angus a daughter, Margaret, afterwards Countess of Lennox and mother of the unfortunate Darnley. She then proceeded to pay a visit to Henry VIII. Meanwhile, in Scotland, Albany was finding many difficulties. Arran was now in rebellion against him, and now in alliance with him. In May, 1516, Angus himself, leaving his imperious wife in England, made terms with the regent. The infant Duke of Ross had died in the end of 1515, and only the boy king stood between Albany and the throne. In 1517 Albany returned to France to cement more closely the old alliance, and remained in France till 1521. Margaret immediately returned to Scotland, and, had she behaved with any degree of wisdom, might have greatly strengthened her brother's tortuous Scottish policy. But a Tudor and a Douglas could not be other than an ill-matched pair, and Margaret was already tired of her husband. In 1518, she informed her brother that she desired to divorce Angus. Henry, whose own matrimonial adventures were still in the future, and to whom Angus was useful, scolded his sister in true Tudor fashion, and told her that, alike by the laws of God and man, she must stick to her husband. A formal reconciliation took place, but, henceforth, Margaret's one desire was to be free, and to this she subordinated all other considerations. In 1519, she came to an understanding with Arran, her husband's bitterest foe, and in the summer of the same year we find Henry marvelling much at the "tender letters" she

sent to France, in which she urged the return of Albany, whose absence from Scotland had been the main aim of English policy since Flodden. While Francis I and Henry VIII were on good terms, Albany was detained in France; but when, in 1521, their relations became strained, he returned to Scotland to find Angus in power. Scotland rallied round him, and in February, 1522, Angus, in turn, retired to France, while Henry VIII devoted his energies to the prevention of a marriage between his amorous sister and the handsome Albany. The regent led an army to the borders and began to organize an invasion, for which the north of England was ill-prepared, but was outwitted by Henry's agent, Lord Dacre, who arranged an armistice which he had no authority to conclude. Albany then returned to France, and the Scots, refusing Henry's offer of peace, had to suffer an invasion by Surrey, which was encouraged by Margaret, who was again on the English side. When Albany came back in September, 1523, he easily won over the fickle queen; but, after an unsuccessful attack on Wark, he left Scotland for ever in May, 1524.

No sooner had Albany disappeared from the scene than Margaret entered into a new intrigue with the Earl of Arran; it had one important result, the "erection" of the young king, who now, at the age of twelve years, became the nominal ruler of the country. This manœuvre was executed with the connivance of the English, to whose side Margaret had again deserted. For some time Arran and Margaret remained at the head of affairs, but the return of the Earl of Angus at once drove the queen-mother into the opposite camp, and she became reconciled to the leader of the French party, Archbishop Beaton, whom she had imprisoned shortly before. Angus, who had been the paid servant of England throughout all changes since 1517, assumed the government. The alliance between England and France, which followed the disaster to Francis I at Pavia, seriously weakened the supporters of French influence in Scotland, and Angus made a three years' truce in 1525. In the next year, Arran transferred his support to Angus, who held the reins of power till the summer of 1528. The chief event of this period is the divorce of Queen Margaret, who immediately married a youth, Henry Stewart, son of Lord Evandale, and afterwards known as Lord Methven.

The fall of Angus was brought about by the conduct of the young king himself, who, tired of the tyranny in which he was held, and escaping from

Edinburgh to Stirling, regained his freedom. Angus had to flee to England, and James passed under the influence of his mother and her youthful husband. In 1528 he made a truce with England for five years. During these years James showed leanings towards the French alliance, while Henry was engaged in treasonable intrigues with Scottish nobles, and in fomenting border troubles. But the truce was renewed in 1533, and a more definite peace was made in 1534. Henry now attempted to enlist James as an ally against Rome, and, by the irony of fate, offered him, as a temptation to become a Protestant, the hand of the Princess Mary. James refused to break with the pope, and negotiations for a meeting between the two kings fell through—fortunately, for Henry was prepared to kidnap James. The King of Scots arranged in 1536 to marry a daughter of the Duc de Vendome, but, on seeing her, behaved much as Henry VIII was to do in the case of Anne of Cleves, except that he definitely declined to wed her at all. Being in France, he made a proposal for the Princess Madeleine, daughter of Francis I, and was married to her in January, 1536-37. This step naturally annoyed Henry, who refused James a passport through England, on the ground that "no Scottish king had ever entered England peacefully except as a vassal". So James returned by sea with his dying bride, and reached Scotland to find numerous troubles in store for him—among them, intrigues brought about by his mother's wish to obtain a divorce from her third husband. Madeleine died in July, 1537, and the relations between James and Henry VIII (now a widower by the death of Jane Seymour) were further strained by the fact that nephew and uncle alike desired the hand of Mary of Guise, widow of the Duke de Longueville, who preferred her younger suitor and married him in the following summer. These two French marriages are important as marking James's final rejection of the path marked out for him by Henry VIII. The husband of a Guise could scarcely remain on good terms with the heretic King of England; but Henry, with true Tudor persistency, did not give up hope of bending his nephew to his will, and spent the next few years in negotiating with James, in trying to alienate him from Cardinal Beaton—the great supporter of the French alliance,—and in urging the King of Scots to enrich himself at the expense of the Church. As late as 1541, a meeting was arranged at York, whither Henry went, to find that his nephew did not appear. James was probably wise, for we know that Henry would not have scrupled to seize his person. Border troubles arose; Henry reasserted the old claim of homage and devised a scheme to kidnap James.

Finally he sent the Earl of Angus, who had been living in England, with a force to invade Scotland, and this without the formality of declaring war. Henry, in fact, was acting as a suzerain punishing a vassal who had refused to appear when he was summoned. The English ravaged the county of Roxburgh in 1542; the Scottish nobles declined to cross the border in what they asserted to be a French quarrel; and in November a small Scottish force was enclosed between Solway Moss and the river Esk, and completely routed. The ignominy of this fresh disaster broke the king's heart. On December 8th was born the hapless princess who is known as *the* Queen of Scots. The news brought small comfort to the dying king, who was still mourning the sons he had lost in the preceding year. "'Adieu,' he said, 'farewell; it came with a lass and it will pass with a lass.' And so", adds Pitscottie, "he recommended himself to the mercy of Almighty God, and spake little from that time forth, but turned his back unto his lords, and his face unto the wall." Six days later the end came. With "a little smile of laughter", and kissing his hand to the nobles who stood round, he breathed his last.

FOOTNOTES:

[\[60\]](#) Gregory Smith, p. 123.

CHAPTER VIII

THE PARTING OF THE WAYS

1542-1568

Mary of Guise, thus for the second time a widow, was left the sole protector of the infant queen, against the intrigues of Henry VIII and the treachery of the House of Douglas. Fortunately, Margaret Tudor had predeceased her son in October, 1541, and her death left one disturbing element the less. But the situation which the dowager had to face was much more perplexed than that which confronted any other of the long line of Scottish queen-mothers. During the reign of James V the Reformed doctrines had been rapidly spreading in Scotland. It was at one time possible that James V might follow the example of Henry VIII, and a considerable section of his subjects would have welcomed the change. His death added recruits to the Protestant cause; the greater nobles now strongly desired an alienation of Church property, because they could take advantage of the royal minority to seize it for their private advantage. The English party no longer consisted only of outlawed traitors; there were many honest Scots who felt that alliance with a Protestant kingdom must replace the old French league. The main interest had come to be not nationality but religion, and Scotland must decide between France and England. The sixteenth century had already, in spite of all that had passed, made it evident that Scots and English could live on terms of peace, and the reign of James IV, which had witnessed the first attempt at a perpetual alliance, was remembered as the golden age of Scottish prosperity. The queen-mother was, by birth and by education, committed to the maintenance of the old religion and of the French alliance. The task was indeed difficult. Ultimate success was rendered impossible by causes over which she possessed no kind of control; a temporary victory was rendered practicable only by the folly of Henry VIII.

The history of Henry's intrigues becomes at this point very intricate, and we must be content with a mere outline. On James's death he conceived the

plan of seizing the Scottish throne, and for this purpose he entered into an agreement with the Scottish prisoners taken at Solway Moss. They professed themselves willing to seize Mary and Cardinal Beaton, and so to deprive the national party of their leaders. Then came the news that the Earl of Arran had been appointed regent in December, 1542. He was heir-presumptive to the throne, and so was unlikely to acquiesce in Henry's scheme, and the traitors were instructed to deal with him as they thought necessary. But the traitors, who had, of course, been joined by the Earl of Angus, proved false to Henry and were falsely true to Scotland. They imprisoned Beaton, but did not deliver him up to the English, and they came to terms with Arran; nor did they carry out Henry's projects further than to permit the circulation of "haly write, baith the new testament and the auld, in the vulgar tounge", and to enter into negotiations for the marriage of the young queen to the Prince of Wales, afterwards Edward VI. The conditions they made were widely different from those suggested by Henry. Full precautions were taken to secure the independence of the country both during Mary's minority and for the future. Strongholds were to be retained in Scottish hands; should there be no child of the marriage, the union would determine, and the proper heir would succeed to the Scottish throne. In any case, no union of the kingdoms was contemplated, although the crowns might be united. These terms were slightly modified in the following May. Beaton, who had escaped to St. Andrews, did not oppose the treaty, but made preparations for war. The treaty was agreed to, and the war of intrigues went on, Henry offering almost any terms for the possession of the little queen. Finally, in September, Arran joined the cardinal, became reconciled to the Church, and left Henry to intrigue with the Earl of Lennox, the next heir after Arran.

Hostilities broke out in the end of 1543, when the Scots, enraged by Henry's having attacked some Scottish shipping, declared the treaty annulled. In the spring of 1544, the Earl of Hertford conducted his expedition into Scotland. The "English Wooing", as it was called, took the form of a massacre without regard to age or sex. The instructions given to Hertford by Henry and his council read like quotations from the book of Joshua. He was to leave none remaining, where he encountered any resistance. Hertford, abandoning the usual methods of English invaders, came by sea, took Leith, burned Edinburgh, and ravaged the Lothians. Lennox attempted to give up

Dumbarton to the English, but his treachery was discovered and he fled to England, where he married Margaret, the daughter of Angus and niece of Henry VIII, by whom he became, in 1545, the father of Henry Stewart, Lord Darnley, who thus stood within the possibility of succession, in his own right, to both kingdoms. Angus and his brother, Sir George Douglas, seized the opportunity given them by the misery caused by the English atrocities to make a move against Arran and Beaton, and seized the person of the queen-mother. But their success was brought to an end by the meeting of a Parliament, summoned by Arran, in December, 1544, and the Douglasses were reconciled and restored to their estates, deeming this the most profitable step for themselves. Their breach with Henry was widened by the events of the next two months. A body of Englishmen, under Sir Ralph Eure, defeated Arran at Melrose, and desecrated the abbey, the sepulchre of the Douglas family. In revenge, Angus, along with Arran, fell upon the English at Ancrum Moor in Roxburghshire, and inflicted on them a total defeat. This was followed by a second invasion of Hertford (this time by land). He ravaged the borders in merciless fashion. A counter-invasion by an army of Scots and French auxiliaries had proved futile owing to the incompetence or the treachery of Angus, who almost immediately returned to the English side. About the same time a descendant of the Lord of the Isles whom James IV had crushed made an agreement with Henry, but was of little use to his cause. Beaton, after some successful fighting on the borders, in the end of 1545, went to St. Andrews in the beginning of 1546. On the 1st March, George Wishart, who had been condemned on a charge of heresy, was hanged, and his body was burned at the stake. On May 29th the more fierce section of the Protestant party took their revenge by murdering the great cardinal in cold blood. We are not here concerned with Beaton's private character or with his treatment of heretics. His public actions, as far as foreign relations are concerned, are marked by a consistent patriotic aim. He represented the long line of Scottish churchmen who had striven to maintain the integrity of the kingdom and the alliance with France. He had shown great ability and tact, and in politics he had been much more honest than his opponents. But for his support of the queen-dowager in 1542-43, and but for his maintaining the party to which Arran afterwards attached himself, it is possible that Scotland might have passed under the yoke of Henry VIII in 1543, instead of being peacefully united to England sixty years later. With him disappeared any remaining hope of the

French party. "We may say of old Catholic Scotland", writes Mr. Lang, "as said the dying Cardinal: 'Fie, all is gone'."

Though Beaton was dead, the effects of his work remained. He had saved the situation at the crisis of December, 1542, and the insensate cruelty of Henry VIII had made it impossible that the Cardinal's work should fall to pieces at once. It seemed at first as if the only difference was that the castle of St. Andrews was held by the English party. Ten months after Beaton's death, the small Protestant garrison was joined by John Knox, who was present when the regent succeeded, with help from France, in reducing the castle in July, 1547. Its defenders, including Knox, were sent as galley-slaves to France. Henry VIII had died in the preceding January, but Hertford (now Protector Somerset) continued the Scottish policy of the preceding reign. In the summer of 1547 he made his third invasion of Scotland, marked by the usual barbarity. In the course of it, on 10th September, was fought the last battle between Scots and English. Somerset met the Scots, under Arran, at Pinkiecleuch, near Edinburgh, and by the combined effect of artillery and a cavalry charge, completely defeated them with great slaughter. The English, after some further devastation, returned home, and the Scots at once entered into a treaty with France, which had been at war with England since 1544. It was agreed that the young queen should marry the dauphin, the eldest son of Henry II. While negotiations were in progress, she was placed for safety, first in the priory of Inchmahome, an island in the lake of Menteith, and afterwards in Dumbarton Castle. In June, 1548, a large number of French auxiliaries were sent to Scotland, and, in the beginning of August, Mary was sent to France. The English failed to capture her, and she landed about 13th August. The war lingered on till 1550. The Scots gradually won back the strongholds which had been seized by the English, and, although their French allies did good service, serious jealousies arose, which greatly weakened the position of the French party. Finally, Scotland was included in the peace made between England and France in 1550.

All the time, the Reformed faith was rapidly gaining adherents, and when, in April, 1554, the queen-dowager succeeded Arran (now Duke of Chatelherault) as regent, she found the problem of governing Scotland still more difficult. The relations with England had, indeed, been simplified by the accession of a Roman Catholic queen in England, but the Spanish

marriage of Mary Tudor made it difficult for a Guise to obtain any help from her. She continued the policy of obtaining French levies, and the irritation they caused was a considerable help to her opponents. Knox had returned to Scotland in 1555, and, except for a visit to Geneva in 1556-57, spent the rest of his life in his native country. In 1557 was formed the powerful assembly of Protestant clergy and laymen who took the title of "the Congregation of the Lord", and signed the National Covenant which aimed at the abolition of Roman Catholicism. Their hostility to the queen-regent was intensified by the events of the year 1558-59. In April, 1558, Queen Mary was married to the dauphin, and her husband received the crown-matrimonial and became known as King of Scots. Scotland seemed to have passed entirely under France. We know that there was some ground for the Protestant alarm, because the girl queen had been induced to sign documents which transferred her rights, in case of her decease without issue, to the King of France and his heirs. These documents were in direct antagonism to the assurance given to the Scottish Parliament of the maintenance of national independence. The French alliance seemed to have gained a complete triumph, while the shout of joy raised by its supporters was really the swan-song of the cause. Knox and the Congregation had rendered it for ever impossible.

Nor was it long before this became apparent. In November, 1558, Mary Tudor died, and England was again Protestant. Henry II ordered Francis and Mary to assume the arms of England, in virtue of Mary's descent from Margaret Tudor, which made her in Roman Catholic eyes the rightful Queen of England, Elizabeth being born out of wedlock. The Protestant Queen of England had thus an additional motive for opposition to the government of Mary of Guise and her daughter. It was unfortunate for the queen-regent that, at this particular juncture, she was entering into strained relations with the Reformers. Hitherto she had succeeded in satisfying Knox himself; but, in the beginning of 1559, she adopted more severe measures, and the lords of the congregation began to discuss a treasonable alliance with England, which proved the beginning of the end. The Treaty of Cateau-Cambresis set the French government free to pay greater attention to the progress of Scottish affairs, and Mary of Guise forthwith denounced the leading Protestant preachers as heretics. It was much too late. The immediate result was the Perth riots of May and June, 1559, which involved

the destruction of the religious houses which were the glory of the Fair City. The aspect of affairs was so threatening that the regent came to terms, and promised that she would take no vengeance on the people of Perth, and that she would not leave a French garrison in the town. The regent kept her word in garrisoning the town with Scotsmen, but her introduction of a French bodyguard, in attendance on her own person, was regarded as a breach of her promise. The destruction of religious buildings continued, although Knox did his endeavour to save the palace of Scone. The Protestants held St. Andrews while the regent entered into negotiations which they considered to be a mere subterfuge for gaining time, and, on the 29th June, they marched upon Edinburgh. In July, 1559, occurred the sudden death of Henry II; Francis and Mary succeeded, and the supreme power in France and in Scotland passed to the House of Guise. The Protestants who had been making overtures to Cecil and Elizabeth declared, in October, that the regent had been deposed. This bold step was justified by the help received from England, and by the indignation caused by the excesses of the regent's French troops in Scotland. So far had religious emotion outrun the sentiment of nationality that the Protestants were willing to admit almost any English claim. The result of Elizabeth's treaty with the rebels was that they were enabled to besiege Leith, by means of an English fleet, while the regent took refuge in Edinburgh Castle. The English attack on Leith was unsuccessful, but the dangerous illness of the queen-mother led to the conclusion of peace. A truce was made on condition that all foreign soldiers, French and English alike, should leave Scotland, and that the Scottish claim to the English throne should be abandoned. On the 11th June, 1560, Mary died. The wisdom of the policy of her later years may be questioned, but her conduct during her widowhood forms a strange contrast to that of her Tudor mother-in-law in similar circumstances. It is probable that her intentions were honest enough, and that the Protestant indignation at her "falsehoods" was based on invincible misunderstanding. Her gracious charm of manner was the concomitant of a tolerance rare in the sixteenth century; and she died at peace with all men, and surrounded by those who had been in arms against her, receiving "all her nobles with all pleasure, with a pleasant countenance, and even embracing them with a kiss of love".

Her death set the lords of the congregation free to carry out their ecclesiastical programme. In August Roman Catholicism was abolished by

the Scottish Parliament and the celebration of the mass forbidden, under severe penalties. There remained the question of the ratification of the Treaty of Edinburgh, the final form of the agreement by which peace had been made. The young Queen of Scots objected to the treaty on the ground that it included a clause that "the most Christian King and Queen Mary, and each of them, abstain henceforth from using the title and bearing the arms of the kingdom of England or of Ireland".^[61] She interpreted the word "henceforth" as involving an absolute renunciation of her claim to the English throne, and so prejudicing her succession, should she survive Elizabeth. Cecil had suggested to the Scots that it might be advisable to raise the claim of the Lord James Stewart, an illegitimate son of James V, and afterwards Earl of Moray, to the throne, or to support that of the House of Hamilton. The Scots improved on this suggestion, and proposed that Elizabeth should marry the Earl of Arran, the eldest son of the Duke of Chatelherault, who might succeed to the throne. There were many reasons why Elizabeth should not wed the imbecile Arran, and it may safely be said that she never seriously considered the project although she continued to trifle with the suggestion, which formed a useful form of intrigue against Mary.

The situation was considerably altered by the death of Francis II, in December, 1560. That event was, on the whole, welcome to Elizabeth, for it destroyed the power of the Guises, and Mary Stuart^[62] had now to face her Scottish difficulties without French aid. She was not on good terms with her mother-in-law, Catherine de Medici, who now controlled the destinies of France, and it was evident that she must accept the fact of the Scottish Reformation, and enter upon a conflict with the theocratic tendencies of the Church and with the Scottish nobles who were the pensioners of Elizabeth. On the other hand, although Francis II was dead, his widow survived, young, beautiful, charming, and a queen. The dissolution of her first marriage had removed an actual difficulty from the path of the English queen, but, after all, it only meant that she might be able to contract an alliance still more dangerous. As early as December 31st, 1560, Throckmorton warned Elizabeth that she must "have an eye to" the second marriage of Mary Stuart.^[63] The Queen of England had a choice of alternatives. She might prosecute the intrigue with the Earl of Arran, capture Mary on her way to Scotland, and boldly adopt the position of the

leader of Protestantism. There were, however, many difficulties, ecclesiastical, foreign, and personal, in such a course. Arran was an impossible husband; Knox and the lords of the congregation made good allies but bad subjects; and the inevitable struggle with Spain would be precipitated. The other course was to attempt to win Mary's confidence, and to prevent her from contracting an alliance with the Hapsburgs, which was probably what Elizabeth most feared. This was the alternative finally adopted by the Queen of England; but, very characteristically, she did not immediately abandon the other possibility. On the pretext that Mary refused to confirm the Treaty of Edinburgh, her cousin declined to grant her request for a safe-conduct from France to Scotland, and spoke of the Scottish queen in terms which Mary took the first opportunity of resenting. "The queen, your mistress," she remarked to the English ambassador who brought the refusal, "doth say that I am young and do lack experience. Indeed I confess I am younger than she is, and do want experience; but I have age enough and experience to use myself towards my friends and kinsfolk friendly and uprightly; and I trust my discretion shall not so fail me that my passion shall move me to use other language of her than it becometh of a queen and my next kinswoman."^[64]

When, in August, 1561, Mary did sail from France to Scotland, Elizabeth made an effort to capture her. It was characteristically hesitating, and it succeeded only in giving Mary an impression of Elizabeth's hostility. Some months later Elizabeth imprisoned the Countess of Lennox, the mother of Darnley, for giving God thanks because "when the queen's ships were almost near taking of the Scottish queen, there fell down a mist from heaven that separated them and preserved her".^[65] The arrival of Mary in Scotland effectually put an end to the Arran intrigue, but the girl-widow of scarcely nineteen years had many difficulties with which to contend. As a devout Roman Catholic, she had to face the relentless opposition of Knox and the congregation, who objected even to her private exercise of her own faith. As the representative of the French alliance, now but a dead cause, she was confronted by an English party which included not only her avowed enemies but many of her real or pretended friends. Her brother, the Lord James Stewart, whom she made Earl of Moray, and who guided the early policy of her reign, was constantly in Elizabeth's pay, as were most of her other advisers. Her secretary, Maitland of Lethington, the most

distinguished and the ablest Scottish statesman of his day, had, as the fixed aim of his policy, a good understanding with England. Furthermore, she was disliked by all the nobles who had seized upon the property of the Church and added it to their own possessions. Up to the age of twenty-five she had, by Scots law, the right of recalling all grants of land made during her minority, and her greedy nobles knew well that the victory of Roman Catholicism meant the restoration of Church lands. Her relations with France were uncertain, and the Guises found their attention fully occupied at home. As the next heir to the throne of England, she was bound to be very careful in her dealings with Elizabeth. United by every tie of blood and sentiment to Rome and the Guises, she was forced, for reasons of policy, to remain on good terms with Protestantism and the Tudor Queen of England. The first years of Mary's reign in Scotland were marked by the continuance of good relations between herself and her half-brother, whom she entrusted with the government of the kingdom. In 1562 she suppressed the most powerful Catholic noble in Scotland, the Earl of Huntly. The result of this policy was to raise an unfounded suspicion in England and Spain that the Queen of Scots was "no more devout towards Rome than for the sustentation of her uncles".^[66] The indignation felt at Mary's conduct among Roman Catholics in England and in Spain may have been one of the reasons for Elizabeth's adopting a more distinctly Protestant position in 1562. In the Act of Supremacy of that year the first avowed reference is made to the authority used by Henry VIII and Edward VI, *i.e.* the Supreme Headship of the Church. It at all events made Elizabeth's position less difficult, because Spain and Austria were not likely to attack England in the interests of a queen whose orthodoxy was doubtful.

Meanwhile Elizabeth was directing all her efforts to prevent Mary from contracting a second marriage, and, at all hazards, to secure that she should not marry Don Carlos of Spain or the Archduke of Austria. Her persistent endeavours to bribe Scottish nobles were directed, with considerable acuteness, to creating an English party strong enough to deter foreign princes from "seeking upon a country so much at her devotion".^[67] She warned Mary that any alliance with "a mighty prince" would offend England^[68] and so imperil her succession. Mary, on her part, was attempting to obtain a recognition of her position as "second person" [her presumptive], and she professed her willingness to take Elizabeth's advice

in the all-important matter of her marriage. The English queen made various suggestions, and found objections to them all. Finally she proposed that Mary should marry her own favourite, Leicester, and a long correspondence followed. It was suggested that the two queens should have an interview, but this project fell through. Elizabeth, of course, was too fondly attached to Leicester to see him become the husband of her beautiful rival; Mary, on her part, despised the "new-made earl", and Leicester himself apologized to Mary's ambassador for the presumption of the proposal, "alleging the invention of that proposition to have proceeded from Master Cecil, his secret enemy".^[69] While the Leicester negotiations were in progress, the Earl of Lennox, who had been exiled in 1544, returned to Scotland with his son Henry, Lord Darnley, a handsome youth, eighteen years of age. As early as May, 1564, Knox suspected that Mary intended to marry Darnley.^[70] There is little doubt that it was a love-match; but there were also political reasons, for Darnley was, after Mary herself, the nearest heir to Elizabeth's throne, and only the Hamiltons stood between him and the crown of Scotland. He had been born and educated in England, as also had been his mother, the daughter of Angus and Margaret Tudor, and Elizabeth might have used him as against Mary's claim. That claim the English queen refused to acknowledge, although, in the end of 1564, Murray and Maitland of Lethington tried their utmost to persuade her to do so.

On the 29th July, 1565, Mary was married to Darnley in the chapel of Holyrood. Elizabeth chose to take offence, and Murray raised a rebellion. There are two stories of plots: there are hints of a scheme to capture Mary and Darnley; and Murray, on the other hand, alleged that Darnley had entered into a conspiracy to kidnap him. It is, at all events, certain that Murray raised a revolt and that the people rallied to Mary, who drove her brother across the border. Elizabeth received Murray with coldness, and asked him "how he, being a rebel to her sister of Scotland, durst take the boldness upon him to come within her realm?"^[71] But Murray, confident in Elizabeth's promise of aid, knew what this hypocritical outburst was worth, and the English queen soon afterwards wrote to Mary in his favour. The motive which Murray alleged for his revolt was his fear for the true religion in view of Mary's marriage to Darnley, nominally a Roman Catholic; but his position with regard to the Rizzio Bond renders it, as we shall see, somewhat difficult to give him credit for sincerity. It is more likely that he

was ambitious of ruling the kingdom with Mary as a prisoner. About Elizabeth's complicity there can be no doubt.^[72]

Mary's troubles had only begun. On the 16th January, 1566, Randolph, the English ambassador, wrote from Edinburgh: "I cannot tell what mislikings of late there hath been between her grace and her husband; he presses earnestly for the matrimonial crown, which she is loth hastily to grant". Darnley, in fact, had proved a vicious fool, and was possessed of a fool's ambition. Rizzio, Mary's Italian secretary, who had urged the Darnley marriage, strongly warned Mary against giving her husband any real share in the government, and Darnley determined that Rizzio should be "removed".^[73] He therefore entered into a conspiracy with his natural enemies, the Scottish nobles, who professed to be willing to secure the throne for this youth whom they despised and hated. The plot involved the murder of Rizzio, the imprisonment of Mary, the crown-matrimonial for Darnley, and the return of Murray and his accomplices, who were still in exile. The English government was, of course, privy to the scheme.^[74] The murder was carried out, in circumstances of great brutality, on the night of the 9th March. Mary's condition of health, "having then passed almost to the end of seven months in our birth", renders the carrying out of the deed in her presence, and while Rizzio was her guest, almost certainly an attempt upon the queen's own life. There were numberless opportunities of slaying Rizzio elsewhere, and the ghastly details—the sudden appearance of Ruthven, hollow, pale, just risen from a sick bed, the pistol of Ker of Faudonside,—are so rich in dramatic effect that one can scarcely doubt what *dénouement* was intended. The plot failed in its main purpose. Rizzio, indeed, was killed, and Murray made his appearance next morning and obtained forgiveness. The queen "embracit him and kisset him, alleging that in caice he had bene at hame, he wald not have sufferit her to have bene sa uncourterly handlit". But the success ended here. Mary won over her husband, and together they escaped and fled to Dunbar. Darnley deserted his accomplices, proclaimed his innocence, and strongly urged the punishment of the murderers. They, of course, threw themselves on the hospitality of Queen Elizabeth, who sent them money, and lied to Mary,^[75] who did not put too much faith in her cousin's assurances. On June 19th, a prince was born in Edinburgh Castle, but the event brought about only a partial reconciliation between his unhappy parents. Mary was shamefully

treated by her worthless husband, and in the following November her nobles suggested to her the project of a divorce. Darnley, however, was not doomed to the fate which overtook his descendants, the life of a king without a crown. He had awakened the enmity of men whose feuds were blood-feuds, and the Rizzio conspirators were not likely to forgive the upstart youth whose inconstancy had foiled their plan for Mary's fall, and whose treachery had involved them in exile. Darnley had proved useless even as a tool for the nobles, he had offended Mary and disgusted everybody in Scotland, and there were many who were willing to do without him. At this point a new tool was ready to the hands of the discontented barons. The Earl of Bothwell, whether with Mary's consent or not, aspired to the queen's hand, and devised a plan for the murder of Darnley. On the night of the 10th February, 1566-67, the wretched boy, not yet twenty-one years of age, was strangled,^[76] and the house in which he had been living was blown up with gunpowder. Public opinion accused Bothwell of the murder; he was tried and found innocent, and Parliament put its seal upon his acquittal. On the 24th April he seized the person of the queen as she was travelling from Linlithgow to Edinburgh, and Mary married him on the 15th May. *Mense malum Maio nubere vulgus ait*. The nobles almost immediately raised a rebellion, professedly to deliver the queen from the thralldom of Bothwell. On June 15th she surrendered at Carberry Hill, and the nobles disregarded a pledge of loyalty to the queen given on condition of her abandoning Bothwell, alleging that she was still in correspondence with him. They now accused her of murdering her husband, and imprisoned her in Lochleven Castle. The whole affair is wrapped in mystery, but it is impossible to give the Earl of Morton and the other nobles any credit for honesty of purpose. There can be little doubt that they used Bothwell for their own ends, and, while they represented the murder as the result of a domestic conspiracy between the queen and Bothwell, they afterwards, when quarrelling among themselves, hurled at each other accusations of participation in the plot, and their leader, the Earl of Morton, died on the scaffold as a criminal put to death for the murder of Darnley. This, of course, does not exclude the hypothesis of Mary's guilt, and while the view of Hume or of Mr. Froude could not now be seriously advanced in its entirety, it is only right to say that a majority of historians are of opinion that she, at least, connived at the murder. The question of her implication as a principal in the plot depends upon the authenticity of the

documents known as the "Casket Letters", which purported to be written by the queen to Bothwell, and which the insurgent lords afterwards produced as evidence against her.^[77]

Moray had left Scotland in the end of April. When he returned in the beginning of August he found that the prisoner of Lochleven, to whom he owed his advancement and his earldom, had been forced to sign a deed of abdication, nominating himself as regent for her infant son. On the 15th August he went to Lochleven and saw his sister, as he had done after the murder of Rizzio, when she was a prisoner in Holyrood. Till an hour past midnight, Elizabeth's pensioner preached to the unfortunate princess on righteousness and judgment, leaving her "that night in hope of nothing but of God's mercy". It was merely a threat; Mary's life was safe, for Elizabeth, roused, for once, to a feeling of generosity, had forbidden Moray to make any attempt on that. Next morning he graciously accepted the regency and left his sister's prison with her kisses on his lips.^[78]

On the 2nd May, 1568, Mary escaped from Lochleven, and her brother at once prepared a hostile force to meet her. Her army, composed largely of Protestants, marched towards Dunbarton Castle, where they desired to place the queen for safe keeping. The regent intercepted her at Langside, and inflicted a complete defeat upon her forces. Mary was again a fugitive, and her followers strongly urged her to take refuge in France. But Elizabeth had given her a promise of protection, and Mary, impelled by some fateful impulse, resolved to throw herself on the mercy of her kinswoman.^[79] On the 16th day of May, her little boat crossed the Solway. When the Queen of Scots, the daughter of the House of Guise, the widow of a monarch of the line of Valois, set foot on English soil as a suppliant for the protection which came to her only by death, the last faint hope must have faded out of the hearts of the few who still longed for an independent Scotland, bound by gratitude and by ancient tradition to the ally who, more than once, had proved its salvation.

FOOTNOTES:

^[61] Cf. the present writer's "Mary, Queen of Scots" (Scottish History from Contemporary Writers).

- [62] The spelling "Stuart", which Queen Mary brought with her from France, now superseded the older "Stewart".
- [63] Foreign Calendar: Elizabeth, December 31st, 1560.
- [64] *Cabala, Sive Scrinia Sacra*, pp. 345-349.
- [65] Foreign Calendar, May 7th, 1562.
- [66] Foreign Calendar, June 8th, 1562.
- [67] Foreign Calendar, March 31st, 1561.
- [68] Foreign Calendar, 20th August, 1563.
- [69] Sir James Melville's *Memoirs*, pp. 116-130 (Bannatyne Club).
- [70] Laing's *Knox*, vi, p. 541.
- [71] Laing's *Knox*, vol. ii, p. 513. Melville's *Memoirs*, p. 134.
- [72] Foreign Calendar, July-December, 1565.
- [73] The evidence for the scandal which associated Mary's name with that of Rizzio will be found in Mr. Hay Fleming's *Mary, Queen of Scots*, pp. 398-401. It is very far indeed from being conclusive.
- [74] Foreign Calendar, March, 1566.
- [75] Mary to Elizabeth, July, 1566. Keith's History, ii, p. 442.
- [76] It is almost certain that Darnley was murdered before the explosion.
- [77] Mary's defenders point out that her 25th birthday fell in November, 1567, and that it was necessary to prevent her from taking any steps for the restitution of Church land; and they look on the plot as devised by Bothwell and the other nobles, the latter aiming at using Bothwell as a tool to ruin Mary. On the question of the Casket Letters, see Mr. Lang's *Mystery of Mary Stuart*.
- [78] Keith's History, ii, pp. 736-739.
- [79] In forming any moral judgment with regard to Elizabeth's conduct towards Mary, it must be remembered that Mary fled to England trusting to the English Queen's invitation.
-

CHAPTER IX

THE UNION OF THE CROWNS

1568-1625

When Mary fled to England, Elizabeth refused to see her, on the ground that she ought first to clear herself from the suspicion of guilt in connection with the murder of Darnley. In the end, Mary agreed that the case should be submitted to the judgment of a commission appointed by Elizabeth, and she appeared as prosecuting Moray and his friends as rebels and traitors. They defended themselves by bringing accusations against Mary, and produced the Casket Letters and other documents in support of their assertions. Mary asked to be brought face to face with her accusers; Elizabeth thought the claim "very reasonable", and refused it. Mary then asked for copies of the letters produced as evidence against her, and when her request was pressed upon Elizabeth's notice by La Mothe Fénélon, the French ambassador, he was informed that Elizabeth's feelings had been hurt by Mary's accusing her of partiality.^[80] Mary's commissioners then withdrew, and Elizabeth closed the case, with the oracular decision that, "nothing has been adduced against the Earl of Moray and his adherents, as yet, that may impair their honour or allegiances; and, on the other part, there has been nothing sufficiently produced nor shown by them against the queen, their sovereign, whereby the Queen of England should conceive or take any evil opinion of the queen, her good sister, for anything yet seen". So Elizabeth's "good sister" was subjected to a rigorous imprisonment, and the Earl of Moray returned to Scotland, with an increased allowance of English gold. Henceforth the successive regents of Scotland had to guide their policy in accordance with Elizabeth's wishes. If they rebelled, she could always threaten to release her prisoner, and, once or twice in the course of those long, weary years, Mary, whose nature was buoyant, actually dared to hope that Elizabeth would replace her on her throne. While Mary was plotting, and hope deferred was being succeeded by hope deferred and vain illusion by vain illusion, events moved fast. In November, 1569, the Earls of Northumberland and

Westmoreland raised a rebellion in her favour, which was easily suppressed. In January, 1570, Moray was assassinated at Linlithgow, and the Earl of Lennox, the father of Darnley, and the traitor of Mary's minority, succeeded to the regency, while Mary's Scottish supporters, who had continued to fight for her desperate cause, were strengthened by the accession of Maitland of Lethington, who, with Kirkaldy of Grange, also a recruit from the king's party, held Edinburgh Castle for the queen. Mary's hopes were further raised by the rebellion of the Duke of Norfolk, whose marriage with the Scottish queen had been suggested in 1569. Letters from the papal agent, Rudolfi, were discovered, and, in June, 1572, Norfolk was put to death. Lennox had been killed in September, 1571, and his successor, the Earl of Mar, was approached on the subject of taking Mary's life. Elizabeth was unwilling to accept the responsibility for the deed, and proposed to deliver up Mary to Mar, on the understanding that she should be immediately killed. Mar, who was an honourable man, declined to listen to the proposal. But, after his death, which occurred in October, 1572, the new regent, the Earl of Morton, professed his willingness to undertake the accomplishment of the deed, if Elizabeth would openly acknowledge it. This she refused to do, and the plot failed. It is characteristic that the last Douglas to play an important part in Scottish history should be the leading actor in such a plot as this.

The castle of Edinburgh fell in June, 1573, and with its surrender passed away Mary's last chance in Scotland. Morton held the regency till 1578, when he was forced to resign, and the young king, now twelve years old, became the nominal ruler. In 1581, Morton was condemned to death as "airt and pairt" in Darnley's murder, and Elizabeth failed in her efforts to save him. Mary entered into negotiations with Elizabeth for her release and return to Scotland as joint-sovereign with James VI, and the English queen played with her prisoner, while, all the time, she was discussing projects for her death. The key to the policy of James is his desire to secure the succession to the English crown. To that end he was willing to sacrifice all other considerations; nor had he, on other grounds, any desire to share his throne with his mother. In 1585, he negotiated a league with England, which, however, contained a provision that "the said league be without prejudice in any sort to any former league or alliance betwixt this realm and any other auld friends and confederates thereof, except only in matters of

religion, whereanent we do fully consent the league be defensive and offensive". As we are at the era of religious wars, the latter section of the clause goes far to neutralize the former. Scotland was at last at the disposal of the sovereign of England. Even the tragedy of Fotheringay scarcely produced a passing coldness. On the 8th February, 1587, Elizabeth's warrant was carried out, and Mary's head fell on the block. She was accused of plotting for her own escape and against Elizabeth's life. It is probable that she had so plotted, and it would be childish to express surprise or indignation. The English queen, on her part, had injured her kinswoman too deeply to render it possible to be generous now. Mary had sent her, on her arrival in England, "a diamond jewel, which", as she afterwards reminded her, "I received as a token from you, and with assurance to be succoured against my rebels, and even that, on my retiring towards you, you would come to the very frontiers in order to assist me, which had been confirmed to me by divers messengers".^[81] Had the protection thus promised been vouchsafed, it might have spared Elizabeth many years of trouble. But it was now too late, and the relentless logic of events forced her to complete the tale of her treachery and injustice by a deed which she herself could not but regard as a crime. But while this excuse may be made for the deed itself, there can be no apology for the manner of it. The Queen of England stooped to urge her servants to murder her kinswoman; when they refused, she was mean enough to contrive so as to throw the responsibility upon her secretary, Davison. After Mary's death, she wrote to King James and expressed her sincere regret at having cut off the head of his mother by accident. James accepted the apology, and, in the following year, made preparations against the Armada. Had the son of Mary Stuart been otherwise constituted, it would scarcely have been safe for Elizabeth to persevere in the execution of his mother; an alliance between Scotland and Spain might have proved dangerous for England. But Elizabeth knew well the type of man with whom she had to deal, and events proved that she was wise in her generation. And James, on his part, had his reward. Elizabeth died in March, 1603, and her successor was the King of Scots, who entered upon a heritage, which had been bought, in the view of his Catholic subjects, by the blood of his mother, and which was to claim as its next victim his second son. Within eighty-five years of his accession, his House had lost not only their new kingdom, but their ancestral throne as well. In all James's references to the Union, it is clear that he regarded that event

from the point of view of the monarch; had it proved of as little value to his subjects as to the Stuart line there would have been small reason for remembering it to-day. The Union of England and Scotland was one of the events most clearly fore-ordained by a benignant fate: but it is difficult to feel much sympathy for the son who would not risk its postponement, when, by the possible sacrifice of his personal ambition, he might have saved the life of his mother.

There are certain aspects of James's life in Scotland that explain his future policy, and they are, therefore, important for our purpose. In the first place, he spent his days in one long struggle with the theocratic Church system which had been brought to Scotland by Knox and developed by his great successor, Andrew Melville. The Church Courts, local and central, had maintained the old ecclesiastical jurisdiction, and they dealt out justice with impartial hand. In all questions of morality, religion, education, and marriage the Kirk Session or the Presbytery or the General Assembly was all-powerful. The Church was by far the most important factor in the national life. It interfered in numberless ways with legislative and executive functions: on one occasion King James consulted the Presbytery of Edinburgh about the raising of a force to suppress a rebellion,^[82] and, as late as 1596, he approached the General Assembly with reference to a tax, and promised that "his chamber doors sould be made patent to the meanest minister in Scotland; there sould not be anie meane gentleman in Scotland more subject to the good order and discipline of the Kirk than he would be".^[83] Andrew Melville had told him that "there is twa kings and twa kingdomes in Scotland. Thair is Chryst Jesus the King and his Kingdom the Kirk, whase subject King James the Saxt is: and of whase Kingdom nocht a King, nor a lord, nor a heid, bot a member."^[84] James had done his utmost to assert his authority over the Church. He had tried to establish Episcopacy in Scotland to replace the Presbyterian system, and had succeeded only to a very limited extent. "Presbytery", he said, "agreeth as well with a king as God with the Devil." So he went to England, not only prepared to welcome the episcopal form of church-government and to graciously receive the episcopal adulation so freely showered upon him, but also determined to suppress, at all hazards, "the proud Puritanes, who, claining to their Paritie, and crying, 'We are all but vile wormes', yet will judge and give Law to their king, but will be judged nor controlled by none".^[85] "God's sillie

vassal" was Melville's summing-up of the royal character in James's own presence. "God hath given us a Solomon", exulted the Bishop of Winchester, and he recorded the fact in print, that all the world might know. James was wrong in mistaking the English Puritans for the Scottish Presbyterians. Alike in number, in influence, and in aim, his new subjects differed from his old enemies. English Puritanism had already proved unsuited to the genius of the nation, and it had given up all hope of the abolition of Episcopacy. The Millenary Petition asked only some changes in the ritual of the Church and certain moderate reforms. Had James received their requests in a more reasonable spirit, he might have succeeded in reconciling, at all events, the more moderate section of them to the Church, and at the very first it seemed as if he were likely to win for himself the blessing of the peace-maker, which he was so eager to obtain. But just at this crisis he found the first symptoms of Parliamentary opposition, and here again his training in Scotland interfered. The Church and the Church alone had opposed him in Scotland; he had never discovered that a Parliament could be other than subservient.^[86] It was, therefore, natural for him to connect the Parliamentary discontent with Puritan dissatisfaction. Scottish Puritans had employed the General Assembly as their main weapon of offence; their English fellows evidently desired to use the House of Commons as an engine for similar purposes. Therefore said King James, "I shall make them conform themselves, or I will harry them out of the land, or else do worse". So he "did worse", and prepared the way for the Puritan revolution. If the English succession enabled the king to suppress the Scottish Assembly, the Assembly had its revenge, for the fear of it brought a snare, and James may justly be considered one of the founders of English dissent.

A violent hatred of the temporal claims of the Church also affected James's attitude to Roman Catholicism. His Catholic subjects in Scotland had not been in a position to do him any harm, and the son of Mary Stuart could not but have some sympathy for his mother's fellow-sufferers. Accordingly, we find him telling his first Parliament: "I acknowledge the Roman Church to be our Mother Church, although defiled with some infirmities and corruption". But, after the Gunpowder Plot, and when he was engaged in a controversy with Cardinal Perron about the right of the pope to depose kings, he came to prove that the pope is Antichrist and "our Mother Church"

none other than the Scarlet Woman. His Scottish experience revealed clearly enough that the claims of Rome and Geneva were identical in their essence. There is on record an incident that will serve to illustrate his position. In 1615, the Scottish Privy Council reported to him the case of a Jesuit, John Ogilvie. He bade them examine Ogilvie: if he proved to be but a priest who had said mass, he was to go into banishment; but if he was a practiser of sedition, let him die. The unfortunate priest showed in his reply that he held the same view of the royal supremacy as did the Presbyterian clergy. It was enough: they hanged him.

Once more, James's Irish policy seems to have been influenced by his experience of the Scottish Highlands. He had conceived the plan which was afterwards carried out in the Plantation of Ulster—"planting colonies among them of answerable inland subjects, that within short time may reforme and civilize the best-inclined among them; rooting out or transporting the barbarous or stubborne sort, and planting civilitie in their roomes".^[87] Although James continued to carry on his efforts in this direction after 1603, yet it may be said that the English succession prevented his giving effect to his scheme, and that it also interfered with his intentions regarding the abolition of hereditary jurisdictions, which remained to "wracke the whole land" till after the Rising of 1745.

On the 5th April, 1603, King James set out from Edinburgh to enter upon the inheritance which had fallen to him "by right divine". His departure made considerable changes in the condition of Scotland. The absence of any fear of an outbreak of hostilities with the "auld enemy" was a great boon to the borders, but there was little love lost between the two countries. The union of the crowns did not, of course, affect the position of Scotland to England in matters of trade, and beyond some thirty years of peace, James's ancient kingdom gained but little. King James, who possessed considerable powers of statesmanship, if not much practical wisdom, devised the impossible project of a union of the kingdoms in 1604. "What God hath conjoyned", he said, "let no man separate. I am the Husband, and all the whole Isle is my lawful wife.... I hope, therefore, that no man will be so unreasonable as to think that I, that am a Christian King under the Gospel, should be a Polygamist and husband to two wives." He desired to see a complete union—one king, one law, one Church. Scotland would, he trusted, "with time, become but as Cumberland and Northumberland and

those other remote and northern shires". Commissioners were appointed, and in 1606 they produced a scheme which involved commercial equality except with regard to cloth and meat, the exception being made by mutual consent. The discussion on the Union question raised the subject of naturalization, and the rights of the *post-nati*, i.e. Scots born after James's accession to the throne. The royal prerogative became involved in the discussion and a test case was prepared. Some land in England was bought for the infant grandson of Lord Colvill, or Colvin, of Culross. An action was raised against two defendants who refused him possession of the land, and they defended themselves on the ground that the child, as an alien, could not possess land in England. It was decided that he, as a natural-born subject of the King of Scotland, was also a subject of the King of England. This decision, and the repeal of the laws treating Scotland as a hostile country, proved the only result of the negotiations for union. The English Parliament would not listen to any proposal for commercial equality, and the king had to abandon his cherished project.

James had boasted to his English Parliament that, if they agreed to commercial equality, the Scottish estates would, in three days, adopt English law. It is doubtful if the acquiescence even of the Scottish Parliament would have gone so far; but there can be no doubt that the English succession had made James more powerful in Scotland than any of his predecessors had been. "Here I sit", he said, "and governe Scotland with my pen. I write and it is done, and by a clearke of the councell I governe Scotland now, which others could not doe by the sword." The boast was justified by the facts. The king's instructions to his Privy Council, which formed the Scottish executive, are of the most dictatorial description. James gives his orders in the tone of a man who is accustomed to unswerving obedience, and he does not hesitate to reprove his erring ministers in the severest terms of censure. The whole business of Parliament was conducted by the Lords of the Articles, who represented the spiritual and temporal lords, and the Commons. All the bishops were the king's creatures, and by virtue of their position, entirely dependent on him. It was therefore arranged that the prelates should choose representatives of the temporal lords, and they took care to select men who supported the king's policy. The peers were allowed to choose representatives of the bishops, and could not avoid electing the king's friends, while the representatives of the spiritual and

temporal lords choose men to appear for the small barons and the burgesses. In this way the efficient power of Parliament was completely monopolized, and none dared to dispute the king's will. Even the Church was reduced to an unwilling submission, which, from its very nature, could only be temporary. He forbade the meeting of a General Assembly; and the convening of an Assembly at Aberdeen, in defiance of his command, in 1605, served to give him an opportunity of imprisoning or banishing the Presbyterian leaders. He had to give up his scheme of abolishing the Presbyterian Church courts, and contented himself with engrafting on to the existing system the institution of Episcopacy, which had practically been in abeyance since 1560, although Scotland was never without its titular prelates. Bishops were appointed in 1606; presbyteries and synods were ordered to elect perpetual moderators, and the scheme was devised so that the moderator of almost every synod should be a bishop. The members of the Linlithgow Convention, which accepted this scheme, were specially summoned by the king, and it was in no sense a free Assembly of the Church. But the royal power was, for the present, irresistible; in 1610 an Assembly which met at Glasgow established Episcopacy, and its action was, in 1612, ratified by the Scots Parliament. Three of the Scottish bishops^[88] received English orders, to ensure the succession; but, to prevent any claim of superiority, neither English primate took any part in the ceremony. In 1616, the Assembly met at Aberdeen, and the king made five proposals, which are known as the Five Articles of Perth, from their adoption there in 1618. The Five Articles included:—(1) The Eucharist to be received kneeling; (2) the administration of the sacrament of the Lord's Supper to sick persons in private houses; (3) the administration of Baptism in private houses in cases of necessity; (4) the recognition of Christmas, Good Friday, Easter, and Pentecost; and (5) the episcopal benediction. Scottish opposition centred round the first article, which was not welcomed even by the Episcopalian party, and it required the king's personal interference to enforce it in Holyrood Chapel, during his stay in Edinburgh in 1616-17. His proposal to erect in the chapel representations of patriarchs and saints shocked even the bishops, on whose remonstrances he withdrew his orders, incidentally administering a severe rebuke to the recalcitrant prelates, "at whose ignorance he could not but wonder". Not till the following year were the articles accepted at Perth, under fear of the royal displeasure, and considerable difficulty was experienced in enforcing them.

The only other Scottish measures of James's reign that demand mention are his attempts to carry out his policy of plantations in the Highlands. As a whole, the scheme failed, and was productive of considerable misery, but here and there it succeeded, and it tended to increase the power of the government. The end of the reign is also remarkable for attempts at Scottish colonization, resulting in the foundation of Nova Scotia, and in the Plantation of Ulster.

FOOTNOTES:

[80] Fénelon, i, 133 and 162.

[81] Mary to Elizabeth, 8th Nov., 1582. Strickland's *Letters of Mary Stuart*, i, p. 294.

[82] Calderwood, *History of the Kirk of Scotland*, v, 341-42.

[83] *Ibid*, pp. 396-97.

[84] James Melville's *Autobiography and Diary*, p. 370.

[85] *Basilikon Doron*.

[86] Cf. the present writer's *Scottish Parliament before the Union of the Crowns*.

[87] *Basilikon Doron*.

[88] The old controversy about the relation of the Church of Scotland to the sees of York and Canterbury had been finally settled, in 1474, by the erection of St. Andrews into a metropolitan see. Glasgow was made an archbishopric in 1492.

CHAPTER X

"THE TROUBLES IN SCOTLAND"

The new reign had scarcely begun when trouble arose between King Charles and his Scottish subjects. On the one hand, he alienated the nobles by an attempt, partially successful, to secure for the Church some of its ancient revenues. More serious still was his endeavour to bring the Scottish Church into uniformity with the usage of the Church of England. James had understood that any further attempt to alter the service or constitution of the Church of Scotland would infallibly lead to serious trouble. He had given up an intention of introducing a new prayer-book to supersede the "Book of Common Order", known as "Knox's Liturgy", which was employed in the Church, though not to the exclusion of extemporary prayers. When Charles came to Edinburgh to be crowned, in 1633, he made a further attempt in this direction, and, although he had to postpone the introduction of this particular change, he left a most uneasy feeling, not only among the Presbyterians, but also among the bishops themselves. An altar was erected in Holyrood Chapel, and behind it was a crucifix, before which the clergy made genuflexions. He erected Edinburgh into a bishopric, with the Collegiate Church of St. Giles for a cathedral, and the Bishops of Edinburgh, as they followed in rapid succession, gained the reputation of innovators and supporters of Laud and the English. Even more dangerous in its effect was a general order for the clergy to wear surplices. It was widely disobeyed, but it created very great alarm.

In 1635, canons were issued for the Church of Scotland, which owed their existence to the dangerous meddling of Laud, now Archbishop of Canterbury. James, who loved Episcopacy, had dreaded the influence of Laud in Scotland; his fear was justified, for it was given to Laud to make an Episcopal Church impossible north of the Tweed. Although certain of the Scottish bishops had expressed approval of these canons, they were enjoined in the Church by royal authority, and the Scots, whose theory of the rights of the Church was much more "high" than that of Laud, would, on

this account alone, have met them with resistance. But the canons used words and phrases which were intolerable to Scottish ears. They spoke of a "chancel" and they commended auricular confession; they gave the Scottish bishops something like the authority of their English brethren, to the detriment of minister and kirk-session, and they made the use of a new prayer-book compulsory, and forbade any objection to it. Two years elapsed before the book was actually introduced. It was English, and it had been forced upon the Church by the State, and, worse than this, it was associated with the hated name of Laud and with his suspected designs upon the Protestant religion. When it came it was found to follow the English prayer-book almost exactly; but such changes as there were seemed suspicious in the extreme. In the communion service the rubric preceding the prayer of consecration read thus: "During the time of consecration he shall stand at such a part of the holy table where he may with the more ease and decency use both his hands". The reference to both hands was suspected to mean the Elevation of the Host, and this suspicion was confirmed by the omission of the sentences "Take and eat this in remembrance that Christ died for thee, and feed on him in thy heart by faith, with thanksgiving", and "Drink this in remembrance that Christ's blood was shed for thee, and be thankful", from the words of administration. On more general grounds, too, strong objection was taken to the book, and on July 23rd, 1637, there occurred the famous riot in St. Giles's, which has become connected with the name of Jennie Geddes. The objection was not, in any sense, to read prayers in themselves; the Book of Common Order had been read in St. Giles's that very morning. The difficulty lay in the particular book, and it is notable that the cries which have come down to us as prefacing the riot are all indicative of a suspected attempt to reintroduce Roman Catholicism. "The mass is entered upon us." "Baal is in the Church." "Darest thou sing mass in my lug."

The Privy Council was negligent in punishing the rioters, and it soon became evident that they had public opinion behind them. Alexander Henderson, who ministered to a Fifeshire congregation in the old Norman church of Leuchars, and whom the king was to meet in other circumstances, issued a respectful and moderate protest, in which he did not deal with the particular points at issue, but asserted the ecclesiastical independence of Scotland. Riots continued to disturb Edinburgh, and Charles was impotent to suppress them. He refused Henderson's "Supplication"; its supporters

drew up a second petition boldly asking that the bishops should be tried as the real authors of the disturbances, and, in November, 1637, they chose a body of commissioners to represent them. These commissioners, and some sub-committees of them, are known in Scottish history as The Tables, the name being applied to several different bodies. Charles replied to the second petition in wrathful terms, and it was decided to revive the National Covenant of 1581, to renounce popery. It had been drawn up under fear of a popish plot, and was itself an expansion of the Covenant of 1557. To it was now added a declaration suited to immediate necessities. On the 1st and 2nd March, 1638, it was signed by vast multitudes in the churchyard of Greyfriars, in Edinburgh, and it continued to be signed, sometimes under pressure, throughout the land. Hamilton, Charles's agent in Scotland, was quite unable to meet the situation. In the end Charles had to agree to the meeting of a General Assembly in Glasgow, in November, 1638. Hamilton, the High Commissioner, attempted to obtain the ejection of laymen and to create a division among his opponents. When he failed in this, he dissolved the Assembly in the king's name. At the instance of Henderson, supported by Argyll, the Assembly refused to acknowledge itself dissolved, and proceeded to abolish Episcopacy and re-establish the Presbyterian form of Church government.

The king, on his part, began to concert measures with his Privy Council for the subjugation of Scotland. The "Committee on Scotch affairs" of the English Privy Council was obviously unconstitutional, but matters were fast drifting towards civil war, and it was no time to consider constitutional niceties. It is much more important that the committee was divided and useless. Wentworth, writing from Ireland, advised the king to maintain a firm attitude, but not to provoke an outbreak of war at so inconvenient a moment. Charles again attempted a compromise. He offered to withdraw Laud's unlucky service-book, the new canons, and even the Articles of Perth, and to limit the power of the bishops; and he asked the people to sign the Covenant of 1580-81, on which the new Covenant was based, but which, of course, contained no reference to immediate difficulties. But it was too late; the sentiment of religious independence had become united to the old feeling of national independence, and war was inevitable. The Scots were fortunate in their leaders. In the end of 1638 there returned to Scotland from Germany, Alexander Leslie, the great soldier who had fought for

Protestantism under Gustavus Adolphus. In February, 1639, he took command of the army of the Covenant, which had been largely reinforced by veterans from the Thirty Years' War. A more attractive personality than Leslie's was that of the young Earl of Montrose, who had attached himself with enthusiasm to the national cause, and had attempted to convert the people of Aberdeen to covenanting principles. Charles, on his part, asserted that his throne was in danger, and that the Scottish preparations constituted a menace to the kingdom of England, and so attempted to rouse enthusiasm for himself.

While the king was preparing to reinforce the loyalist Marquis of Huntly at Aberdeen, the news came that the garrisons of Edinburgh and Dunbarton had surrendered to the insurgents (March, 1639), who, a few days later, seized the regalia at Dalkeith. On March 30th Aberdeen fell into the hands of Montrose and Leslie, and Huntly was soon practically a prisoner. Charles had by this time reached York, and it was now evident that he had entirely miscalculated the strength of the enemy. He had hoped to subdue Scotland through Hamilton and Huntly; he now saw that, if Scotland was to be conquered at all, it must be through an English army. The first blood in the Civil War was shed near Turriff, in Aberdeenshire (May 14th, 1639), where some of Huntly's supporters gained a slight success, after which the city of Aberdeen fell into their hands for some ten days, when it was reoccupied by the Covenanters. Meanwhile Charles and Leslie had been facing each other near Berwick; the former unwilling to risk his raw levies against Leslie's trained soldiers, while the Covenanters were not desirous of entering into a war in which they might find the whole strength of England ultimately arrayed against them. On the 18th June the two parties entered into the Pacification of Berwick, in accordance with which both armies were to be disbanded, and Charles promised to allow a free General Assembly and a free Parliament to govern Scotland. While the pacification was being signed at Berwick, a battle was in progress at Aberdeen, where, on June 18th-19th, Montrose gained a victory, at the Bridge of Dee, over the Earl of Aboyne, the eldest son of the Marquis of Huntly. For the third time, Montrose spared the city of Aberdeen, and Scotland settled down to a brief period of peace.

It was clear that the pacification was only a truce, for no exact terms had been agreed upon, and both sides thoroughly distrusted each other. Disputes immediately arose about the constitution of Parliament and the Assembly.

Charles refused to rescind the acts constituting Episcopacy legal, and it is clear that he never intended to keep his promise to the Scots, who, on their part, were too suspicious of his good faith to carry out their part of the agreement. In the end Assembly and Parliament alike abolished Episcopacy, and Parliament passed several acts to ensure its own supremacy. Charles refused to assent to these Acts, and prorogued Parliament from November, 1639, to June, 1640. The result of the king's evident disinclination to implement the Treaty of Berwick, was an interesting attempt to undo the work of the preceding century by a reversion to the old policy of a French alliance. It was, of course, impossible thus to turn back, and Richelieu met the Scottish offers with a decisive rebuff, while the fact of these treasonable negotiations became known to Charles, and embittered the already bitter controversy. A new attempt at negotiation failed, and in June, 1640, the second Bishops' War began. As usual the north suffered, especially from the fierceness of the Earl of Argyll, who disliked the more moderate policy advocated by Montrose. The king's English difficulties were increasing, and the Scots had now many sympathizers among Englishmen, who looked upon them as fighting for the same cause of Protestantism and constitutional government.

In August the Scots invaded England for the first time since the minority of Mary Stuart, and, on August 28th, they defeated a portion of the king's army at Newburn, a ford near Newcastle. The town was immediately occupied, and from Newcastle the invaders advanced to the Tees and seized Durham. Charles was forced, a second time, to give way. In October he agreed that the Scottish army of occupation should be paid until the English Parliament, which he was about to summon, might make a final arrangement. By Parliament alone could the Scots be paid, and thus, by a strange irony of fate, the occupation of the northern counties by a Scottish army was, for the time, the best guarantee of English liberties. There were, however, points on which the Scottish army and the English Parliament found it difficult to agree, and it was not till August, 1641, that the Scots recrossed the Tweed. Charles, who hoped to enlist the sympathy of the Scots in his struggle with the English Parliament, paid a second visit to Edinburgh, where he gave his assent to the abolition of Episcopacy, and to the repeal of the Acts which had given rise to the dispute. But it became evident that the Parliament, and not the king, was to bear rule in Scotland. The king's stay in Edinburgh was

marked by what is known as "The Incident", a mysterious plot to capture Argyll and Hamilton, who was now the ally of Argyll. It was supposed that the king was cognizant of the plan; he had to defend himself from the accusation, and was declared guiltless in the matter. At the time of the Incident, Argyll fled, but soon returned, and Charles had to yield to him in all things. Parliament, under Argyll, appointed all officials. Argyll himself was made a marquis, and Leslie became Earl of Leven. There was a general amnesty, and among those who obtained their liberty was the Earl of Montrose, who had been imprisoned in May for making terms with the king. In November, 1641, Charles left Scotland for London, to face the English Parliament. He can scarcely have hoped for Scottish aid, and when, a few months later, he was on the verge of hostilities and made a request for assistance, it was twice refused.

With the general course of the Great Rebellion we are not here concerned. It is important for our purpose to notice that it affected Scotland in two ways. The course of events converted, on the one hand, the Episcopalian party into a Royalist party, and placed at its head the Covenanter, Montrose. On the other hand, the National Covenant was transformed into the Solemn League and Covenant, which had for its aim the establishment of Presbytery in England as well as in Scotland. This "will o' the wisp" of covenanted uniformity led the Scottish Church into somewhat strange places. As early as January, 1643, Montrose had offered to strike a blow for the king in Scotland, but Charles would not take the responsibility of beginning the strife. In August negotiations began for the extension of the covenant to England. The Solemn League and Covenant, which provided for the abolition of Episcopacy in England, was adopted by the Convention of Estates at Edinburgh on August 17th, and in the following month it passed both Houses of Parliament in England, and was taken both by the House of Commons and by the Assembly of Divines at Westminster. Its only ultimate results were the substitution in Scotland of the Westminster Confession of Faith, Catechisms, and Directory for Public Worship, in place of the older Scottish documents, and the approximation of Scottish Presbytery to English Puritanism, involving a distinct departure from the ideals of the Scottish Reformation, and the introduction into Scotland of a form of Sabbatarianism which has come to be regarded as distinctively Scottish, but which owes its origin, historically, to English Nonconformity.

[89] Its immediate effects were the short-lived predominance of Presbytery in England, and the crossing of the Tweed, in January, 1644, by a Scottish army in the pay of the English Parliament. The part taken by the Scottish army in the war was not unimportant. In April they aided Fairfax in the siege of York; in July they took an honourable share in the battle of Marston Moor; they were responsible for the Uxbridge proposals which provided for peace on the basis of a Presbyterian settlement. In June, 1645, they advanced southwards to Mansfield, and, after the surrender of Carlisle, on June 28th, and its occupation by a Scottish garrison, Leven proceeded to Alcester and thereafter laid siege to Hereford, an attempt which events in Scotland forced him to abandon. Finally, in May, 1646, the king surrendered to the Scottish army at Newark, which had been invested by Leven since the preceding November.

While the Scottish army was thus aiding the Parliamentary cause, the Earl of Montrose had created an important diversion on the king's side in Scotland itself. In April, 1644, he occupied Dumfries and made an unsuccessful attempt on the Scottish Lowlands. In May Charles conferred on him a marquisate, and in August he prepared to renew the struggle. To his old foes, the Gordons, he first looked for assistance, but was finally compelled to raise his forces in the Highlands, and to obtain Irish aid. On September 1st he gained his first victory at Tippermuir, near Perth, on which he had marched with his Highland host. From Perth he marched on Aberdeen, gaining some reinforcements from the northern gentry, and in particular from the Earl of Airlie. Once again Montrose fought a battle which delivered the city of Aberdeen into his power (September 13th), but now he was unwilling or unable to protect the captured town, which was cruelly ravaged. From Aberdeen Montrose proceeded by Rothiemurchus to Blair Athole, but suddenly turned backwards to Aberdeenshire, where he defended Fyvie Castle, slipped past Argyll, and again reached Blair Athole. The enemies of Argyll crowded to his banner, but his army was still small when, in December, 1644, he made his descent upon Argyll, and reached the castle of Inverary. From Inverary he went northwards, ravaging as he went, till he found, at Loch Ness, that there was an army of 5000 men under the Earl of Seaforth prepared to resist his advance, while Argyll was behind him at Inverlochy. Although Argyll's army considerably outnumbered his own, Montrose turned southwards and made a rapid dash at Argyll's forces

as they lay at Inverlochy, and won a complete victory, the news of which dispersed Seaforth's men and enabled Montrose to invite Charles to a country which lay at his mercy. At Elgin he was joined by the heir of the Marquis of Huntly, his forces increased, and the excommunication which the Church immediately published against him seemed of but little importance. On April 4th he seized Dundee, and on May 9th won a fresh victory at Auldearn, which was followed, in rapid succession, by a victory at Alford in July, and in August by the "crowning mercy" of Kilsyth, which made him master of the situation, and forced Leven to raise the siege of Hereford. From Kilsyth he marched to Glasgow, where both the Highlanders and the Gordons began to desert him. From England, Leven sent David Leslie to meet Montrose as he marched by the Lothians into the border counties. On September 13th, 1645, just one year after his victory at Aberdeen, Montrose was completely defeated at Philiphaugh. He escaped, but his power was broken, and he was unable henceforth to take any important share in the war.

When Charles surrendered himself to the Scots, in May, 1646, his friends in Scotland were helpless, and he had to meet the Presbyterian leaders without any hope beyond that of being able to take advantage of the differences of opinion between Presbyterians and Independents, which were fast assuming critical importance. The king held at Newcastle a conference with Alexander Henderson, which led to no definite result. In the end the Scots offered to adopt the king's cause if he would accept Presbyterianism. This he declined to do, and his refusal left the Scots no choice except keeping him a prisoner or surrendering him to his English subjects. They owed him no gratitude, and, while it might be chivalrous, it could scarcely be expedient to retain his person. While he was unwilling to accede to their conditions they were powerless to give him any help. He was therefore handed over to the commissioners of the English Parliament, and the Scots, on the 30th January, 1647, returned home, having been paid, as the price of the king's surrender, the money promised them by the English Parliament when they entered into the struggle in 1644.

In the end of 1647 the Scots again entered into the long series of negotiations with the king. When Charles was a prisoner at Newport, and while he was arranging terms with the English, he entered into a secret agreement with commissioners from Scotland. The "Engagement", as it was

called, embodied the conditions which Charles had refused at Newcastle—the recognition of Presbytery in Scotland and its establishment in England for three years, the king being allowed toleration for his own form of worship. The Engagement was by no means unanimously carried in the Scottish Parliament, and its results were disastrous to Charles himself. It caused the English Parliament to pass the vote of No Addresses, and the second civil war, which it helped to provoke, had a share in bringing about his death. The Duke of Hamilton led a small army into England, where in August 17th, 1648, it was totally defeated by Cromwell at Preston. Meanwhile the Hamilton party had lost power in Scotland, and when Cromwell entered Scotland, Argyll, who had opposed the Engagement, willingly agreed to his conditions, and accepted the aid of three English regiments. In the events of the next six months Scotland had no part nor lot. The responsibility for the king's death rests on the English Government alone.

The news of the execution of the king was at once followed by the fall of Argyll and his party. The Scots had no sympathy with English republicanism, and they were alarmed by the growth of Independency in England. On February 5th Charles II was proclaimed King of Great Britain, France, and Ireland, and the Scots declared themselves ready to defend his cause by blood, if only he would take the Covenant. This the young king refused to do while he had hopes of success in Ireland. Meanwhile three of his most loyal friends perished on the scaffold. The English, who held the Duke of Hamilton as a prisoner, put him to death on March 9th, 1649, and on the 22nd day of the same month the Marquis of Huntly was beheaded at Edinburgh. On April 27th, Montrose, who had collected a small army and taken the field in the northern Highlands, was defeated at Carbisdale and taken prisoner. On the 25th May he was hanged in Edinburgh, and with his death the story is deprived of its hero.

The pressure of misfortune finally drove Charles to accept the Scottish offers. Even while Montrose was fighting his last battle, his young master was negotiating with the Covenanters. Conferences were held at Breda in the spring of 1650, and Charles landed at the mouth of the river Spey on the 3rd July, having taken the Covenant. In the middle of the same month Cromwell crossed the Tweed at the head of an English army. The Scots, under Leven and David Leslie, took up a position near Edinburgh, and, after

a month's fruitless skirmishing, Cromwell had to retire to Dunbar, whither Leslie followed him. By a clever manœuvre, Leslie intercepted Cromwell's retreat on Berwick, while he also seized Doon Hill, an eminence commanding Dunbar. The Parliamentary Committee, under whose authority Leslie was acting, forced him to make an attack to prevent Cromwell's force from escaping by sea. The details of the battle have been disputed, and the most convincing account is that given by Mr. Firth in his "Cromwell". When Leslie left the Doon Hill his left became shut in between the hill and "the steep ravine of the Brock burn", while his centre had not sufficient room to move. Cromwell, therefore, after a feint on the left, concentrated his forces against Leslie's right, and shattered it. The rout was complete, and Leslie had to retreat to Stirling, while the Lowlands fell into Cromwell's hands. Cromwell was conciliatory, and a considerable proportion of Presbyterians took up an attitude hostile to the king's claims. The supporters of Charles were known as Resolutioners, or Engagers, and his opponents as Protesters or Remonstrants. The consequence was that the old Royalists and Episcopalians began to rejoin Charles. Before the battle of Dunbar (September 2nd) Charles had been really a prisoner in the hands of the Covenanters, who had ruled him with a rod of iron. As the stricter Presbyterians withdrew, and their places were filled by the "Malignants" whom they had excluded from the king's service, the personal importance of Charles increased. On January 1st, 1651, he was crowned at Scone, and in the following summer he took up a position near Stirling, with Leslie as commander of his army. Cromwell outmanœuvred Leslie and seized Perth, and the royal forces retaliated by the invasion of England, which ended in the defeat of Worcester on September 3rd, 1651, exactly one year after Dunbar. The king escaped and fled to France.

Scotland was now unable to resist Monk, whom Cromwell had left behind him when he went southwards to defeat Charles at Worcester. On the 14th August he captured Stirling, and on the 28th the Committee of Estates was seized at Alyth and carried off to London. There was no further attempt at opposition, and all Scotland, for the first time since the reign of Edward I, was in military occupation by English troops. The property of the leading supporters of Charles II was confiscated. In 1653 the General Assembly was reduced to pleading that "we were an ecclesiastical synod, a spiritual court of Jesus Christ, which meddled not with anything civil"; but their

unwonted humility was of no avail to save them. An earlier victim than the Assembly was the Scottish Parliament. It was decided in 1652 that Scotland should be incorporated with England, and from February of that year till the Restoration, the kingdom of Scotland ceased to exist. The "Instrument" of Government of 1653 gave Scotland thirty members in the British Parliament. Twenty were allotted to the shires—one to each of the larger shires and one to each of nine groups of less important shires. There were also eight groups of burghs, each group electing one member, and two members were returned by the city of Edinburgh. Between 1653 and 1655 Scotland was governed by parliamentary commissioners, and, from 1655 onwards, by a special council. The Court of Session was abolished, and its place taken by a Commission of Justice.^[90] The actual union dates from 1654, when it was ratified by the Supreme Council of the Commonwealth of England, but Scotland was under English rule from the battle of Worcester. The wise policy of allowing freedom of trade, like the improvement in the administration of justice, failed to reconcile the Scots to the union, and, to the end, it required a military force to maintain the new government.

As Scotland had no share in the execution of Charles I, so it had none in the restoration of his son. The "Committee of Estates", which met after the 29th of May, was not lacking in loyalty. All traces of the union were swept away, and the pressure of the new Navigation Act was severely felt in contrast to the freedom of trade that had been the great boon of the Commonwealth. But worse evils were in store. The "Covenanted monarch" was determined to restore Episcopacy in Scotland, and for this purpose he employed as a tool the notorious James Sharpe, who had been sent up to London to plead the cause of Presbytery with Monk. Sharpe returned to Scotland in the spring of 1661 as Archbishop of St. Andrews. Parliament met by royal authority and passed a General Act Rescissory, which rendered void all acts passed since 1638. The episcopal form of church government was immediately established. The Privy Council received enlarged powers, and was again completely subservient to the king. The execution of Argyll atoned for the death of Montrose, in the eyes of Royalists, and two notable ecclesiastical politicians, Johnston of Warriston and James Guthrie, were also put to death. An Indemnity Act was passed, but many men found that the king's pardon had its price. On October 1st, 1662, an act was passed

ordering recusant ministers to leave their parishes, and the council improved on the English Five Mile Act, by ordering that no recusant minister should, on pain of treason, reside within twenty miles of his parish, within six miles of Edinburgh or any cathedral town, or within three miles of any royal burgh. A Court of High Commission, which had been established by James VI in 1610, was again entrusted with all religious cases. The effect of these harsh measures was to rouse the insurrections which are the most notable feature of the reign. In 1666 the Covenanters were defeated at the battle of Pentland, or Rullion Green, and those who were suspected of a share in the rising were subjected to examination under torture, which now became one of the normal features of Charles's brutal government. Prisoners were hanged or sent as slaves to the plantations. In 1669, an Indulgence was passed, permitting Presbyterian services under certain conditions, but in 1670, Parliament passed a Conventicle Act, making it a capital crime to "preach, expound scripture, or pray", at any unlicensed meeting. On May 5th, 1679, Sharpe was assassinated near St. Andrews. The murderers escaped, and some of them joined the Covenanters of the west. The Government had determined to put a stop to the meetings of conventicles, and had chosen for this purpose John Graham of Claverhouse. On the 11th June, Claverhouse was defeated at Drumclog, but eleven days later he routed the Covenanting army at Bothwell Bridge, and took over a thousand prisoners. Only seven were executed, but the others were imprisoned in Greyfriars' churchyard, and a large number of them were sold as plantation slaves. A small rising at Aird's Moss in Ayrshire, in 1680, was easily suppressed. In 1681 the Scottish Parliament prescribed as a test the disavowal of the National Covenant of 1638 and the Solemn League and Covenant of 1644, and it declared that any attempt to alter the succession involved the subjects "in perjury and rebellion". In connection with the Test Act, an opportunity was found for convicting the Earl of Argyll^[91] of treason. His property was confiscated, but he himself was allowed to escape. The last years of the reign, under the administration of the Duke of York, were marked by exceptional cruelty in connection with the religious persecutions. The expeditions of Claverhouse, the case of the Wigtown martyrs, and the horrible cruelties of the torture-room have given to these years the title of "the Killing time".

The Scottish Parliament welcomed King James VII with fulsome adulation. But the new king was scarcely seated on the throne before a rebellion broke out. The Earl of Argyll adopted the cause of Monmouth, landed in his own country, and marched into Lanarkshire. His attempt was an entire failure: nobody joined his standard, and he himself, failing to make good his retreat, was captured and executed without a new trial. The Parliament again enforced the Test Act, and renewed the Conventicle Act, making it a capital offence even to be present at a conventicle. The persecutions continued with renewed vigour. James failed in persuading even the obsequious Parliament to give protection to the Roman Catholics. He attempted to obtain the same end by a Declaration of Indulgence, of which the Covenanters might be unable to avail themselves, but in its final form, issued in May, 1688, it included them. The conjunction of popery and absolute prerogative thoroughly alarmed the Scots, and the news of the English Revolution was received with general satisfaction. The effect of the long struggle had been to weaken the country in many ways. Thousands of her bravest sons had died on the scaffold or on the battle-field or in the dungeons of Dunnottar, or had been exiled to the plantations. Trade and commerce had declined. The records of the burghs show us how harbours were empty and houses ruinous, where, a century earlier, there had been a thriving trade. Scotland in 1688 was in every way, unless in moral discipline, poorer than she had been while England was still the "auld enemy".

FOOTNOTES:

[\[89\]](#) Sabbath observance had been introduced from England six centuries earlier. Cf. p. 14.

[\[90\]](#) Justices of the peace were appointed throughout the country, and heritable jurisdictions were abolished.

[\[91\]](#) The son of the Marquis who was executed in 1661. The earldom, but not the marquisate, had been restored in 1663.

CHAPTER XI

THE UNION OF THE PARLIAMENTS

1689-1707

On April 4th, 1689, a Convention of the Estates of Scotland met to consider the new situation which had been created by the course of events in England. They had no difficulty in determining their course of action, nor any scruples about deposing James, who was declared to have forfeited his right to the crown. A list was drawn up of the king's misdeeds. They included "erecting schools and societies of Jesuits, making papists officers of state", taxation and the maintenance of a standing army without consent of Parliament, illegal imprisonments, fines, and forfeitures, and interference with the charters of burghs. The crown was then offered to William and Mary, but upon certain strictly defined conditions. All the acts of the late king which were included in the list of his offences must be recognized as illegal: no Roman Catholic might be King or Queen of Scotland; and the new sovereigns must agree to the re-establishment of Presbytery as the national religion. It was obvious that the nation was not unanimous.

"To the Lords of Convention, 'twas Claverhouse spoke,
Ere the King's crown go down there are crowns to be broke."

The opponents of the revolution settlement consisted mainly of the old Royalist and Episcopalian party, the representatives of those who had followed Montrose to victory, and the supporters of the Restoration Government. As the Great Rebellion had made Royalists of the Scottish Episcopalians, so the Revolution could not but convert them into Jacobites. Their leader was James Graham of Claverhouse, who retreated from Edinburgh to the north to prepare for a campaign against the new government. The discontent was not confined to the Episcopalian party. Such Roman Catholics as there were in Scotland at the time were prepared to take up arms for a Stuart king who was a devout adherent of their religion. Moreover, the Presbyterians themselves were not united. A party which was to grow in strength, and which now included a considerable number of extreme Presbyterians, still longed, in spite of their experience of Charles II, for a covenanted king, and looked with great distrust upon William and Mary. The triumphant party of moderate Presbyterians, who probably represented most faithfully the feeling of the nation, acted throughout with considerable wisdom. The acceptance of the crown converted the Convention into a Parliament, and the Estates set themselves to obtain, in the first place, their own freedom from the tyranny of the committee known as the "Lords of the Articles", through which James VI and his successors had kept the Parliament in subjection. William was unwilling to lose entirely this method of controlling his new subjects, but he had to give way. The Parliament rescinded the Act of Charles II asserting his majesty's supremacy "over all persons and in all causes ecclesiastical" as "inconsistent with the establishment of Church government now desired", but, in the military crisis which threatened them, they proceeded no further than to bring in an Act abolishing Prelacy and all superiority of office in the Church of Scotland.

While William's first Parliament was debating, his enemies were entering upon a struggle which was destined to be brief. Edinburgh Castle held out for King James till June 14th, 1689, when its captain, the Duke of Gordon, capitulated. Graham of Claverhouse, now Viscount Dundee, had collected an army of Highlanders, against whom William sent General Mackay, a Scotsman who had served in Holland. Mackay followed Dundee through the Highlands to Elgin and on to Inverness, and finally, after many wanderings, the two armies met in the pass of Killiecrankie. Dundee and his Highlanders were victorious, but Dundee himself was killed in the battle, and his death proved a fatal blow to the Jacobite cause. After some delay Mackay was able to attain the object for which the battle had been fought—the possession of Blair Athole Castle. The military resistance soon came to an end.

The ecclesiastical settlement followed the suppression of the rebellion. The deprivation of nonjuring clergymen had been proceeding since the establishment of the new Government, and in 1690 an act was passed restoring to their parishes the Presbyterian clergy who had been ejected under Charles II. A small temporary provision was made for their successors, who were now, in turn, expelled. On the 26th May, 1690, the Parliament adopted the Confession of Faith, although it refused to be committed to the Covenant. The Presbyterian form of Church government was established; but King William succeeded in maintaining some check on the General Assembly,

and toleration was granted to such Episcopalian dissenters as were willing to take the oath of allegiance. On the other hand, acceptance of the Confession of Faith was made a test for professors in the universities. The changes were carried out with little disturbance to the peace, there was no blood spilt, and except for some rough usage of Episcopalians in the west (known as the "rabbling of the curates"), there was nothing in the way of outrage or insult. The credit of the settlement belongs to William Carstares, afterwards Principal of the University of Edinburgh, whose tact and wisdom overcame many difficulties.

The personal union of Scotland and England had created no special difficulties while both countries were under the rule of an absolute monarch. The policy of both was alike, because it was guided by one supreme ruler. But the accession of a constitutional king, with a parliamentary title, at once created many problems difficult of solution, and made a more complete union absolutely necessary. The Union of 1707 was thus the natural consequence of the Revolution of 1689, although, at the time of the Revolution, scrupulous care was taken, alike by the new king and by his English Parliament, to recognize the existence of Scotland as a separate kingdom. The Scottish Parliament, which regarded itself as the ruler of the country, found itself hampered and restricted by William's action. It was allowed no voice on questions of foreign policy, and its conduct of home affairs met with not infrequent interference, which roused the indignation of Scottish politicians, and especially of the section which followed Fletcher of Saltoun. Several causes combined to add to the unpopularity which William had acquired through the occasional friction with the Parliament. Scotland had ceased to have any interest in the war, and its prolongation constituted a standing grievance, of which the partisans of the Stuarts were not slow to avail themselves.

There were two events, in particular, which roused widespread resentment in Scotland. These were the Massacre of Glencoe, and the failure of the scheme for colonizing the Isthmus of Darien. The story of Glencoe has been often told. The 31st December, 1691, had been appointed as the latest day on which the government would receive the submission of the Highland chiefs. MacDonald of Glencoe delayed till the last moment, and then proceeded to Fort-William, where a fortress had just been erected, to take the oath in the presence of its commander, who had no power to receive it. From Fort-William he had to go to Inverary, to take the oath before the sheriff of Argyll, and he did so on the 6th January, 1692. The six days' delay placed him and his clan in the power of men who were unlikely to show any mercy to the name of MacDonald. Acting under instructions from King William, the nature of which has been matter of dispute, Campbell of Glenlyon, acting with the knowledge of Breadalbane and Sir John Dalrymple of Stair, the Secretary of State, and as their tool, entered the pass of Glencoe on the 1st February, 1692. The MacDonalds, trusting in the assurances which had been given by the Government, seem to have suspected no evil from this armed visit of their traditional enemies, the Campbells, and received them with hospitality. While they were living peaceably, all possible retreat was being cut off from the unfortunate MacDonalds by the closing of the passes, and on the 13th effect was given to the dastardly scheme. It failed, however, to achieve its full object—the extirpation of the clan. Many escaped to the hills; but the chief himself and over thirty others were murdered in cold blood. The news of the massacre roused a fierce flame of indignation, not only in the Highlands, but throughout the Lowlands as well, and the Jacobites did not fail to make use of it. A commission was appointed to enquire into the circumstances, and it severely censured Dalrymple, and charged Breadalbane with treason, while many blamed, possibly unjustly, the king himself.

The other grievance was of a different nature. About 1695, William Paterson, the founder of the Bank of England, suggested the formation of a Scottish company to trade to Africa and the Indies. It was originally known as the African Company, but it was destined to be popularly remembered by the name of its most notable failure—the Darien Company. It received very full powers from the Scottish Parliament, powers of military colonization as well as trading privileges. These powers aroused great jealousy and indignation in England, and the House of Commons decided that, as the company had its headquarters in London, the directors were guilty of high crimes and misdemeanours. There followed a failure of the English capital on which the promoters had reckoned, but shares to the value of £400,000 (on which £219,094 was paid up) were subscribed in Scotland. At first the company was a prosperous trading concern, but its only attempt at colonization involved it in ruin. Paterson wished his fellow-countrymen to found a colony in the Isthmus of Panama, and to attract thither the whole trade of North and South America. The ports of the colony were to be open to ships of all nations. In the end of 1698 twelve hundred Scots landed on the shore of the Gulf of Darien, without organization and without the restraint of responsibility to any government. They soon had difficulties with their Spanish neighbours, and the English colonists at New York, Barbadoes, and Jamaica were warned to render them no assistance. Disease and famine completed the tale of misery, and the first colonists deserted their posts. Their successors, who arrived to find empty huts, surrounded by lonely Scottish graves, were soon in worse plight, and they were driven out by a band of Spaniards. The unfortunate company lingered on for some time, but merely as traders. The Scots blamed the

king's ill-will for their failure, and he became more than ever unpopular in Scotland. The moral of the whole story was that only through the corporate union of the two countries could trade jealousies and the danger of rival schemes of colonization be avoided.

In the reign of Charles II the Scots, who felt keenly the loss of the freedom of trade which they had enjoyed under Cromwell, had themselves broached the question of union, and William had brought it forward at the beginning of his reign. It was, however, reserved for his successor to see it carried. In March, 1702, the king died. The death of "William II", as his title ran in the kingdom of Scotland, was received with a feeling amounting almost to satisfaction. The first English Parliament of Queen Anne agreed to the appointment of commissioners to discuss terms of union, and the Estates of Scotland chose representatives to meet them. But the English refused to give freedom of trade, and so the negotiations broke down. In reply, the Scottish Parliament removed the restrictions on the import of wines from France, with which country England was now at war. In the summer of 1703 the Scots passed an Act of Security, which invested the Parliament with the power of the crown in case of the queen's dying without heirs, and entrusted to it the choice of a Protestant sovereign "from the royal line". It refused to such king or queen, if also sovereign of England, the power of declaring war or making peace without the consent of Parliament, and it enacted that the union of the crowns should determine after the queen's death unless Scotland was admitted to equal trade and navigation privileges with England. Further, the act provided for the compulsory training of every Scotsman to bear arms, in order that the country might, if necessary, defend its independence by the sword. The queen's consent to the Act of Security was refused, and the bitterness of the national feeling was accentuated by the suspicion of a Jacobite plot. Parliament had been adjourned on 16th September, 1703. When it met in 1704 it again passed the Act of Security, and an important section began to argue that the royal assent was merely a usual form, and not an indispensable authentication of an act. For some time, it seemed as if the two countries were on the brink of war. But, as the union of the crowns had been rendered possible by the self-restraint of a nation who could accept their hereditary enemy as their hereditary sovereign, so now Queen Anne's advisers resolved, with patient wisdom, to secure, at all hazards, the union of the kingdoms.

It was not an easy task, even in England, for there could be no union without complete freedom of trade, and many Englishmen were most unwilling to yield on this point. In Scotland the difficulties to be overcome were much greater. The whole nation, irrespective of politics and religion, felt bitterly the indignity of surrendering the independent existence for which Scotland had fought for four hundred years. It could not but be difficult to reconcile an ancient and high-spirited people to incorporation with a larger and more powerful neighbour, and the whole population mourned the approaching loss of their Parliament and their autonomy. Almost every section had special reasons for opposing the measure. For the Jacobites an Act of Union meant that Scotland was irretrievably committed to the Hanoverian succession, and whatever force the Jacobites might be able to raise after the queen's death must take action in the shape of a rebellion against the *de facto* government. It deprived them of all hope of seizing the reins of power, and of using the machinery of government in Scotland for the good of their cause—a *coup d'état* of which the Act of Security gave considerable chance. On this very account the triumphant Presbyterians were anxious to carry the union scheme, and the correspondence of the Electress Sophia proves that the negotiations for union were looked upon at Hanover as solely an important factor in the succession controversy. But the recently re-established Presbyterian Church of Scotland regarded with great anxiety a union with an Episcopalian country, and hesitated to place their dearly won freedom at the mercy of a Parliament the large majority of whom were Episcopalians. The more extreme Presbyterians, and especially the Cameronians of the west, were bitterly opposed to the project. They protested against becoming subject to a Parliament in whose deliberations the English bishops had an important voice, and against accepting a king who had been educated as a Lutheran, and they clamoured for covenanted uniformity and a covenanted monarch. By a curious irony of fate, the Scottish Episcopalians were forced by their Jacobite leanings to act with the extreme Presbyterians, and to oppose the scheme of amalgamation with an Episcopalian country. The legal interest was strongly against a proposal that might reduce the importance of Scots law and of Scottish lawyers, while the populace of Edinburgh were furious at the suggestion of a union, whose result must be to remove at once one of the glories of their city and a valuable source of income. There was still another body of opponents. The reign of William had been remarkable for the rise of political parties. The two main factions were known as Williamites and Cavaliers, and in addition to these there had grown up a Patriot or Country party. It was brought into existence by the enthusiasm of Fletcher of Saltoun, and it was based upon an antiquarian revival which may be compared with the mediæval attempts to revive the Republic of Rome. The aim of the patriots was to maintain the independence of Scotland, and they attempted to show that the Scottish crown had never been under feudal obligations to England, and that the Scottish Parliament had always possessed sovereign rights, and could govern independently of the will of the monarch. They were neither Jacobites nor Hanoverians; but they held that if the foreign domination, of which they

had complained under William, were to continue, it mattered little whether it emanated from St. Germain's or from the Court of St. James's, and they had combined with the Jacobites to pass the Act of Security.

Such was the complicated situation with which the English Government had to deal. Their first step was to advise Queen Anne to assent to the Act of Security, and so to conserve the dignity and *amour propre* of the Scottish Parliament. Commissioners were then appointed to negotiate for a union. No attempt was made to conciliate the Jacobites, for no attempt could have met with any kind of success. Nor did the commissioners make any effort to satisfy the more extreme Presbyterians, who sullenly refused to acknowledge the union when it became an accomplished fact, and who remained to hamper the Government when the Jacobite troubles commenced. An assurance that there would be no interference with the Church of Scotland as by law established, and a guarantee that the universities would be maintained in their *status quo*, satisfied the moderate Presbyterians, and removed their scruples. Unlike James VI and Cromwell, the advisers of Queen Anne declared their intention of preserving the independent Scots law and the independent Scottish courts of justice, and these guarantees weakened the arguments of the Patriot party. But above all the English proposals won the support of the ever-increasing commercial interest in Scotland by conceding freedom of trade in a complete form. They agreed that "all parts of the United Kingdom of Great Britain be under the same regulations, prohibitions, and restrictions, and liable to equal impositions and duties for export and import". The adjustment of financial obligations was admitted to involve some injustice to Scotland, and an "equivalent" was allowed, to compensate for the responsibility now accruing to Scotland in connection with the English National Debt. It remained to adjust the representation of Scotland in the united Parliament. It was at first proposed to allow only thirty-eight members, but the number was finally raised to forty-five. Thirty of these represented the shires. Each shire was to elect one representative, except the three groups of Bute and Caithness, Clackmannan and Kinross, and Nairn and Cromarty. In each group the election was made alternately by the two counties. Thus Bute, Clackmannan, and Nairn each sent a member in 1708, and Caithness, Kinross, and Cromarty in 1710. The device is sufficiently unusual to deserve mention. The burghs were divided into fifteen groups, each of which was given one member. In this form, after considerable difficulty, the act was carried both in Scotland and in England. It was a union much less extensive than that which had been planned by James VI or that which had been in actual force under Cromwell. The existence of a separate Church, governed differently from the English Establishment, and the maintenance of a separate legal code and a separate judicature have helped to preserve some of the national characteristics of the Scots. Not for many years did the union become popular in Scotland, and not for many years did the two nations become really united. It might, in fact, be said that the force of steam has accomplished what law has failed to do, and that the real incorporation of Scotland with England dates from the introduction of railways.

APPENDIX A

REFERENCES TO THE HIGHLANDERS IN MEDIÆVAL LITERATURE

I. AELRED (12th Century)

Account of the Battle of the Standard

"Rex interim, coactis in unum comitibus, optimisque regni sui proceribus, coepit cum eis de belli ratione tractare, placuitque plurimis, ut quotquot aderant armati milites et sagittarii cunctum praeirent exercitum, quatenus armati armatos impeterent, milites congredierentur militibus, sagittae sagittis obviarent. Restitere Galwenses, dicentes sui esse juris primam construere aciem.... Cum rex militum magis consiliis acquiescere videretur, Malisse comes Stradarniae plurimum indignatus: 'Quid est,' inquit, 'o rex, quod Gallorum te magis committis voluntati, cum nullus eorum cum armis suis me inermem sit hodie praecessurus in bello?' ... Tunc rex ... ne tumultus hac altercatione subitus nasceretur, Galwensium cessit voluntati. Alteram aciem filius regis et milites sagittarii cum eo, adjunctis sibi Cumbrensibus et Tevidalensibus cum magna sagacitate constituit.... Conjunxerat se ei ejusque interfuit aciei Eustacius filius Joannis de magnis proceribus Angliae ... qui a rege Anglorum ideo recesserat.... Tertium cuneum Laodonenses cum Insulanis et Lavernanis fecerunt. Rex in sua acie Scotos et Muranenses retinuit, nonnullos etiam de militibus Anglis et Francis ad sui corporis custodiam deputavit."—Aelred, *De Bello Standardii*, Migne, *Patrologia Latina*, vol. cxcv, col. 702-712.

2. JOHN OF FORDUN (d. 1394?)

(a) Description of the Highlanders

"Mores autem Scotorum secundum diversitatem linguarum variantur; duabus enim utuntur linguis, Scotica videlicet, et Teutonica; cujus linguae gens maritimas possidet et planas regiones: linguae vero gens Scotiae montanas inhabitat, et insulas ultiores. Maritima quoque domestica gens est, et culta, fida, patiens, et urbana; vestitu siquidem honesta, civilis atque pacifica; circa cultum divinum devota, sed et obviandis hostium injuriis semper prona. Insulana vero, sive montana, ferma gens est et indomita, rudis et immorigerata, raptu capax, otium diligens, ingenio docilis et callida; forma spectabilis, sed amictu deformis; populo quidem Anglorum et linguae, sed et propriae nationi, propter linguarum diversitatem, infesta jugiter et crudelis. Regi tamen et regno fidelis et obediens, nec non faciliter legibus subdita, si regatur.... Scotica gens ea ab initio est quae quondam in Hibernia fuit, et ei similis per omnia, lingua, moribus, et natura."—*Scotichronicon*, Bk. ii, ch. ix.

This contrast between the Highlanders and the civilized Scots must be read in the light of Fordun's general view of the work of the descendants of Malcolm Canmore. He describes how David I changed the Lowlanders into civilized men, but never hints that he did so by introducing Englishmen. He represents the whole nation (outside the old Northumbrian kingdom) as Picts and Scots, on whose antiquity he lays stress, and merely mentions that Malcolm Canmore welcomed English refugees. The following extracts show that he looked upon the Lowlanders, not as a separate race from the Highlanders, but simply as men of the same barbarian race who had been civilized by David:—

"Unde tota illa gentis illius barbaries mansuefacta, tanta se mox benevolentia et humilitate substravit, ut naturalis oblita saevitiae, legibus quas regia mansuetudo dictabat, colla submitteret, et pacem quam eatenus nesciebat, gratanter acciperet."—Bk. v, ch. xxxvii.

"Ipse vero pretiosis vestibus pallia tua pilosa mutavit et antiquam nuditatem byssa et purpura texit. Ipse barbaros mores tuos Christiana religione composuit...."—Bk. v, ch. xliii.

(b) Coronation of Alexander III as a king of Scots

"Ipso quoque rege super cathedram regalem, scilicet, lapidem, sedente, sub cujus pedibus comites ceterique nobiles sua vestimenta coram lapide curvatis genibus sternebant. Qui lapis in eodem monasterio reverenter ob regum Albaniae consecrationem servatur. Nec uspiam aliquis regum in Scotia regnare solebat,^[92] nisi super eundem lapidem regum in accipiendum nomen prius sederet in Scona, sede vero superiori, videlicet Albaniae constituta regibus ab antiquis. Et ecce, peractus singulis, quidam Scotus montanus ante thronum subito genuflectens materna lingua regem inclinato capite salutavit hiis Scoticis verbis, dicens:—'Benach de Re Albanne Alexander, mac Alexander, mac Vleyham, mac Henri, mac David', et sic pronunciando regum Scotorum genealogiam usque in finem legebat. Quod ita Latine sonat:—'Salve rex Albanorum Alexander, filii Alexandri ... filii Mane, filii Fergusii, primi Scotorum regis in Albania'. Qui quoque Fergusius fuit filius Feredach, quamvis a quibusdam dicitur filius Ferechere, parum tamen discrepant in sono. Haec discrepantia forte scriptoris constat vitio propter difficultatem loquelae. Deinde dictam genealogiam dictus Scotus ab homine in hominem continuando perlegit donec ad primum Scotum, videlicet, Iber Scot, pervenit."—*Annals*, xlviii.

3. BOOK OF PLUSCARDEN (written in the latter half of the 15th century)

Account of Harlaw

"Item anno Domini m^occccxi fuit conflictus de Harlaw, in Le Gariach, per Donaldum de Insulis contra Alexandrum comitem de Mar et vicecomitem Angusiae, ubi multi nobiles ceciderunt in bello. Eodem anno combusta est villa de Cupro casualiter."—Bk. x, ch. xxii.

4. WALTER BOWER (d. 1449)

Account of Harlaw

"Anno Dom. millesimo quadringentesimo undecimo, in vigilia sancti Jacobi Apostoli, conflictus de Harlaw in Marria, ubi Dovenaldus de Insulis cum decem millibus de insulanis et hominibus suis de Ross hostiliter intravit terram cis montes, omnia conculcans et depopulans, ac in vastitatem redigens; sperens in illa expeditione villam regiam de Abirdene spoliare, et consequenter usque ad aquam de Thya suae subicere ditioni. Et quia in tanta multitudine ferali occupaverunt terram sicut locustae, conturbati sunt omnes de dominica terra qui videbant eos, et timuit omnis homo. Cui occurrit Alexander Stewart, comes de Marr, cum Alexandro Ogilby vicecomite de Angus, qui semper et ubique justitiam dilexit, cum potestate de Mar et Garioch, Angus et Mernis, et facto acerrimo congressu, occisi sunt ex parte comitis de Mar Jacobus Scrymgeour constabularius de Dundé, Alexander de Irevin, Robertus de Malvile et Thomas Murrave milites, Willelmus de Abirmethy ... et alii valentes armigeri, necnon Robertus David consul de Abirdene, cum multis burgensibus. De parte insulanorum cecidit campidoctor. Maclane nomine, et dominus Dovenaldus capitaneus fugatus, et ex parte ejus occisi nongenti et ultra, ex parte nostra quingenti, et fere omnes generosi de Buchane."—Lib. xv, ch. xxi.

5. JOHN MAJOR OR MAIR (1469-1550)

(a) References to the Scottish nation, and description of the Gaelic-speaking population

"Cum enim Aquitaniam, Andegaviam, Normanniam, Hiberniam, Valliamque Angli haberent, adhuc sine bellis in Scotia civilibus, nihil in ea profecerunt, et jam mille octingentos et quinquaginta annos in Britannia Scoti steterunt, hodierno die non minus potentes et ad bellum propensi quam unquam fuerint...."—*Greater Britain*, Bk. i. ch. vii.

"Praeterea, sicut Scotorum, uti diximus, duplex est lingua, ita mores gemini sunt. Nam in nemoribus Septentrionalibus et montibus aliqui nati sunt, hos altae terrae, reliquos imae terrae viros vocamus. Apud externos priores Scoti sylvestri, posteriores domestici vocantur, lingua Hibernica priores communiter utuntur, Anglicana posteriores. Una Scotiae medietas Hibernice loquitur, et nos omnes cum Insularis in sylvestrium societate deputamus. In veste, cultu et moribus, reliquis puta domesticis minus honesti sunt, non tamen minus ad bellum praecipites, sed multo magis, tum quia magis boreales, tum quia in montibus nati et sylvicolae, pugnatiores suapte natura sunt. Penes tamen domitos est totius regni pondus et regimen, quia melius vel minus male quam alii politizant."—Bk. i, ch. viii.

"Adhuc Scotiae ferme medietas Hibernice loquitur, et a paucis retroactis diebus plures Hibernice loquuti sunt."—Bk. i, ch. ix.

(b) Account of Harlaw

"Anno 1411, praelium Harlaw apud Scotos famigeratum commissum est. Donaldus insularum comes decies mille viris clarissimis sylvestribus Scotis munitus, Aberdoniam urbem insignam et alia loca spoliare proposuit; contra quem Alexander Steuartus comes Marrae, et Alexander Ogilvyus Angusia vice-comes suos congregant et Donaldo Insularum apud Harlaw occurrunt. Fit atrox et acerrima pugna; nec cum exteris praelium periculosius in tanto numero unquam habitum est; sic quod in schola grammaticali juvenculi ludentes, ad partes oppositas nos solemus retrahere, dicentes nos praelium de Harlaw struere velle. Licet communius a vulgo dicatur quod sylvestres Scoti erant victi, ab annalibus tamen oppositum invenio: solum Insularum comes coactus est retrocedere, et plures occisos habuit quam Scoti domiti...."—Bk. vi, ch. x.

6. HECTOR BOECE (1465?-1536)

(a) Account of the differences between Highlanders and Lowlanders

"Nos vero qui in confinio Angliae sedes habemus, sicut Saxonum linguam per multa commercia bellaque ab illis didicimus nostramque deseruimus; ita priscos omnes mores reliquimus, priscusque nobis scribendi mos ut et sermo incognitus est. At qui montana incolunt ut linguam ita et caetera prope omnia arctissime tumentur.... Labentibus autem seculis idque maxime circa Malcolmi Canmoir tempora mutari cuncta coeperunt. Vicinis enim Britannis primum a Romanis subactis ocioque enervatis, ac postea a Saxonibus expulsis commilitii eorum commercio nonnihil, mox Pictis quoque deletis ubi affinitate Anglis coniungi coepimus, expanso, ut ita dicam, gremio mores quoque eorum amplexi imbibimus. Minus enim prisca patrum virtus in pretio esse coeperat, permanente nihilominus vetere gloriae cupiditate. Verum haud recta insistentes via umbras germanae gloriae non veram sectabantur, cognomina sibi nobilitatis imponentes, eaque Anglorum more ostentantes atque iactantes, quum antea is haberi esseque nobilissimus soleret, qui virtute non opibus, qui egregiis a se factis non maiorum suorum clarus erat. Hinc illae natae sunt Ducum, Comitum, ac reliquorum id genus ad ostentationem confictae appellationes. Quum antea eiusdem potestatis esse solerent, qui Thani id est quaestores regii dicebantur illis muneribus ob fidem virtutemque donari."—*Scotorum Regni Descriptio*, prefixed to his History.

(b) Account of Harlaw

"Exortum est subinde ex Hebridibus bellum duce Donaldo Hebridiano injuria a gubernatore affecto. Nam Wilhelmus comes Rossensis filius Hugonis, is quem praelio ad Halidounhil periisse supra memoratum est,^[93] duas habuit filias, quarum natu maiorem Waltero Leslie viro

nobilissimo coniugem dedit una cum Rossiae comitatu. Walterus susceptis ex ea filio Alexandro nomine, quem comitem Rossiae fecit, et filia, quam Donaldto Hebridiano uxorem dedit, defunctus est. Alexander ex filia Roberti gubernatoris, quam duxerat, unam duntaxat filiam reliquit, Eufemiam nomine, quae admodum adhuc adolescentula erat, dum pater decederet, parumque rerum perita. Eam gubernator [Albany], blanditiis an minis incertum, persuasam induxit, ut resignato in ipsum comitatu Rossensi, ab eo rursum reciperet his legibus, ut si ipsa sine liberis decederet, ad filium eius secundo natum rediret. Quod si neque ille masculam prolem reliquisset, tum Robertus eius frater succederet, ac si in illo quoque defecisset soboles, tum ad regem rediret Rossia. Quibus astute callideque peractis haud multo post Eufemia adhuc virgo moritur, ut ferebatur, opera gubernatoris sublata, ut ad filium comitatus veniret. Ita Ioannes, quum antea Buthquhaniae comes fuisset Rossiae comitatum acquisivit, et unicam tantum filiam reliquit, quam Willelmus à Setoun eques auratus in coniugem accepit; unde factum est ut eius familiae principes ius sibi Buthquhaniae vendicent. At Donaldus qui amitam Eufemiae Alexandri Leslie sororem, uxorem habebat, ubi Eufemiam defunctam audivit, à gubernatore postulavit ex haereditate Rossiae comitatum; ubi quum ille nihil aequi respondisset, collecta ex Hebridibus ingenti manu, partim vi, partim benevolentia, secum ducens Rossiam invadit, nee magno negotio in ditionem suam redegit, Rossianis verum recipere haeredem haud quaquam recusantibus. Verum eo successu non contentus, nec se in eorum quae iure petiverat, finibus continens, Moraviam. Bogaevallum iisque vicinas regiones hostiliter depopulando in Gareotham pervenit, Aberdoniam, uti minitabatur, direpturus. Caeterum in tempore obvians temeritati eius Alexander Stuart Alexandri filii Roberti regis secundi comitis Buthquhaniae nothus, Marriae comes ad Hairlau (vicus est pugna mox ibi gesta cruentissima insignis) haud expectatis reliquis auxiliis cum eo congressus est. Qua re factum est, ut dum auxilia sine ordinibus (nihil tale suspicantes) cum magna negligentia advenirent, permulti eorum caesi sint, adeoque ambigua fuerit victoria, ut utrique se in proximos montes desertis castris victoria cedentes receperint. Nongenti ex Hebridianis et iis qui Donaldto adhaeserant cedere cum Makgillane et Maktothe praecipuis post Donaldum ducibus. Ex Scotis adversae partis vir nobilis Alexander Ogilvy Angusiae vice-comes singulari iustitia ac probitate praeditus, Jacobus Strimger Comestabulis Deidoni magno animo vir ac insigni virtute, et ad posteros clarus, Alexander Irrvein à Drum ob praecipuum robur conspicuus, Robertus Maul à Pammoir, Thomas Moravus, Wilhelmus Abernethi à Salthon, Alexander Strathon à Loucenstoun, Robertus Davidstoun Aberdoniae praefectus; hi omnes equites aurati cum multis aliis nobilibus eo praelio occubere. Donaldus victoriam hostibus prorsus concedens, tota nocte quanta potuit celeritate ad Rossiam contendit, ac inde qua proxime dabatur, in Hebrides se recepit. Gubernator in sequenti anno cum valido exercitu Hebrides oppugnare parans, Donaldum veniam supplicentem, ac omnia praestitutum damna illata pollicentem, nec deinceps iniuriam ullam illaturum iurantem in gratiam recepit."—*Scotorum Historiae*, Lib. xvi.

7. JOHN LESLEY (1527-1596)

Contrast between Highlanders and Lowlanders

"Angli etenim sicut et politiores Scoti antiqua illa Saxonum lingua, quae nunc Anglica dicitur promiscue, alia tamen atque alia dialecto loquuntur. Scotorum autem reliqui quos exteri (quod majorum suorum instituta, ac antiquam illam simplicemque amiciendi ac vivendi formam mordicus adhuc teneant) feros et sylvestres, montanos dicimus, prisca sua Hibernica lingua utuntur."—*De Gestis Scotorum*, Lib. i. (*De Populis Regnis et Linguis*.)

8. GEORGE BUCHANAN (1506-1582)

Account of Harlaw

"Altero vero post anno, qui fuit a Christo 1411, Donaldus Insulanus (Ebudarum dominus cum Rossiam iuris calumnia per Gubernatorem sibi ablatam, velut proximus haeres (uti erat) repeteret, ac nihil aequi impetraret, collectis insulanorum decem millibus in continentem descendit; ac

Rossiam facile occupavit, cunctis libenter ad iusti domini imperium redeuntibus. Sed ea Rossianorum parendi facilitas animum praedae avidum ad maiora audenda impulit. In Moraviam transgressus eam praesidio destitutam statim in suam potestatem redegit. Deinde Bogiam praedabundus transivit; et iam Abredoniae imminebat. Adversus hunc subitum et inexpectatum hostem Gubernator copias parabat; sed cum magnitudo et propinquitas periculi auxilia longinqua expectare non sineret, Alexander Marriae Comes ex Alexandro Gubernatoris fratre genitus cum tota ferme nobilitate trans Taum ad Harlaum vicum ei se objecit. Fit praelium inter pauca cruentum et memorabile: nobilium hominum virtute de omnibus fortunis, deque gloria adversus immanem feritatem decertante. Nox eos diremit magis pugnando lassos, quam in alteram partem re inclinata adeoque incertus fuit eius pugnae exitus, ut utrique cum recensuissent, quos viros amisissent, sese pro victis gesserint. Hoc enim praelio tot homines genere, factisque clari desiderati sunt, quot vix ullus adversus externos conflictus per multos annos absumpsisse memoratur. Itaque vicus ante obscurus ex eo ad posteritatem nobilitatus est."—*Rerum Scotorum Historia*, Lib. x.

FOOTNOTES:

[92] This was written after the stone had been carried to England.

[93] He had fallen in the front rank of the Scottish army at Halidon Hill.

APPENDIX B

THE FEUDALIZATION OF SCOTLAND

The object of this Appendix is to give a summary of the process by which Anglo-Norman feudalism came to supersede the earlier Scottish civilization. For a more detailed account, the reader is referred to Skene's *Celtic Scotland*, Robertson's *Scotland under her Early Kings*, and Mr. Lang's *History of Scotland*.

The kingdom^[94] of which Malcolm Canmore became the ruler in 1058 was not inhabited by clans. It had been, from of old, divided into seven provinces, each of which was inhabited by tribes. The tribe or tuath was governed by its own chief or king (Ri or Toisech); each province or Mor Tuath was governed by Ri Mor Tuath or Mormaer,^[95] and these seven Mormaers seem (in theory, at all events) to have elected the national king, and to have acted as his advisers. The tribe was divided into freemen and slaves, and freemen and slaves alike were subdivided into various classes—noble and simple; serfs attached to land, and personal bondmen. The land was held, not by the tribe in general, but by the *ciniod* or near kin of the *flath* or senior of each family within the tribe. On the death of a senior, the new senior was chosen (generally with strict regard to primogeniture) from among the nearest in blood, and all who were within three degrees of kin to him, shared in the joint-proprietary of the proceeds of the land. The senior had special privileges and was the representative and surety of the *ciniod*, and the guardian of their common interests. After the third generation, a man ceased to be reckoned among the *ciniod*, and probably received a small personal allotment. Most of his descendants would thus be landless, or, if they held land, would do so by what soon amounted to servile tenure. Thus the majority of the tribe had little or nothing to lose by the feudalization that was approaching.

The changes of Malcolm's reign are concerned with the Church, not with land-tenure. But the territorialization of the Church, and the abolition of the ecclesiastical system of the tribe, foreshadowed the innovations that Malcolm's son was to introduce. We have seen that an anti-English reaction followed the deaths of Malcolm and Margaret. This is important because it involved an expulsion of the English from Scotland, which may be compared with the expulsion of the Normans from England after the return of Godwin. Our knowledge of the circumstances is derived from the following statement of Symeon of Durham:—

"Qua [Margerita] mortua, Dufenaldum regis Malcolmi fratrem Scotti sibi in regem elegerunt, et omnes Anglos qui de curia regis extiterunt, de Scotia expulerunt. Quibus auditis, filius regis Malcolmi Dunechan regem Willelmum, cui tune militavit, ut ei regnum sui patris concederet, petiit, et impetravit, illique fidelitatem juravit. Et sic ad Scotiam cum multitudine Anglorum et Normannorum properavit, et patrum suum Dufenaldum de regno expulit, et in loco ejus regnavit. Deinde nonnulli Scottorum in unum congregati, homines illius pene omnes peremerunt. Ipse vero vix cum paucis evasit. Veruntamen post haec illum regnare permiserunt, ea ratione, ut amplius in Scotiam nec Anglos nec Normannos introduceret, sibi que militare permetteret."-*Rolls Series edn.*, vol. ii, p. 222.

It was not till the reign of Alexander I (1107-1124) that the new influences made any serious modification of ancient custom. The peaceful Edgar had surrounded himself with English favourites, and had granted Saxon charters to Saxon landholders in the Lothians. His brother, Alexander, made the first efforts to abolish the old Celtic tenure. In 1114, he gave a charter to the monastery of Scone, and not only did the charter contemplate the direct holding of land from the king, but the signatories or witnesses described themselves as Earls, not as Mormaers. The monastery was founded to commemorate the suppression of a revolt of the Celts of Moray, and the earls who witnessed the charter bore Celtic names. This policy of taking advantage of rebellions to introduce English civilization became a characteristic method of the kings of Scotland. Alexander's successor, David I, set himself definitely to carry on the work which his brother had begun. He found his opportunity in the rising of Malcolm MacHeth, Earl of Moray. To this rising we have already referred in the Introduction. It was the greatest effort made against the innovations of the anti-national sons of Malcolm Canmore, and its leader, Malcolm MacHeth, was the representative of a rival line of kings. David had to obtain the assistance, not only of the Anglo-Normans by whom he himself was surrounded, but also of some of the barons of Northumberland and Yorkshire, with whom he had a connection as Earl of Huntingdon, for the descendant of the Celtic kings of Scotland was

himself an English baron. We have seen that David captured MacHeth and forfeited the lands of Moray, which he regranted, on feudal terms, to Anglo-Normans or to native Scots who supported the king's new policy. The war with England interrupted David's work, as a long struggle with the Church had prevented his brother, Alexander, from giving full scope to the principles that both had learned in the English Court; but, by the end of David's reign, the lines of future development had been quite clearly laid down. The Celtic Church had almost disappeared. The bishops of St. Andrews, Dunkeld, Moray, Glasgow, Ross, Caithness, Aberdeen, Dunblane, Brechin, and Galloway were great royal officers, who inculcated upon the people the necessity of adopting the new political and ecclesiastical system. The Culdee monasteries were dying out; north of the Forth, Scone had been founded by Alexander I as a pioneer of the new civilization, and, after the defeat of Malcolm MacHeth and the settlement of Moray, David, in 1150, founded the Abbey of Kinloss. The Celtic official terms were replaced by English names; the Mormaer had become the Earl, the Toisech was now the Thane, and Earl and Thane alike were losing their position as the royal representative, as David gradually introduced the Anglo-Norman *vice-comes* or sheriff, who represented the royal Exchequer and the royal system of justice. David's police regulations tended still further to strengthen the nascent Feudalism; like the kings of England, he would have none of the "lordless man, of whom no law can be got", and commendation was added to the forces which produced the disintegration of the tribal system. Not less important was the introduction of written charters. Alexander had given a written charter to the monastery of Scone; David gave private charters to individual land-owners, and made the possession of a charter the test of a freeholder. Finally, it is from David's reign that Scottish burghs take their origin. He encouraged the rise of towns as part of the feudal system. The burgesses were tenants-in-chief of the king, held of him by charter, and stood in the same relation to him as other tenants-in-chief. So firmly grounded was this idea that, up to 1832, the only Scottish burgesses who attended Parliament were representatives of the ancient Royal Burghs, and their right depended, historically, not on any gift of the franchise, but on their position as tenants-in-chief. That there were strangers among the new burgesses cannot be doubted; Saxons and Normans mingled with Danes and Flemish merchants in the humble streets of the villages that were protected by the royal castle and that grew into Scottish towns; but their numbers were too few to give us any ground for believing that they were, in any sense, foreign colonies, or that they seriously modified the ethnic character of the land. Men from the country would, for reasons of protection, or from the impulse of commerce, find their way into the towns; it is certain that the population of the towns did not migrate into the country. The real importance of the towns lies in the part they played in the spread of the English tongue. To the influence of Court and King, of land tenure, of law and police, of parish priest and monk, and Abbot and Bishop, was added the persuasive force of commercial interest.

The death of David I, in 1153, was immediately followed by Celtic revolts against Anglo-Norman order. The province of Moray made a final effort on behalf of Donald Mac Malcolm MacHeth, the son of the Malcolm MacHeth of the previous reign, and of a sister of Somerled of Argyll, the ancestor of the Lord of the Isles. The new king, Malcolm IV, the grandson of David, easily subdued this rising, and it is in connection with its suppression that Fordun makes the statement, quoted in the Introduction, about the displacement of the population of Moray. There is no earlier authority for it than the fourteenth century, and the inherent probability in its favour is so very slight that but little weight can reasonably be assigned to it. David had already granted Moray to Anglo-Normans who were now in possession of the Lowland portion and who ruled the Celtic population. We should expect to hear something definite of any further change in the Lowlands, and a repopulation of the Highlands of Moray was beyond the limits of possibility. The king, too, had little time to carry out such a measure, for he had immediately to face a new rebellion in Galloway; he reigned for twelve years in all, and was only twenty-four years of age when he died. The only truth in Fordun's statement is probably that Malcolm IV carried on the policy of David I in regard to the land-owners of Moray, and forfeited the possessions of those who had taken part in MacHeth's rising. In Galloway, a similar policy was pursued. Some of the old nobility, offended perhaps by Malcolm's attendance on Henry II at Toulouse, in his capacity as an English baron, joined the defeated Donald MacHeth in an attempt upon Malcolm, at Perth, in 1160. MacHeth took refuge in Galloway, which the king had to invade three times before bringing it into subjection. Before his death, in 1165, Galloway was part of the feudal kingdom of Scotland.

Only once again was the security of the Anglo-Celtic dynasty seriously threatened by the supporters of the older civilization. When William the Lion, brother and successor of Malcolm IV, was the prisoner of Henry II, risings took place both in Galloway and in Moray. A Galloway chieftain, by name Gilbert, maintained an independent rule to his death in 1185, when William came to terms with his nephew and successor, Roland. In the north, Donald Bane Mac William, a great-grandson of Malcolm Canmore, raised the standard of revolt in 1181, and it was not till 1187 that the rebellion was finally suppressed, and Donald Bane killed. There were further risings, in Moray in 1214 (on the accession of Alexander II), and in Galloway in 1235. The chronicler, Walter of Coventry, tells us that these revolts were occasioned by the fact that recent Scottish kings had proved themselves Frenchmen rather than

Scots, and had surrounded themselves solely with Frenchmen. This is the real explanation of the support given to the Celtic pretenders. A new civilization is not easily imposed upon a people. Elsewhere in Scotland, the process was more gradual and less violent. In the eastern Lowlands there were no pretenders and no rebellions, and traces of the earlier civilization remained longer than in Galloway and in Moray. "In Fife alone", says Mr. Robertson, "the Earl continued in the thirteenth century to exercise the prerogatives of a royal Maor, and, in the reign of David I, we find in Fife what is practically the clan MacDuff."^[96] Neither in the eastern Lowlands, nor in the more disturbed districts of Moray and Galloway, is there any evidence of a radical change in the population. The changes were imposed from above. Mr. Lang has pointed out that we do not hear "of feuds consequent on the eviction of prior holders.... The juries, from Angus to Clyde, are full of Celtic names of the gentry. The Steward (FitzAlan) got Renfrew, but the *probi homines*, or gentry, remain Celtic after the reigns of David and William."^[97] The contemporary chronicler, Aelred, gives no hint that David replaced his Scottish subjects by an Anglo-Norman population; he admits that he was terrible to the men of Galloway, but insists that he was beloved of the Scots. It must not be forgotten that the new system brought Anglo-Norman justice and order with it, and must soon have commended itself by its practical results. The grants of land did not mean dispossession. The small owners of land and the serfs acquiesced in the new rule and began to take new names, and the Anglo-Norman strangers were in actual possession, not of the land itself, but of the *privilegia* owed by the land. Even with regard to the great lords, the statements have been slightly exaggerated; Alexander II was aided in crushing the rebellion of 1214-15 by Celtic earls, and in 1235 he subdued Galloway by the aid of a Celtic Earl of Ross.

We have attempted to explain the Anglicization of Scotland, south and east of "the Highland line", by the combined forces of the Church, the Court, Feudalism, and Commerce, and it is unnecessary to lay further stress upon the importance of these elements in twelfth century life. It may be interesting to compare with this the process by which the Scottish Highlands have been Anglicized within the last century and a half. It must, in the first place, be fully understood that the interval between the twelfth century and the suppression of the last Jacobite rising was not void of development even in the Highlands. "It is in the reign of David the First", says Mr. Skene,^[98] "that the sept or clan first appears as a distinct and prominent feature in the social organization of the Gaelic population", and it is not till the reign of Robert III that he finds "the first appearance of a distinct clan". Between the end of the fourteenth century and the middle of the eighteenth, the clan had developed a complete organization, consisting of the chief and his kinsmen, the common people of the same blood, and the dependants of the clan. Each clan contained several septs, founded by such descendants of chiefs as had obtained a definite possession in land. The writer of *Letters from a Gentleman in the North of Scotland in 1726*, mentions that the Highland clans were "subdivided into smaller branches of fifty or sixty men, who deduce their original from their particular chieftains, and rely upon them as their more immediate protectors and defenders".

The Hanoverian government had thus to face, in 1746, a problem in some respects more difficult than that which the descendants of Malcolm Canmore had solved. The clan organization was complete, and clan loyalty had assumed the form of an extravagant devotion; a hostile feeling had arisen between Highlands and Lowlands, and all feeling of common nationality had been lost. There was no such important factor as the Church to help the change; religion was, on the whole, perhaps rather adverse than favourable to the process of Anglicization. On the other hand, the task was, in other aspects, very much easier. The Highlands had been affected by the events of the seventeenth century, and the chiefs were no longer mere freebooters and raiders. The Jacobite rising had weakened the Highlands, and the clans had been divided among themselves. It was not a united opposition that confronted the Government. Above all, the methods of land-tenure had already been rendered subject to very considerable modification. Since the reign of James VI, the law had been successful in attempting to ignore "all Celtic usages inconsistent with its principles", and it "regarded all persons possessing a feudal title as absolute proprietors of the land, and all occupants of the land who could not show a right derived from the proprietor, as simple tenants"^[99] Thus the strongest support of the clan system had been removed before the suppression of the clans. The Government of George II placed the Highlands under military occupation, and began to root out every tendency towards the persistence of a clan organization. The clan, as a military unit, ceased to exist when the Highlanders were disarmed, and as a unit for administrative purposes when the heritable jurisdictions were abolished, and it could no longer claim to be a political force of any kind, for every vestige of independence was removed. The only individual characteristic left to the clan or to the Highlander was the tartan and the Celtic garb, and its use was prohibited under very severe penalties. These were measures which were not possible in the days of David as they

were in those of George. But a further step was common to both centuries—the forfeiture of lands, and although a later Government restored many of these to descendants of the attainted chiefs, the magic spell had been broken, and the proprietor was no longer the head of the clan. Such measures, and the introduction of sheep-farming, had, within sixty years, changed the whole face of the Highlands.

Another century has been added to Sir Walter's *Sixty Years Since*, and it may be argued that all the resources of modern civilisation have failed to accomplish, in that period, what the descendants of Malcolm Canmore effected in the twelfth and thirteenth centuries. This is true as far as language is concerned, but only with regard to language. The Highlanders have not forgotten the Gaelic tongue as the Lowlanders had forgotten it by the outbreak of the War of Independence.^[100] Various facts account for this. One of the features of recent days is an antiquarian revival, which has tended to preserve for Highland children the great intellectual advantage of a bi-lingual education. The very severance of the bond between chieftain and clan has helped to perpetuate the ancient language, for the people no longer adopt the speech of their chief, as, in earlier days, the Celt of Moray or of Fife adopted the tongue spoken by his Anglo-Norman lord, or learned by the great men of his own race at the court of David or of William the Lion. The Bible has been translated into Gaelic, and Gaelic has become the language of Highland religion. In the Lowlands of the twelfth century, the whole influence of the Church was directed to the extermination of the Culdee religion, associated with the Celtic language and with Celtic civilization. Above all, the difference lies in the rise of burghs in the Lowlands. Speech follows trade. Every small town on the east coast was a school of English language. Should commerce ever reach the Highlands, should the abomination of desolation overtake the waterfalls and the valleys, and other temples of nature share the degradation of the Falls of Foyers, we may then look for the disappearance of the Gaelic tongue.

Be all this as it may, it is undeniable that there has been in the Highlands, since 1745, a change of civilization without a displacement of race. We venture to think that there is some ground for the view that a similar change of civilization occurred in the Lowlands between 1066 and 1286, and, similarly, without a racial dispossession. We do not deny that there was some infusion of Anglo-Saxon blood between the Forth and the Moray Firth in the twelfth and thirteenth centuries; but there is no evidence that it was a repopulation.

FOOTNOTES:

[94] In this discussion the province of Lothian is not included.

[95] Ri Mortuath is an Irish term. We find, more usually, in Scotland, the Mormaer.

[96] *Op. cit.*, vol. i, p. 254.

[97] *History of Scotland*, vol. i, pp. 135-6.

[98] *Celtic Scotland*, vol. iii, pp. 303, 309.

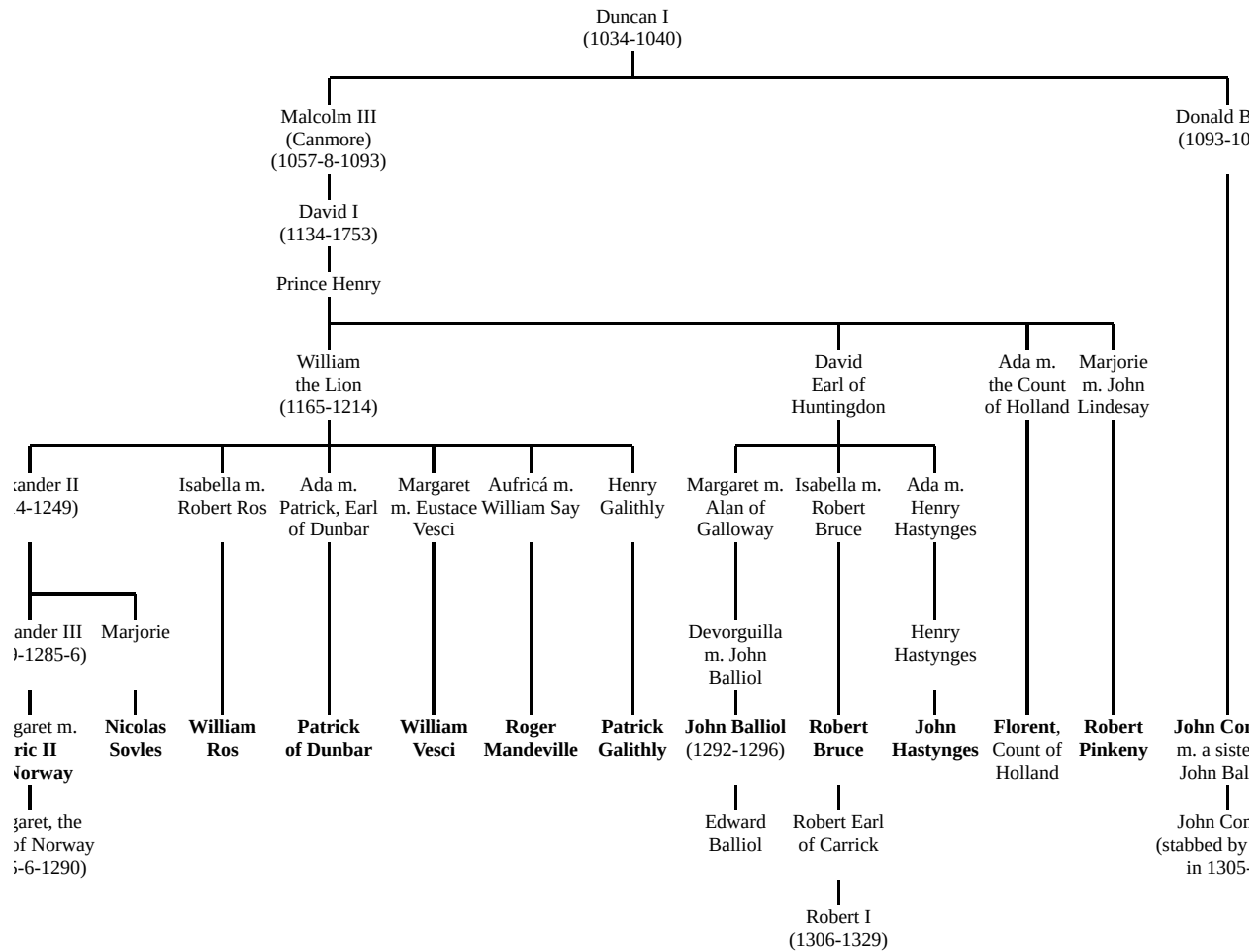
[99] *Celtic Scotland*, vol. iii, p. 368.

[100] It should of course be recollected that the Gaelic tongue must have persisted in the vernacular speech of the Lowlands long after we lose all traces of it as a literary language.

APPENDIX C

TABLE OF THE COMPETITORS OF 1290

(Names of the thirteen Competitors are in bold type)



INDEX

Abbey Craig, [42](#).
 Aberdeen, [xv](#), [xxvii](#), [xxix](#), [xxx](#), [xxxi](#), [40](#), [68](#), [70](#),
 [87](#), [162](#), [163](#), [164](#), [169](#), [170](#), [202](#).
 ---- Assembly at, [154](#), [154](#), [155](#).
 ---- Bishop of, [206](#).
 ---- University of, [xxxi](#), [105](#).
 Aberdeenshire, [xxvii](#), [xxxiv](#), [51](#), [87](#), [163](#), [169](#).
 Abernethy, [12](#).
 Abirdene, Robert of, [198](#).
 Aboyne, Earl of, [163](#).
Acts of the Parliament of Scotland, [xxi](#).
 Ada, daughter of Earl David, [35](#).
 Aelred of Rivaulx, [21](#), [195](#).
 Aethelstan, [5](#).
 Aird's Moss, rising at, [178](#).
 Airlie, Earl of, [169](#).
 Albany, [201](#).
 ---- Alexander, Duke of, [96](#), [97](#).
 ---- Duke of, [78](#), [80](#), [81](#), [82](#), [83](#), [84](#), [86](#), [88](#), [89](#).
 ----3rd Duke of, [109](#), [110](#), [111](#), [112](#).
 Alcester, [168](#).
 Alexander I, [17](#), [205](#), [207](#).
 ---- II, [28](#), [29](#), [32](#), [35](#), [36](#), [47](#), [209](#), [210](#).
 ---- III, [29](#), [30](#), [31](#), [36](#), [101](#), [197](#).
 ---- Earl of Mar, [198](#), [199](#).
 ---- son of Alexander III, [31](#).
 ---- of Lorn, [51](#), [53](#).
 ---- of Ross, [201](#).
 Alford, victory at, [170](#).
 Alnwick, [13](#), [26](#).
 ---- sacking of, [92](#).
 Alyth, [174](#).
 Ancrum Moor, battle of, [120](#).
 Angus, [198](#), [209](#).

Angus, Earl Archibald,	99 .
---- grandson of Earl Archibald,	109 , 110 , 111 , 112 , 113 , 115 , 118 , 119 , 120 , 133 .
Angus Og,	53 , 56 , 85 .
Annan,	67 .
Annandale,	32 , 47 , 48 , 50 .
Anne, Queen,	188 , 189 , 192 .
---- of Cleves,	113 .
"Answer to ane Helandmanis Invective",	xxxiv .
<i>Antiquité de la Nation et de la Langue des Celtes autrement appelez Gaulois</i> ,	2 .
Antony, Bishop of Durham,	44 .
Argyll, Bishop of,	xxxiv .
---- Earl of,	178 .
---- Highlanders of,	52 , 55 , 85 , 106 .
---- Marquis and Earl of,	161 , 164 , 166 , 169 , 172 , 176 .
Argyllshire,	xxiii , 3 , 23 , 25 , 185 .
Armada,	145 .
Arran,	83 .
---- Earl of (Chatelherault),	109 , 110 , 111 , 112 , 117 , 118 , 119 , 120 , 122 , 123 .
---- Earl of, son of Chatelherault,	127 , 128 , 130 .
Arthur, Prince,	99 .
<i>Auchinleck Chronicle</i> ,	xxxiv .
Auldearn, victory at,	170 .
Auxerre,	90 .
Ayr,	xvii .
Ayrshire, xxix, xxxiv,	51 , 52 , 178 .
Aytoun, Peace of,	100 .
Badenach, Celts of,	41 , 53 .
Bailleul, estate of,	39 .
Bakewell,	5 .

Balliol, Edward,	64 , 65 , 66 , 67 , 69 , 70 , 72 , 73 , 75 .
---- John,	27 , 34 , 35 , 37 , 38 , 39 , 43 , 45 , 48 , 50 , 65 , 79 .
Banff,	40 .
Bannockburn, battle of,	xiv , xxiv , 55 , 58 , 61 , 63 , 66 , 68 , 74 , 85 , 88 , 90 , 93 , 108 .
Barbadoes,	187 .
Barbour's <i>Bruce</i> ,	xxvi , xxvii .
Barton, Sir Andrew,	98 , 103 .
Baugé, battle of,	88 , 89 .
Beaton, Cardinal,	112 , 114 , 117 , 118 , 119 , 120 , 121 .
Beaufort, Joan,	89 .
Becket, Thomas,	26 .
Berwick,	3 , 39 , 43 , 51 , 57 , 58 , 73 , 76 , 83 , 91 , 94 , 96 , 163 , 173 .
---- county of,	69 , 73 , 82 .
---- pacification of,	163 .
---- siege of,	67 , 68 .
---- Treaty of,	164 .
Bigod, Earl of Norfolk,	44 .
Biland Abbey,	58 .
Birnam Wood,	9 .
Bishops' War,	164 .
"Black Agnes",	71 .
Blair Athole,	169 .
---- Castle,	182 .
Blind Harry's <i>Wallace</i> ,	xxvii , xxxiii .
Boece, Hector,	xxvii , xxviii , xxix , xxxi , 9 , 200 .
Boniface VIII,	45 .
"Book of the Howlat", the,	xxxiii .
"Book of Pluscarden", the,	xxx , 198 .
Borough-Muir of Edinburgh,	69 .
Bosworth, battle of,	97 .
Bothwell,	67 , 70 .

---- Earl of, [136](#), [137](#), [138](#).
---- Bridge, battle of, [178](#).
Boulogne, [69](#).
Bower, Walter, [xxx](#), [198](#).
Braemar, [87](#).
Brankston ridge, [106](#).
Breadalbane, Marquis of, [185](#), [186](#).
Brechin, [39](#).
---- Bishop of, [206](#).
Breda, Conference at, [173](#).
Bridge of Dee, battle of, [163](#).
Brigham, Treaty of, [33](#).
Brittany, [1](#).
Brockburn, [173](#).
Brown, Mr. Hume, [x](#).
Bruce, Alexander, [51](#),
---- Edward, [51](#), [55](#), [57](#).
---- Marjory, [51](#), [59](#), [69](#).
---- Nigel, [51](#).
---- Robert I, [xxiv](#), [45](#), [47](#), [48](#), [49](#), [50](#), [51](#), [52](#), [53](#),
[54](#), [55](#), [56](#), [57](#), [58](#), [59](#), [61](#), [62](#), [64](#), [65](#),
[66](#), [72](#), [85](#), [86](#).
---- Robert of Annandale, [32](#), [34](#), [35](#), [47](#).
---- Sir Thomas, [51](#).
Bruces, the, [13](#), [18](#), [24](#), [48](#).
Bruges, [68](#).
Buchan, Countess of, [50](#), [51](#).
---- earldom of, [53](#).
---- Earl of, [88](#), [90](#).
---- men of, [198](#).
Buchanan, George, [xxxii](#), [203](#).
Bull, Stephen, [98](#).
Burgh, Elizabeth de, [51](#).
---- Hubert de, [28](#), [35](#).

Burghead, xvii.	
Burgh-on-Sands,	52 .
Burgundy, Duchess of,	98 .
---- Duke of,	95 .
"Burned Candlemas",	73 .
Burton, Mr. Hill,	xiii , xxiv , xxvi , xxx , xxxi , xxxii .
Bute,	193 .
Cæsar, Julius,	1 , 2 .
Caithness, xxiii,	87 , 193 .
---- Bishop of,	206 .
Calderwood's <i>History of the Kirk</i> ,	147 .
Cambuskenneth, Abbey of,	43 .
---- Bridge, battle of,	42 .
---- Parliament at,	59 .
Camden's <i>Britannia</i> ,	xxxiii .
Campbell, Sir Nigel,	53 .
Campbell of Glenlyon,	185 .
Canute,	8 .
Carberry Hill,	137 .
Carbisdale, defeat at,	172 .
Cardross, castle of,	64 .
Carham, battle of,	8 .
Carlisle,	52 , 67 , 94 , 168 .
Carrick,	xxiv , 47 , 51 .
---- earldom of,	45 .
---- men of,	56 , 85 .
Carrickfergus,	57 .
Carstares, William,	183 .
Casket Letters,	138 , 141 .
Cateau-Cambresis, Treaty of,	124 .
Cecil, Lord Burleigh,	125 , 127 , 133 .
Cecilia, d. of Edward IV,	96 .
Charles I,	157 , 160 , 161 , 162 , 163 , 164 , 165 , 166 , 167 , 168 , 169 , 170 , 171 , 176 .

---- II, [172](#), [173](#), [174](#), [175](#), [176](#), [177](#), [181](#),
[182](#), [183](#), [187](#).
 Chatelherault, Duke of, [123](#).
 Chester, [7](#).
 Chevy Chase, battle of, [78](#).
 Clackmannan, [193](#).
 Clarence, Lionel of, [74](#), [80](#).
 Clement III, [27](#).
 Clitheroe, victory at, [20](#).
 Clyde, river, [64](#), [84](#), [209](#).
 Colvin of Culross, [152](#).
 Comyn, John, [45](#), [46](#), [48](#), [49](#), [50](#), [53](#), [85](#).
 Comyns, the, [48](#).
 Conventicle Act, [177](#), [179](#).
 Cowton Moor, [200](#).
 Crawford, defeat of, [107](#).
 Creçy, battle of, [70](#), [72](#).
 Cressingham, Hugh of, [40](#), [41](#).
 Crevant, battle of, [90](#).
 Cromarty, [193](#).
 Cromwell, Oliver, [172](#), [173](#), [174](#), [187](#), [192](#), [193](#).
 Cullen, [40](#).
 Cumberland, [13](#), [23](#), [25](#), [151](#)
 ---- ravaged, [78](#).
 Cumbria, [6](#), [12](#), [17](#), [195](#).
 Cupar, [xxx](#), [198](#).
 Dacre, Lord, [108](#), [111](#).
 Dalkeith, [163](#).
 Dalriada, kingdom of, [3](#), [4](#).
 Dalry, defeat at, [51](#).
 Dalrymple, Father James, [xxiv](#).
 ---- Sir John, of Stair, [185](#), [186](#).
 "Dance of the Seven Deadly Sins", [xxxv](#).
 Darc, Joan, [90](#).

Darien Scheme, [184](#), [186](#), [187](#).
 Darnley, [90](#).
 ---- Lord, [110](#), [119](#), [129](#), [133](#), [134](#), [135](#), [136](#),
[137](#), [138](#), [141](#), [142](#), [143](#).
[xix](#), [xxi](#), [xxii](#), [xxiv](#), [xxvii](#), [xxviii](#), [17](#),
 David I, [18](#), [19](#), [20](#), [21](#), [22](#), [23](#), [24](#), [25](#),
[26](#), [34](#), [85](#), [196](#), [207](#), [208](#), [209](#), [210](#),
[211](#), [212](#), [213](#).
 ---- II, [59](#), [64](#), [69](#), [70](#), [71](#), [72](#), [73](#), [74](#), [75](#).
 ---- Earl of Huntingdon, [24](#), [28](#), [34](#), [35](#), [206](#).
 ---- son of Alexander III, [31](#).
 Davidstone, Robert, [202](#).
 Davison, Secretary, [145](#).
 Declaration of Indulgence, [179](#).
 De Coucy, Enguerand, [29](#).
 ---- Marie, [29](#).
 Dee, river, [7](#).
De Northynbrorum Comitibus, [7](#).
 Derbyshire, [5](#).
 Dingwall, defeat near, [87](#).
 Don Carlos, [132](#).
 Donald, Clan of, [87](#).
 Donald Bane, [16](#), [48](#), [209](#).
 ---- of the Isles, [xiv](#), [xxv](#), [xxx](#), [86](#), [87](#), [148](#), [199](#), [201](#),
[202](#), [203](#).
 Doon Hill, [173](#).
 Douglas, David, [91](#).
 ---- Earl of, [78](#), [81](#), [82](#), [92](#).
 ---- 6th Earl William, [91](#).
 ---- 8th Earl William, [92](#), [95](#), [96](#), [97](#).
 ---- Gavin, [xxvii](#).
 ---- House of, [xxx](#), [xxxiii](#), [83](#), [116](#).
 ---- Lord James, [51](#), [53](#), [57](#), [59](#), [67](#).
 ---- Lord James the Good, [92](#).

---- Lord James the Gross,	92 .
---- Sir Archibald,	67 .
Douglas, Sir George,	119 .
---- Sir James,	55 .
Douglasses, the,	xxiii , xxv , 82 , 92 , 93 .
Drumclog, battle of,	178 .
Dryburgh, Abbey of,	57 , 58 , 77 .
Dumbarton,	119 , 162 .
Dumfries,	92 , 168 .
---- convent of,	48 .
---- county of,	69 .
Dunbar,	4 , 136 .
---- battle of 1296,	39 .
---- battle of 1650,	173 , 174 .
---- burning of,	92 .
---- castle of,	70 , 71 .
---- earldom of,	12 .
---- William,	xxxiv , xxxv , 102 .
Dunbarton Castle,	139 .
Dunblane, Bishop of,	206 .
Duncan I,	8 , 9 .
Duncan, son of Malcolm III,	16 .
---- of Lorne,	xxxv .
Dundalk, defeat at,	57 .
Dundee,	xxiii , 170 , 198 .
---- castle of,	42 .
---- meeting at,	54 .
Dunkeld, Bishop of,	206 .
Dunottar, castle of,	179 .
Dunsinane,	9 .
Dupplin Moor, battle of,	21 , 66 , 67 , 68 , 70 , 72 , 82 , 108 .
Durham, city of,	19 , 72 , 165 .
---- Treaty of,	23 .
Eadred,	6 .

Earn, river,	66 .
Edderton,	xvii .
Edgar,	7 , 205 .
Edgar, son of Malcolm III,	16 , 17 , 18 .
Edgar the Atheling,	11 , 13 .
Edinburgh,	4 , 27 , 45 , 59 , 76 , 77 , 113 , 119 , 125 , 137 , 151 , 157 , 161 , 162 , 165 , 166 , 172 , 173 , 175 , 181 .
---- Bishop of,	158 .
---- castle of,	39 , 54 , 71 , 81 , 126 , 136 , 143 , 182 .
---- Convention at,	167 .
---- county of,	69 .
---- Presbytery of,	147 .
---- riots in,	160 .
---- Treaty of,	126 , 127 , 129 .
---- University of,	183 .
Edmund the Magnificent,	6 , 16 .
Edward I,	xi , xii , 27 , 29 , 31 , 32 , 33 , 34 , 35 , 36 , 37 , 38 , 39 , 40 , 41 , 42 , 43 , 44 , 45 , 46 , 47 , 48 , 49 , 50 , 51 , 52 , 59 , 60 , 62 , 64 , 66 , 70 , 74 , 179 .
---- II,	32 , 33 , 52 , 54 , 55 , 56 , 57 , 58 , 59 .
---- III,	59 , 64 , 65 , 67 , 68 , 69 , 70 , 73 , 74 , 75 .
---- IV,	61 , 94 , 95 , 96 , 97 .
---- VI,	118 , 131 .
---- the Black Prince,	75 .
---- the Elder,	5 .
Edwin,	4 .
Egfrith,	12 .
Elgin,	40 , 45 , 70 , 182 .
Elizabeth, Queen,	x , 124 , 125 , 127 , 128 , 129 , 130 , 131 , 132 , 133 , 134 , 136 , 138 , 139 , 141 , 142 , 143 , 144 , 145 , 146 .
Elphinstone, Bishop,	xxix , 105 .
"English Wooing", the,	119 .

Eric of Norway,	32 , 34 .
Esk, river,	115 .
Eugenia,	201 .
Eure, Sir Ralph,	120 .
Eustace of Boulogne,	17 .
Eustacius,	195 .
Evandale, Lord,	113 .
<i>Fair Maid of Perth</i> ,	81 .
Fairfax, Lord,	168 .
Falaise, castle of,	26 .
---- Treaty of,	27 , 28 .
Falkirk, battle of,	xvii , 44 , 55 , 56 , 66 .
Falkland,	81 .
Falls of Foyers,	213 .
Fast Castle,	84 .
Fénélon, La Mothe,	141 .
Ferdinand of Spain,	99 .
Feredach,	197 .
Fergus,	197 .
Fife,	xi , xiii , xv , xvii , xviii , xix , xxiii , xxxiv , 103 .
---- Celts of,	213 .
---- Earl of,	78 .
Fifeshire,	160 .
Firth, Mr. C.,	173 .
FitzAlan, or Steward,	210 .
Fitzalans, the,	18 .
Fitzpatrick, Sir Roger,	49 .
Five Mile Act,	177 .
Flamborough Head,	83 .
Fletcher of Saltoun,	184 , 191 .
Flodden, battle of,	xxiv , 21 , 72 , 103 , 104 , 105 , 106 , 107 , 108 , 111 .
Florence of Worcester,	7 , 9 .

<i>Flower</i> , the,	98 .
"Flyting",	xxxiv .
Fordun, John of,	xxii , xxvii , xxx , 196 , 208 .
Forfar,	xvii , xix .
Fort-William,	185 .
Forth, Firth of,	xii , 3 , 5 , 12 , 21 , 22 , 42 , 69 , 84 , 96 , 98 , 213 .
Fotheringay Castle,	144 .
"Foul Raid", the,	88 .
Francis I,	109 , 111 , 112 , 113 , 114 .
---- II,	122 , 123 , 124 , 125 , 127 , 128 .
Fraser, Bishop,	34 , 35 .
Frasers, the,	87 .
Frederick II, the Emperor,	35 .
Freeman, Edward,	x , xii , xv , xxiv , 6 , 7 , 85 , 88 .
Froude, Mr.,	138 .
Fyvie Castle,	169 .
Galloway,	xiii , xxi , xxii , xxiii , 22 , 25 , 208 , 209 , 210 .
---- Bishop of,	206 .
Gascony,	75 .
Gaul,	1 .
Gaveston, Piers,	54 .
Geddes, Jennie,	159 .
Geneva,	123 , 150 .
George II,	212 .
Gilbert of Galloway,	209 .
Giraldus Cambrensis,	xxvi , xxxii .
Glasgow,	51 , 170 .
---- Assembly at,	154 , 161 .
---- Bishop of,	206 .
---- University of,	xxxiv .
Glencoe, Massacre of,	184 , 185 .
Gloucester, Duke of,	96 .

---- meeting at, [13](#).
 Godwin, Earl, [205](#).
 Gordon, Duke of, [182](#).
 ---- Lady Katharine, [99](#).
 Gordons, the, xxiii, [168](#), [170](#).
 Gospatric of Northumberland, [12](#).
 Graham, John, of Claverhouse, [177](#), [178](#), [180](#), [181](#), [182](#).
Great Michael, the, [103](#).
 Green, J.R., [x](#), [xi](#), [xiii](#).
 Gregory IX, [35](#).
 Greyfriars, church of, [161](#), [178](#).
 Gruoch, wife of Mormaor, [8](#).
 Gueldres, Duke of, [102](#).
 Guise, Mary of, [114](#), [116](#), [117](#), [124](#), [125](#), [126](#).
 Gunpowder Plot, [150](#).
 Gustavus Adolphus, [162](#).
 Guthrie, James, [176](#).
 Haddington, xxxi, [3](#).
 ---- county of, [69](#).
 Hakon of Norway, [29](#).
 Halidon Hill, battle of, [21](#), [68](#), [72](#), [90](#), [201](#).
 Hall, the chronicler, [104](#).
 Hamburg, [43](#).
 Hamilton, Duke and Marquis of, [161](#), [163](#), [166](#), [171](#), [172](#).
 Hamiltons, the, [133](#).
 Hapsburgs, the, [129](#).
 Harlaw, battle of, [xiii](#), [xxiv](#), [xxv](#), [xxix](#), [xxxi](#), [xxxii](#), [87](#),
[88](#), [198](#), [199](#), [200](#), [201](#), [202](#), [203](#).
 Hastings, John, [35](#).
 Hebrides, xxix, [8](#).
 Henderson, Alexander, [160](#), [161](#), [170](#).
 Henry I, [17](#), [19](#).
 Henry II, [23](#), [25](#), [26](#), [27](#), [208](#), [209](#).
 ---- III, [28](#), [29](#), [35](#), [36](#).

---- IV,	xxv , 78 , 80 , 81 , 82 , 83 , 84 , 86 .
---- V,	88 , 89 .
---- VI,	93 , 94 , 95 .
---- VII,	61 , 97 , 98 , 99 , 101 , 102 , 103 .
---- VIII,	x , 103 , 104 , 105 , 109 , 110 , 111 , 112 , 113 , 114 , 115 , 116 , 117 , 118 , 119 , 120 , 121 , 131 .
---- II of France,	122 , 124 , 125 .
---- Prince of Scotland,	20 , 23 , 24 .
Hereford, Earl of,	44 .
---- siege of,	168 , 170 .
Herrings, battle of,	90 .
Hertford, Earl of,	119 , 120 , 121 .
Hexham Chronicle,	21 .
---- monastery of,	43 .
Holland, Richard,	xxxiii .
Holyrood,	102 , 133 , 138 , 155 , 157 .
Homildon Hill, battle of,	72 , 82 , 83 , 90 .
Hotspur, Sir Harry,	78 , 82 .
Howard, Sir Edmund,	106 .
Hugo of Ross,	201 .
Humber, river,	xii .
Hume, the historian,	138 .
Huntingdon, earldom of,	18 , 19 , 25 , 26 , 27 , 28 , 35 .
Huntly, Earl of,	99 , 131 .
---- Marquis of,	162 , 163 , 164 , 169 , 172 .
Ida,	3 .
Inchmahome priory,	122 .
Ingibjorg,	16 .
"Instrument" of Government,	175 .
Inverary,	185 .
---- Castle,	169 .
Inverlochy,	169 .
Inverness,	182 .

Inverurie, defeat at,	53.
Irevin, Alexander,	198.
Irvine, submission of,	42.
Isabella, daughter of Earl David,	35.
---- of Spain,	99.
Italy,	18.
Jamaica,	187.
James I,	83 , 84 , 89 , 90 , 91 , 93 .
---- II,	91 , 92 , 93 , 94 , 95 , 109 .
---- III,	95 , 96 , 97 , 98 , 101 .
---- IV,	xxiv , xxvii , xxviii , xxxv , 62 , 97 , 98 , 99 , 100 , 101 , 102 , 103 , 104 , 105 , 106 , 107 , 108 , 109 , 117 , 120 . xxvii , 97 , 108 , 113 , 114 , 115 , 116 , 117 , 127 .
---- V,	
---- VI,	x , xxxiv , 19 , 60 , 144 , 145 , 146 , 147 , 148 , 149 , 150 , 151 , 152 , 153 , 154 , 155 , 157 , 158 , 177 , 181 , 192 , 193 , 211 . 178 , 179 , 180 , 182 .
---- VII,	
---- Lord Hamilton,	109.
Janville,	90.
Jedburgh,	84.
Joanna, daughter of Edward II,	60.
---- daughter of John,	28.
John,	28 , 35 , 79 , 195 .
---- XXII, the Pope,	58.
---- of Brittany,	47.
---- of Carrick,	78.
---- of France,	79.
---- of Gaunt,	76 , 89 .
---- of the Isles,	95 , 96 .
---- of Wallingford,	7.
Johnson, Dr.,	86.

Johnston, J.B.,	xvi , 4 .
Johnston of Warriston,	170 .
Julius II,	103 , 104 .
Keith, Sir Robert,	56 .
Kennedy, Bishop,	95 .
---- Walter,	xxxiv , xxxv .
Kenneth Macalpine,	4 .
Kenneth of Scotland,	7 .
Ker of Faudonside,	135 .
Kilblain, victory at,	69 .
Kildrummie Castle,	51 .
Killiecrankie, battle of,	182 .
Kilsyth, victory at,	170 .
Kinghorn,	66 .
<i>Kings Quair</i> ,	89 .
Kinloss, Abbey of,	207 .
Kinross,	193 .
Kirkaldy of Grange,	142 .
Kirkcudbright,	xvii .
Knox, John,	121 , 123 , 124 , 125 , 128 , 130 , 133 , 146 .
<i>Lady of the Lake</i> , the,	xi , xxxvii , 86 .
Lanark,	42 .
Lanarkshire,	179 .
Lang, Mr. Andrew,	x , xi , 7 , 41 , 65 , 92 , 121 , 204 .
Langside, battle of,	139 .
Largs, battle of,	29 , 30 .
Laud, Archbishop,	158 , 159 , 162 .
Laurencekirk,	xvii .
Leicester, Earl of,	132 .
Leith,	119 .
---- besieged,	126 .
Lennox, Earl of,	106 , 108 , 109 , 119 , 133 , 142 , 143 .
Lesley, John,	xxix , 203 .

Leslie, Alexander, [201](#).
 ---- Alexander, Earl of Leven, [162](#), [163](#), [166](#), [168](#), [170](#), [173](#), [174](#).
 ---- David, [170](#), [173](#).
 ---- family of, [86](#).
 ---- Walter, [201](#).
 Leuchars, church of, [160](#).
 Lincoln, battle of 1216, [28](#).
 ---- victory at, [23](#).
 Linlithgow, [54](#), [137](#), [142](#).
 ---- Convention at, [154](#).
 ---- county of, [69](#).
 Lochleven Castle, [137](#), [138](#), [139](#).
 Lochmaben, [76](#).
 ---- battle of, [97](#).
 ---- Stone, battle of, [92](#).
 Loch Ness, [169](#).
 London, [xxxvi](#), [46](#), [73](#), [78](#), [102](#), [166](#), [174](#), [176](#).
 Longueville, Duc de, [114](#).
 Lords of the Articles, [153](#), [181](#).
 Lords Ordainers, [54](#).
 Lothians, [xi](#), [xii](#), [xiii](#), [xiv](#), [xvii](#), [xix](#), [xxxiv](#), [5](#), [7](#), [8](#), [9](#), [12](#), [17](#), [22](#), [23](#), [77](#), [119](#), [170](#), [206](#).
 Loudon Hill, battle of, [51](#).
 Louis IX, [35](#).
 Louis XI, [95](#).
 Lubeck, [43](#).
 MacAlexander, [197](#).
 Macbeth, [8](#), [9](#).
 MacDavid, [197](#).
 MacDonald of Glencoe, [185](#).
 MacDuff, Clan of, [209](#).
 Macfadyane, [xxxv](#).

MacGregor, Red Duncan,	4 .
MacHenry,	197 .
MacHeth,	xxi , 206 , 207 , 208 .
Mackay, General,	182 .
Mackays, the,	87 .
Mackenzies, the,	87 .
MacLane,	198 .
Madeline, daughter of Francis I,	113 , 114 .
Madoc of Wales,	38 .
Mahomet,	xxxv .
Maitland of Lethington,	130 , 133 , 142 .
Major, John,	xxvi , xxviii , xxix , xxx , xxxi , xxxii , 199 .
Malcolm I,	6 .
---- II,	xii , 7 , 8 , 9 .
---- III, (Canmore),	xvii , xix , xx , xxi , xxix , xxxvii , 11 , 12 , 13 , 14 , 15 , 16 , 17 , 48 , 85 , 196 , 200 , 204 , 205 , 206 , 209 , 211 , 212 .
---- IV,	xxii , 24 , 25 , 26 , 27 , 208 .
Malvile, Robert de,	198 .
Man, Isle of,	55 .
Mansfield, town of,	168 .
Manton, Ralph de,	45 .
Mar, Alexander,	203 .
----10th Earl of,	50 .
----11th Earl of,	65 , 66 , 67 .
----12th Earl of,	87 .
---- Earls of,	xxx , 143 , 202 .
---- Isabella of,	50 .
March, Edmund, Earl of,	80 .
---- George, Earl of,	71 , 80 , 81 , 82 , 83 , 84 , 88 .
Margaret, daughter of Alexander III,	31 .
---- daughter of Angus,	110 , 119 , 129 , 133 .
---- daughter of Christian I,	97 .

---- daughter of David, [34](#).
---- daughter of Henry III, [31](#).
---- daughter of Henry VII, [99](#), [101](#), [102](#), [103](#), [108](#), [109](#), [110](#),
[111](#), [112](#), [113](#), [114](#), [116](#), [124](#), [133](#).
---- daughter of James I, [90](#), [91](#).
---- daughter of William the Lion, [28](#).
---- grand-daughter of Alexander III, [31](#), [32](#), [33](#), [34](#), [36](#).
---- Saint, [xix](#), [xxvii](#), [27](#), [85](#).
---- wife of Canmore, [xiv](#), [11](#), [14](#), [15](#), [16](#), [17](#), [18](#), [22](#), [205](#).
---- of Anjou, [94](#).
Marston Moor, battle of, [168](#).

[xxix](#)[118](#), [122](#), [123](#), [124](#), [125](#), [127](#),
[128](#), [129](#), [130](#),
Mary, Queen of Scots, [131](#), [132](#), [133](#), [134](#), [135](#), [136](#), [137](#),
[138](#), [139](#), [141](#), [142](#), [143](#), [144](#), [145](#),
[149](#), [165](#).

---- II, [180](#), [181](#).
---- daughter of Henry VIII, [113](#), [123](#), [124](#).
---- daughter of James II, [109](#).
---- wife of Eustace, [17](#).
---- of Gueldres, [95](#).
Matilda, the Empress, [19](#), [20](#), [23](#).
---- wife of Henry I, [17](#).
Maximilian the Emperor, [99](#).
Mearns, Earl of, [16](#).
---- the, [xvii](#), [198](#).
Medici, Catherine de, [128](#).
Melrose Abbey, [77](#), [120](#).
Melun, siege of, [89](#).
Melville, Andrew, [147](#), [148](#).
Menteith, Lake of, [122](#).
---- Sir John, [46](#).
Methven, [50](#).
---- Lord, [113](#).

Midlothian,	3 .
Millenary Petition, the,	148 .
Mitton-on-Swale, battle of,	57 , 72 .
Monk, General,	174 , 176 .
Monmouth, Duke of,	179 .
Montgomerie, Alexander,	xxxiv , xxxvi .
Montrose, Marquis of,	162 , 163 , 164 , 165 , 166 , 167 , 168 , 169 , 170 , 172 , 173 , 176 , 181 .
Moors, the,	64 .
Mor Tuath,	204 .
Moray, Andrew of,	43 .
---- Bishop of,	206 .
---- Celts,	206 , 208 , 213 .
---- earldom of,	xxi , xxii , 8 .
---- Firth,	xii , xvii , 4 , 84 , 213 .
---- Sir Andrew,	67 , 70 .
---- Thomas,	198 , 202 .
Morayshire,	xxi , 25 .
Mormaers, the,	204 , 206 .
Mortimers, the,	64 , 65 .
Morton, Earl of,	137 , 138 , 143 .
Musselburgh,	65 .
Namur, Guy de,	70 .
Napoleon,	46 .
National Covenant,	160 , 162 , 166 , 178 .
Navigation Act,	176 .
Nectansmere, battle of,	12 .
Nesbit, skirmish at,	82 .
---- victory at,	73 .
Neville, Archbishop,	72 .
Neville's Cross, battle of,	72 .
Newark,	168 .
Newbattle Abbey,	77 .
Newburn, battle of,	165 .

Newcastle,	13 , 165 .
---- Propositions of,	170 .
Newport,	171 .
New York,	187 .
Norfolk, Duke of,	143 .
Norham Castle,	100 , 105 .
Normandy,	26 , 40 .
Northallerton,	xxiv , 20 , 21 , 24 , 72 , 93 .
Northampton, battle of,	93 .
---- Treaty of,	59 , 64 , 65 , 101 .
Northumberland,	xxii , 11 , 12 , 18 , 19 , 25 , 67 , 88 , 93 , 151 , 206 .
---- earldom of,	23 , 26 , 28 .
---- Earl of,	78 , 82 , 83 , 142 .
Northumbria,	xii , xxxii , 4 , 5 .
Northumbria, Earl of,	7 , 8 , 9 .
Nottingham, Earl of,	77 .
Nova Scotia,	156 .
Ogilby, Alexander,	198 , 199 , 202 .
Ogilvie, John,	150 .
Oman, Mr.,	xii , 21 , 44 .
Orkneys,	8 , 97 .
Orleans, siege of,	90 .
Ormsby, William,	40 , 41 .
Otterburn, battle of,	78 .
Owen of Strathclyde,	8 .
Owre, Donald,	xxxv .
Oxford,	xxxiv .
Palestine,	18 , 64 .
Panama, Isthmus of,	187 .
Paterson, William,	186 , 187 .
Pathay, victory of,	90 .
Pavia, battle of,	112 .
Peasants' Revolt,	76 .

Pedro de Ayala,	xxxii.
Peebles,	48.
---- county of,	69.
Pembroke, Earl of,	50 , 51.
Pentland, battle of,	177.
---- Firth of,	5.
Percies, the,	77 , 78 , 82 , 83 , 92.
Percy, Henry,	72.
Perron, Cardinal,	150.
Perth,	xxxi , 50 , 54 , 66 , 91 , 168 , 169 , 174 , 208.
---- Five Articles of,	155 , 162.
---- riots in,	124 , 125.
---- surrender of,	71.
Pezron, Paul Ives,	2.
Philip IV,	38 , 45.
Philiphaugh, defeat at,	170.
Pinkerton's suggestion,	56.
Pinkie, battle of,	21 , 63 , 122.
Piperden, victory of,	91.
Pitscottie,	94 , 115.
<i>Post-naticase</i> ,	152.
Preston, battle of,	172.
Randolph, Earl of Moray,	53 , 54 , 55 , 57 , 59 , 64 , 65 , 67 , 71 , 85.
---- Earl of Moray, the younger,	67 , 68 , 69 , 70 , 72 , 73.
---- the ambassador,	134.
Rathlin, island of,	51.
Ratisbon,	xxix.
Regnold, King,	5.
Renfrew,	10.
Rhys, Dr.,	3.
Richard I,	27 , 35.
---- II,	77 , 78 , 79 , 80 , 81 , 82.
---- III,	97.

Richard of Hexham,	22 .
Richelieu, Cardinal,	164 .
Rizzio, David,	134 , 135 , 136 , 138 .
Robert II, the Steward,	59 , 69 , 72 , 73 , 75 , 78 , 86 .
---- III,	78 , 80 , 81 , 84 , 210 .
---- the High Steward,	59 .
---- of Normandy,	13 .
Robertson, E.W.,	xxi , xxii , xxxvii , 5 , 209 .
Rokeby,	72 .
Ross, Bishop of,	xxix , 206 .
---- county of,	xxiii , xxx .
---- Duke of,	110 .
---- earldom of,	86 .
---- Earl of,	201 , 202 , 203 , 210 .
Rosslyn, defeat at,	45 .
Rothesay, Duke of,	80 , 81 .
Rothiemurchus,	169 .
Roxburgh,	39 , 54 , 91 , 93 .
---- castle of,	94 .
---- county of,	69 , 76 , 115 , 120 .
---- skirmish at,	67 .
Rudolfi,	143 .
Rullion Green, battle of,	177 .
Ruthven, Earl of,	135 .
St. Abb's Head,	84 .
St. Albans, 1st battle of,	93 .
----2nd battle of,	94 .
St. Andrews,	34 , 118 , 120 , 121 , 125 , 177 .
---- Archbishop of,	176 , 206 .
---- castle of,	95 .
St. Duthac,	51 .
St. Germain's,	191 .
St. Giles' Collegiate Church,	158 , 159 .
St. James's,	191 .

Salisbury, Earl of,	70 .
---- meeting at,	32 .
Sark, battle of,	92 .
Scone,	32 , 40 , 42 , 66 , 174 .
<i>Scoti-chronicon</i> ,	xxx .
Scott, Sir Walter,	xviii , 81 , 212 .
Scrymgeour, James,	198 .
Seaforth, Earl of,	169 .
Segrave, Sir John,	45 .
Selkirk, county of,	69 .
Seymour, Jane,	114 .
Shakespeare,	9 .
Sharpe, James,	176 , 177 .
Shetlands,	8 , 97 .
Shrewsbury, battle of,	83 .
Siward of Northumbria,	9 , 18 , 20 .
Skene's <i>Celtic Scotland</i> ,	204 , 210 .
Skye,	xviii , xxvii , 86 .
Slains, rout at,	53 .
Smith, Mr. G. Gregory,	98 , 104 .
Solemn League and Covenant,	167 , 172 , 173 , 178 .
Solway, the,	139 .
---- Moss, battle of,	115 , 117 .
Somerled of Argyll,	25 , 41 , 208 .
Somerset, Earl of,	88 .
Sophia of Hanover,	190 .
Spain,	46 , 64 , 104 , 128 , 131 , 132 , 146 .
Spey, river,	173 .
Standard, battle of,	20 , 21 , 24 , 85 , 195 .
Stanley,	106 .
Stephen,	17 , 19 , 20 , 23 , 24 , 25 .
Stewart, Henry,	113 .
---- Lord James,	127 , 130 , 133 , 134 , 135 , 138 , 139 , 141 , 142 .

---- Murdoch,	82 .
---- Sir John,	90 .
Stirling,	113 , 173 , 174 .
---- battle of,	42 , 44 .
---- castle of,	34 , 45 , 55 , 71 .
Stracathro,	39 .
Stradarniae comes,	195 .
Strathclyde,	5 , 6 , 8 , 9 , 23 .
Strathern, Earl of,	22 .
Strathon, Alexander,	202 .
Strickland, Miss,	145 .
Stuart, Alexander,	202 .
Stuarts, the,	xx , 18 , 100 .
Suffolk, Earl of,	78 .
Surrey, Earl of,	100 , 106 , 107 , 108 , 112 .
Sybilla, daughter of Henry I,	17 .
Symeon of Durham,	7 , 205 .
Tables, the,	160 .
Tain,	xvii , 51 .
<i>Tales of a Grandfather</i> ,	xviii .
Tay,	xi , xii , xiii , xxx .
Tees,	23 , 165 .
Test Act,	178 , 179 .
Teviotdale,	23 .
"The Incident",	166 .
Thirty Years' War,	162 .
Throckmorton,	126 .
Till, river,	106 .
Tippermuir, victory at,	168 .
Tomintoul,	87 .
Toulouse,	25 , 208 .
Touraine, Duke of,	90 .
Towton, battle of,	94 .
Tudors, the,	63 .

Turnberry,	xvii .
Turriff, battle of,	163 .
Tweed,	13 , 69 , 158 , 165 , 168 , 173 .
Tweeddale,	53 .
"Tyneman the Unlucky",	67 .
Ulster, Plantation of,	150 , 156 .
Uxbridge, Proposals of,	168 .
Vendome, Duc de,	113 .
Verneuil, battle of,	90 .
Vienne, John de,	77 .
Virgil, Polydore,	xxxii , 101 .
Wales,	1 , 81 .
Wallace, William,	xxxiii , 41 , 42 , 43 , 44 , 45 , 48 , 54 , 55 , 62 .
Walter l'Espec,	20 .
---- of Coventry,	209 .
Waltheof,	18 .
Warbeck, Perkin,	61 , 99 , 100 .
Warene, John of,	40 , 43 .
Wark, attack on,	112 .
---- capture of,	94 .
Warkworth, castle of,	92 .
<i>Waverley</i> ,	xviii , xxxvii .
Wentworth, Lord Strafford,	161 .
Wessex,	5 .
Westminster,	36 .
---- Abbey,	36 , 40 , 52 , 60 .
---- Assembly,	167 .
Westmoreland,	25 , 78 .
---- Earl of,	142 .
Wigtown, martyrs of,	178 .
Winchester, Bishop of,	148 .
---- Chronicle,	5 .
---- defeat at,	23 .

Wishart, George,	120 .
William I, xiv, xv,	11 , 12 , 13 , 14 , 17 .
---- III,	180 , 181 , 182 , 183 , 184 , 187 , 188 , 191 .
William the Lion,	24 , 26 , 27 , 28 , 29 , 31 , 34 , 35 , 205 , 209 , 210 , 213 .
---- Earl of Ross,	201 .
---- of Albemarle,	20 .
---- of Newburgh,	xix .
---- Rufus,	13 , 16 .
Wood, Sir Andrew,	98 .
Woodstock, homage at,	25 .
Woodville, Elizabeth,	97 .
Worcester, battle of,	174 , 175 .
Wyntoun,	84 .
<i>Yellow Carvel</i> ,	98 .
York,	168 .
York, Archbishop of,	57 .
---- Duke of,	98 .
---- meeting at,	114 .
---- reconciliation of,	93 .
---- siege of,	168 .
---- Treaty of,	29 .
Yorkshire,	xv , xxii , 57 , 58 , 206

*** END OF THE PROJECT GUTENBERG EBOOK AN OUTLINE OF
THE RELATIONS BETWEEN ENGLAND AND SCOTLAND (500-1707)

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.